

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 15-04

**CROCUS INVESTMENTS, LLC AND CROCUS, FZE
(Complainants)**

v.

**MARINE TRANSPORT LOGISTICS, INC. AND
ALEKSANDR SOLOVYEV a/k/a ROYAL FINANCE GROUP INC.**

(Respondents)

RESPONDENTS' APPENDIX

By: CICHANOWICZ, CALLAN, KEANE,
VENGROW & TEXTOR, LLP
Attorneys for Respondents
Marine Transport Logistics, Inc., and
Aleksandr Solovyev

Stephen H. Vengrow
svengrow@cckvt.com
Eric Chang
echang@cckvt.com
61 Broadway, Suite 3000
New York, New York 10006-2802
(212) 344-7042

Respondents' Appendix

Documents

Maersk Line B/L No. 560010878 from NJ to Jebel Ali	RX 01
Maersk Line B/L No. 560083476 from NJ to Jebel Ali	RX 02
Marine Transport Logistics, Inc. B/L No. EO-20756 from NJ to Jebel Ali	RX 04
APL B/L No. APLU 020188407 from Jebel Ali to NJ	RX 05

Deposition Transcripts

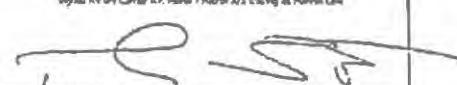
Transcript from the November 19, 2015 Deposition of Ms. Alla Solovyeva	RX 06
Transcript from the November 20, 2015 Deposition of Mr. Aleksandr Solovyev	RX 28
Transcript from the December 3, 2015 Deposition of Mr. Alexander Safanov	RX 56

 MAERSK LINE		NON-NEGOTIABLE WAYBILL		SCAC MAEU BL No 560010878
Shipper MARINE TRANSPORT LOGISTICS INC 63 NEW HOOK ROAD BAYONNE NJ 07002 UNITED STATES		Booking Ref 560010878 Export reference EO-20294		
Consignee MIDDLE EAST ASIA ALFA FZE JUMEIRAH VILLAGE CIRCLE, EMIRATES GARDEN MULBERRY-2, FLAT 119, DUBAI, UAE TEL: 97144340897		Set Contract 644011 This contract is subject to the terms and conditions, including the law & jurisdiction clause and location of liability & declared value clauses, of the current Maersk Line Bill of Lading (available from the carrier's agents and at www.maerskline.com), which are applicable with typical amendments (mutatis mutandis). To the extent necessary to enable the Consignee to sue and to be sued under this contract, the Shipper on entering into this contract does so on his own behalf and as agent for and in behalf of the Consignee and warrants to the holder the authority to do so. The shipper shall be entitled to change the Consignee at any time before delivery of the goods provided he gives the Carrier reasonable notice in writing. Delivery will be made to the Consignee or his authorized agent on production of reasonable proof of identity (and, in the case of an agent, reasonable proof of authority) without production of this waybill. The Carrier shall be under no liability whatsoever for misdelivery unless caused by the Carrier's negligence.		
Trade Party SAME AS CONSIGNEE		Delivery instructions (not part of Contract as defined in clause 1. For security and not for recording)		
Vessel MAERSK WYOMING	Voyage No. 1307	Ticks of Receipt. Applicable only when document used as inland receipt.		
Port of Loading Newark	Port of Discharge JEBEL ALI, UNITED ARAB EMIRATES	Ports of Delivery. Applicable only when document used as inland receipt (not clause 1).		

PARTICULARS FURNISHED BY SHIPPER

END OF PACKAGES, Description of goods, Marks and Numbers, Consignee Name, etc. 1 Container Said to Contain 2 Vehicles 2011 MONTEREY VIN# RGPMC1931011 2002 CHAPARRAL VIN# FG831746G102 X20130502013089 MSKU4805380 45 DRY 9'6 2 Vehicles 5329.71 KGS Shipper Seal : 268274 THESE COMMODITIES, TECHNOLOGY, OR SOFTWARE WERE EXPORTED FROM THE UNITED STATES IN ACCORDANCE WITH THE EXPORT ADMINISTRATION REGULATIONS. DIVERSION CONTRARY TO U.S. LAW PROHIBITED. SHIPPER'S LOAD, STOW, WEIGHT AND COUNT FREIGHT PREPAID CY/CY	Weight 5329.71 KGS	Pre-enclosed
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Shipper's particulars are furnished by Shipper, but without responsibility of or representation by Carrier.

Particulars	Rate	Unit	Currency	Freight	Charges
Carrier's Receipt (Full number of containers or packages received by Carrier) 1 container 2013-05-05	Name of House of Exchange Charlotte Date of Bill of Exchange 2013-05-28	Shipped, as far as is stated, by reasonable means of checking, in apparent good order and condition unless otherwise stated hereon the total number or quantity of Containers or other packages or units are stated in the box opposite marked "Carrier's Receipt".			
(Freight Value Charges (see clause 1) of the Receipt form 22 of Contract) for Declared Value of USD					
Agent's name MARINE TRANSPORT LOGISTICS HOOK RD BAYONNE NJ 07002			Signed for the Carrier A.P. Røed - Maersk A/S Acting as Harbormaster  Maersk Agency U.S.A., Inc - Charlotte CRC No Agent of the Carrier		

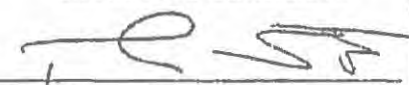
RESP 001

RX 01

 MAERSK LINE		NON-NEGOTIABLE WAYBILL	V.C. MAEU A.L. No. 560083476
Shipper MARINE TRANSPORT LOGISTICS INC 63 NEW HOOK ROAD BAYONNE NJ 07002 UNITED STATES*		Booking No. 560083476	
Consignee MIDDLE EAST ASIA ALFA FZE JUMEIRAH VILLAGE CIRCLE, EMIRATES GARDEN MULBERRY-2, FLAT 119, DUBAI, UAE TEL: 97144340897		Export reference EO-20756	
Notify Party SAHE AS CONSIGNEE		This contract is subject to the terms and conditions, including the law, jurisdiction clauses and limitation of liability, as declared in the clauses of the current Program List of Lading (available from the carrier, its agents and at www.maerskline.com), which are applicable with legal amendments (mutatis mutandis). To the extent necessary to enable the Consignee to sue and be sued under this contract, the Shipper on entering into this contract does so on his own behalf and as agent for and on behalf of the Consignee and warrants that he has the authority to do so. The shipper shall be entitled to change the Consignee at any time before delivery of the goods provided he gives the Carrier reasonable notice in writing. Delivery will be made to the Consignee or his authorized agent on production of reasonable proof of identity (and, in the case of an agent, reasonable proof of authority) without production of this waybill. The Carrier shall be under no liability whatsoever for redelivery unless caused by the Carrier's negligence. Gross and inland cartage (not part of Carriage as defined in clause 3, for second use only of previous)	
Vessel SEA LAND MERCURY	Voyage No. 1311	Place of Receipt, applicable only when document used as Multimodal Transport Receipt	
Port of Loading Newark	Port of Discharge JEHEL ALI, UNITED ARAB EMIRATES	Place of Delivery, applicable only when document used as Multimodal Transport Receipt (see clause 1)	

PARTICULARS FURNISHED BY SHIPPER

One of Packages; Description of goods, Marks and Number, Load and Seal No. 1 Container Said to Contain 2 Units 2 Vehicles 2008 CHAP BOAT VIN# FGRL3738D808 2007 FOUR WINNS VIN# GFNMN113E707 *Oksana Khanzhina Telephone: (201) 858-8600 Telefax: 201.858.8607 Email: documentation@mtiworld.com X20130515016501 PONU3045771 45 DRY 9'6 2 Units 4535.92 KGS Shipper Seal : 7268064 THESE COMMODITIES, TECHNOLOGY, OR SOFTWARE WERE EXPORTED FROM THE UNITED STATES	Weight 4535.92 KGS	Measurement
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Freight & Charges	Rate	Unit	Currency	Freight	Other
Carrier's Receipt. Total number of containers or packages received by Carrier 1 container Shipped on Board Date (Local Time) 2013-05-25 Declared Value Charges (see clause 2.3 of the Tariff and Bill of Lading) are Declared Value at US\$					
Place of Issue of Waybill Charlotte Date Issue of Waybill 2013-06-11			Shipped, as far as ascertained by reasonable means of checking, in apparent good order and condition unless otherwise stated herein the total number or quantity of Containers or other packages or units indicated in the box opposite entitled "Carrier's Receipt"		
Shipper MARINE TRANSPORT LOGISTICS HOOK RD Bayonne NJ 07002			Signed for the Carrier A.J. Miller - Maersk A/S acting as Maersk Line  Maersk Agency U.S.A., Inc - Charlotte CRC As Agent(s) for the Carrier		

This transport document has one or more numbered pages

RESP 003

RX 02

BILL OF LADING

2. EXPORTER (Principal or other licensee and address including ZIP Code) Marine Transport Logistic Inc 63 NEW HOOK RD, Tel: 2018588600, BAYONNE, NJ 07002, USA		5. DOCUMENT NUMBER 560083476		3a. BL NUMBER EO-20756	
ZIP CODE		9. EXPORT REFERENCES			
3. CONSIGNEE TO Middle East Asia Alfa FZE Jumeirah Village Circle, Emirates Garden 2 Mulberry-2, flat 119, Tel: 971 4 434 0897, DUBAI, UNITED ARAB EMIRATES		7. FORWARDING AGENT (Name and address - full/complete) Marine Transport Logistic Inc 63 NEW HOOK RD, BAYONNE, NJ 07002, USA			
4. NOTIFY PARTY/INTERMEDIATE CONSIGNEE (Name and address)		8. POINT (STATE) OF ORIGIN OR FTZ NUMBER			
12. PRE-CARRIAGE BY		9. DOMESTIC ROUTING/EXPORT #/INSTRUCTIONS Letter: 88498991			
13. PLACE OF RECEIPT BY PRE-CARRIER		10. LOADING PIER/TERMINAL			
14. EXPORTING CARRIER SEA LAND MERCURY / 1311		15. PORT OF LOADING/EXPORT Newark		11. TYPE OF MOVE Vessel, Containerized	
16. FOREIGN PORT OF UNLOADING (Vessel and air only) Jebel Ali		17. PLACE OF DELIVERY BY ON-CARRIER		11a. CONTAINERIZED (Vessel only) Yes ☒ No	
MARKS AND NUMBERS (18)		DESCRIPTION OF COMMODITIES in Schedule B detail (20)		GROSS WEIGHT (Pallet) (21)	
NUMBER OF PACKAGES (19)				MEASUREMENT (22)	
PONU3045771 7268064 WR 83794 WR 84551		45 Ft. High Cube auto 2007 Four Winns VIN:GFNMN113E707 2008 CHAP BOAT VIN:FGRL3738D808 AES XTN: 123456789-HBOL13826		2948.35 Kg 1587.57 Kg	
2				4535.92 Kg 0.00 M³	

DECLARED VALUE US\$ _____ SUBJECT TO EXTRA FREIGHT AS PER TARIFF AND CLAUSE 7 (a) OF THIS B/L

FREIGHT RATES, CHARGES, WEIGHTS AND/OR MEASUREMENTS		
SUBJECT TO CORRECTION	PREPAID	COLLECT
GRAND TOTAL		

[illegible]

DATED AT Bayonne

By Marine Transport Logistic Inc
SIGNED OR PRINTED OF THE CARRIER

SIGNED ON BEHALF OF THE CARRIER

6/5/22/2013

Month / Day / Year

EA No.

EO-20756

RESP 005

RX 04

BILL OF LADING

SHIP (Principal or Seller Name and NJ address) MIDDLE EAST ASIA ALFA FZE DUBAI, UAE TEL : 0971 4 4340897 FAX : 0971 56 1440911		BOOKING NUMBER 020188407		BL NUMBER PAGE 1 OF 1 APLU 020188407	
CONSIGNEE (Name and Full Address / Non-Negotiable Unless Consigned to Order) (Unless provided otherwise, a consignment "To Order" means To Order of Shipper.) MARINE TRANSPORT LOGISTIC PO BOX 19000 DUBAI, UAE TEL : 04 360 8600 FAX : 04 360 8607		EXPORT REFERENCES DEC # 2010183656214			
SHIPPER'S NAME AND ADDRESS MARINE TRANSPORT LOGISTIC PO BOX 19000 DUBAI, UAE TEL : 04 360 8600 FAX : 04 360 8607		FORWARDING AGENT (Reference: F.M.C. No.) AEC CARGO SERVICES LLC 206, MOHD AL TAYAR BLDG AL MINA ROAD, BUR DUBAI			
SHIPPER'S NAME AND ADDRESS MARINE TRANSPORT LOGISTIC PO BOX 19000 DUBAI, UAE TEL : 04 360 8600 FAX : 04 360 8607		POINT AND COUNTRY OF ORIGIN OF GOODS UNITED STATES			
SHIPPER'S NAME AND ADDRESS MARINE TRANSPORT LOGISTIC PO BOX 19000 DUBAI, UAE TEL : 04 360 8600 FAX : 04 360 8607		ALSO NOTIFY (Name and Full Address) / DOMESTIC ROUTING / EXPORT INSTRUCTIONS / PIER - TERMINAL / ONWARD ROUTING FROM POINT OF DESTINATION			
SHIPPER'S NAME AND ADDRESS MARINE TRANSPORT LOGISTIC PO BOX 19000 DUBAI, UAE TEL : 04 360 8600 FAX : 04 360 8607		SHIPPER'S NAME AND ADDRESS MARINE TRANSPORT LOGISTIC PO BOX 19000 DUBAI, UAE TEL : 04 360 8600 FAX : 04 360 8607			
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SHIPPER'S NAME AND ADDRESS MARINE TRANSPORT LOGISTIC PO BOX 19000 DUBAI, UAE TEL : 04 360 8600 FAX : 04 360 86					

Rate Valuation Please refer to Clause 7 (U) on Reverse Side		PARTICULARS FURNISHED BY SHIPPER		Payment by Cheque must be made to the order of APL Co. Pte Ltd	
PKGS & NOS / CONTAINER NOS.	NO OF PKGS	HT	CONTAINER NO.	GROSS WEIGHT	MEASUREMENT
SC CTRF0001/E	2	1.40	40' HC CONTAINER		
UNIT AA) LV73500.09.00			SLAC CY/CY	5500.000KG	40.000M3
2008 CHAPARRAL BOAT				2125.410LB	1412.588CB
VIN NO FGBL3738D808					
2011 MONTEREY BOAT					
VIN NO RGFMC1931011					
FREIGHT PREPAID					
CTR NBR** RLU664213-4	**SEAL NBR**** AM30032658	T/S HT D40 96	MODE CY/ CY	QUANT/TYPE 2UNIT	WEIGHT 5500.00KG
** SHIPPER'S LOAD, STOW AND COUNT **					
SHIPPED ON BOARD MAY. 30, 2014					
DUBAI, UAE					
DBA					
** FREIGHT PREPAID * ***** APL COPY ***** ** NON-NEGOTIABLE * **** APL COPY **** ** NON-NEGOTIABLE **					

TO BE RELEASED AT				OCEAN FREIGHT PAYABLE AT				The shipper agrees to indemnify the carrier against all claims for the cost of storage or damage to cargo or other property until paid by the carrier or the cargo claimant. The shipper agrees to indemnify the carrier against all claims for the cost of storage or damage to cargo or other property until paid by the carrier or the cargo claimant. The shipper agrees to indemnify the carrier against all claims for the cost of storage or damage to cargo or other property until paid by the carrier or the cargo claimant.	
CE	FRIGHT RATE	QUANTITY WEIGHT	DATE / VAN	PER 1000	COLLECT US \$	Local Currency			
SE	MEASUREMENT	TO COUNTRY	1 / VAN	7.00					
HC	US\$		371 / VAN	371.00					
SC	US\$		12 / VAN		12.00				
SO	US\$		12 / VAN	12.00					
RS	US\$		90 / VAN	90.00					
MS	US\$		10 / EA	10.00					
OC	DIRH		380 / EA	103.46		380.00			
CV 009				DBA	3593.46	380.00	By: AUTHORIZED SIGNATURE DATE: MAY. 30, 2014 CITY: DUBAI, UAE TEL: 020188407		
TOTAL FWD		F96			12.00				
Actual	00899185	00899185	00799018	JER	F96	F96			
FORWARDER	SHIPPER	CONSIGNEE	LO PORT	DIS PORT	DEST	NOTIFY	CSC		
							BL NUMBER		

RESP 006

RX 05

ALLA SOLOVYEVA
CROCUS INVESTMENTS vs. MARINE TRANSPORT

November 19, 2015
1-4

Page 1 FEDERAL MARITIME COMMISSION -----X CROCUS INVESTMENTS LLC and CROCUS FZE, Complainants, Docket No. -against- 15-04 MARINE TRANSPORT LOGISTICS, INC. and ALEKSANDR SOLOVYEV a/k/a ROYAL FINANCE GROUP, INC. Respondents. -----X November 19, 2015 10:53 a.m. Deposition of ALLA SOLOVYEVA, taken by Complainants via video conference at the offices of Esquire Deposition Solutions, 1384 Broadway, New York, New York, before Anneliese R. Tursi, a Registered Professional Reporter and Notary Public within and for the State of New York.	Page 3 S T I P U L A T I O N S IT IS HEREBY STIPULATED AND AGREED by and between the attorneys for the respective parties herein that filing and sealing be and the same are hereby waived. IT IS FURTHER STIPULATED AND AGREED that all objections, except as to the form of the question, shall be reserved to the time of the trial. IT IS FURTHER STIPULATED AND AGREED that the within deposition may be signed and sworn to before any officer authorized to administer an oath with the same force and effect as if signed and sworn to before the Court.
Page 2 A P P E A R A N C E S THE LAW OFFICE OF LOUIZA TARASSOVA, P.A. Attorneys for Complainants 1420 Lake Baldwin Lane Unit A Orlando, Florida 32814 BY: LOUIZA TARASSOVA, ESQ. 407-622-1885 louiza@mylawadvocate.com (Present via video conference.) CICHANOWICZ, CALLAN, KEANE, VENGROW & TEXTOR, LLP Attorneys for Respondents 61 Broadway Suite 3000 New York, New York 10006-2802 BY: STEPHEN H. VENGROW, ESQ. 212-344-7042 svengrow@cckvt.com	Page 4 1 A. SOLOVYEVA 2 ALLA SOLOVYEVA, 3 residing at 420 Jansen Street, Staten 4 Island, New York 10312, having been 5 first duly sworn/affirmed by the Notary 6 Public (Anneliese R. Tursi), was 7 examined and testified as follows: 8 EXAMINATION BY MS. TARASSOVA: 9 Q. Good morning, Ms. Solovyeva. 10 A. Hello. 11 Q. Were you in the room earlier when 12 I was going over the ground rules for the 13 deposition? 14 A. Well, I didn't listen to your 15 questions, whatever you said. 16 Q. Okay. I will begin from the 17 beginning. 18 Have you ever been to a deposition 19 before? 20 A. Yes. 21 Q. How many times? 22 A. I cannot recall that. 23 I'm the owner of the company. 24 MR. VENGROW: Talk to her. Don't 25 talk to me.



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RX 06

Page 5	Page 7
1 A. SOLOVYEVA 2 A. Sometimes I have this. 3 Q. So how many times -- is it between 4 one and five or five and ten or ten and 15? 5 A. I cannot say that. I don't 6 remember. 7 Maybe a couple of times. 8 Q. Maybe how many? 9 A. Maybe a couple of times. 10 Q. I want to go over the ground rules 11 for the deposition. Basically, I'm sure you 12 have heard it before, but I just want to 13 refresh your memory again. 14 I'm going to assume that you 15 understood my questions, unless you ask me to 16 rephrase the question or restate the question. 17 Okay? 18 A. Okay. 19 Q. So if you don't understand what 20 I'm asking, please stop me and ask me to 21 restate it, rephrase it, so that you can 22 understand it. Okay? 23 A. Okay. 24 Q. I am going to need a verbal 25 response from you. Sometimes we tend to	1 A. SOLOVYEVA 2 Island, 10312. 3 Q. And who lives there with you? 4 A. My daughter. 5 Q. And what is her name? 6 A. Danielle Solovyeva. 7 Q. Are you married? 8 A. I don't have to answer this 9 question. 10 Q. I'm going do ask you to answer the 11 question. That is the point of the 12 deposition. I get to ask you questions -- 13 A. I think it is a personal question. 14 MR. VENGROW: Can I speak to her a 15 second. You have to answer the 16 question. 17 (Discussion off the record.) 18 A. I'm not divorced, but I'm living 19 apart with my husband. 20 Q. Are you currently separated? 21 A. Well, we're living apart. 22 Q. And what is your husband's name? 23 A. Aleksandr Solovyeva. 24 Q. Does Mr. Solovyeva ever live at 25 that address that you say you live at now?
Page 6	Page 8
1 A. SOLOVYEVA 2 naturally nod or shake our heads instead of 3 saying yes or no. If you can just give me a 4 verbal response -- yes, no, maybe -- so that 5 way the court reporter can put it down on the 6 record properly. Okay? 7 A. Okay. 8 Q. So throughout the deposition your 9 attorney or I may be making objections. Don't 10 let that throw you off. Stop answering the 11 question, wait for us to resolve the issue and 12 then continue to answer when you have an 13 instruction. Okay? 14 A. Okay. 15 Q. Are you on any kind of medication 16 today that might prevent you from remembering 17 certain facts? 18 A. No. 19 Q. Are you suffering from any kind of 20 an illness that may prevent you from being 21 able to attend this deposition and answer the 22 questions? 23 A. No. 24 Q. What is your address? 25 A. It's 420 Jansen Street, Staten	1 A. SOLOVYEVA 2 A. Yes. 3 Q. And when did he move out? 4 A. I cannot recall that. 5 Q. Was it this year? 6 A. No. 7 Q. Was it last year? 8 A. I cannot recall that, ma'am. I 9 don't want to lie to you. This year, last 10 year or five years ago. 11 Q. I'm asking you generally to answer 12 the question. I'm certainly not going to hold 13 you to the wrong date. I just want -- 14 A. I understand, ma'am. This is what 15 I'm saying to you. I cannot recall that. It 16 wasn't this year and it wasn't last year. 17 Q. So was it two years ago? 18 A. I cannot recall that, ma'am. 19 Q. Other than your daughter, does 20 anyone else live at your address? 21 A. I have a dog. 22 Q. Any human beings? 23 A. It's a human. 24 MR. VENGROW: Alla -- 25 THE WITNESS: That's fine.

Page 9 1 A. SOLOVYEVA 2 Q. I agree with you. I have a dog as 3 well. They are like people. 4 Can you please tell me what your 5 phone number is that you use. 6 A. 718-612-2119. 7 Q. And is that a mobile? 8 A. Yes. 9 Q. And an e-mail address, all e-mail 10 addresses that you use. 11 A. It is Alla, A-L-L-A, at 12 MTLWorld.com. 13 Q. Is that the only address that you 14 use? 15 A. Yes. 16 Q. Are you currently employed? 17 A. Yes. I'm the owner. 18 Q. Of Marine Transport Logistics? 19 A. Exactly. 20 Q. Are you employed by anyone else? 21 A. No. 22 Q. Before you owned Marine Transport 23 Logistics -- first of all, let me go back. 24 When was Marine Transport 25 Logistics opened?	Page 11 1 A. SOLOVYEVA 2 company. I am the only one, decisionmaker, 3 and I have a hundred percent of all stocks in 4 the company. 5 Q. So can you describe to me your 6 daily duties. What do you do on a daily basis 7 for the company? 8 A. Okay. Basically, I am handling 9 all service contracts with the ocean carriers, 10 and I am reviewing the inventory and I am 11 asking my employees how much inventory we have 12 and what is the plan for the shipping and the 13 loading, and if they have any problems. 14 Then I open my e-mail box and I 15 read through. I answer all e-mails. 16 And sometimes I'm running meetings 17 with the different departments. 18 Then I'm asking my accountant if 19 everything is okay with the accounts and if 20 any checks were bounced. 21 So this is the daily routine. 22 Q. And would you say you are there 23 pretty much every day at the office? 24 A. Yes. I am every day in the 25 office, yes.
Page 10 1 A. SOLOVYEVA 2 A. I believe in 2001. 3 Q. Before you opened Marine Transport 4 Logistics, were you employed? 5 A. Yes. I had the same company 6 located in Brooklyn, New York, but the name of 7 the company was a little bit different. 8 Q. And what was the name at the time? 9 A. I believe it was MTL Worldwide, or 10 it was MTL Marine Transport Logistics, 11 something like that. 12 I think it was MTL Marine 13 Transport Logistics. 14 Q. And what state was that company 15 registered in? 16 A. New York. 17 Q. Other than being the owner of 18 Marine Transport Logistics, do you hold any 19 other role with the company? 20 A. Such as? 21 Q. The president, the vice 22 president -- 23 A. I hold all roles in my company. 24 Q. I'm sorry, what? 25 A. I'm holding all roles in my	Page 12 1 A. SOLOVYEVA 2 Q. What is the physical address for 3 MTL? 4 A. It is 63 New Hook Road, Bayonne, 5 New Jersey, 07002. 6 Q. Are any other businesses located 7 at that address? Does MTL allow any other 8 businesses to use that address? 9 A. MTL is a tenant. I'm not the 10 landlord. So the building has plenty of 11 different companies and a law office, and my 12 competition as well. 13 Listen, it is a lot of companies. 14 Trading companies. 15 Q. Who is your landlord? 16 A. He is -- it is Jerham Realty. 17 Q. How do you spell that? 18 A. It is hard to say. I don't 19 remember the exact spelling. I believe it is 20 J-E-R-H-A-M. Jerham Realty. 21 Q. Who is the person that you deal 22 directly with? 23 A. A Lenny. 24 Q. How do you spell that? 25 A. L-E-N-N-Y.

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1 A. SOLOVYEVA
2 Q. Lenny?
3 A. Yes.
4 Q. Is that a male or female?
5 A. It's a male.
6 Q. Does he have a last name?
7 A. I don't remember his last name.
8 Q. How long has MTL been renting from
9 Jerham Realty at 63 New Hook Road?
10 A. Approximately eight years.
11 Q. And do you have a lease?
12 A. Yes.
13 Q. And how long is that lease for?
14 A. It's -- we reviewing lease every
15 five years.
16 Q. When is it expiring next time?
17 A. I believe in two years.
18 Q. When does it expire next time,
19 when is the renewal coming up?
20 A. I just told you. In two years.
21 Q. In two years. I'm sorry. This
22 audio is bad.
23 A. That's okay.
24 Q. So in 2017 you are due to renew?
25 A. '17 or '18.

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1 A. SOLOVYEVA
2 Q. Does the company have a website?
3 A. Yes.
4 Q. What is the website domain?
5 A. It's MTLWorld.com.
6 Q. Does that have a Facebook page?
7 A. Yes.
8 Q. Does that have a LinkedIn page?
9 A. Yes.
10 Q. And who is responsible for
11 updating the contents on the website, LinkedIn
12 and Facebook?
13 A. I have an IT engineer.
14 Q. And do you sign all the documents
15 on behalf of the company?
16 A. If it is required.
17 Q. Does anyone else have any power to
18 sign any documents on behalf of the company?
19 A. No.
20 Q. Does your husband work for MTL?
21 A. He's not working for MTL. He's
22 working for his own companies.
23 Q. And what are --
24 A. It's just like business
25 relationship.

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1 A. SOLOVYEVA
2 Q. What companies does he own?
3 A. Well, you have to ask him this
4 question. I know of just a couple of
5 companies. I know Royal Finance and World
6 Express and Connection.
7 Q. And what is the relationship
8 between MTL and his companies?
9 A. Well, since his companies handling
10 all loading process and storing of the cargo
11 of MTL.
12 But not just MTL. We are one of
13 his customers. Let's put it this way.
14 So I am requesting, not me, but my
15 staff when it is needed, we are requesting
16 loading from him, and this is his job.
17 Q. Is his company, World Express and
18 Connection, is that also located at 63 New
19 Hook Road in New Jersey?
20 A. Which one?
21 Q. The World Express and --
22 A. No, it's not. No, it's not.
23 It has a different address.
24 Q. Do you know the address?
25 A. 70 Lefante Drive, Bayonne, New

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1 A. SOLOVYEVA
2 Jersey, 07002.
3 Q. That's down the street from the 63
4 New Hook Road?
5 A. Yes.
6 Q. Did he recently move the company
7 there?
8 A. No. He was there from the day
9 one.
10 Q. Does MTL participate in providing
11 goods for clients, do they go out to the
12 auction and purchase vehicles or vessels?
13 A. Ma'am, you have to rephrase it. I
14 don't understand.
15 Q. Does your company, MTL, does it
16 participate in obtaining goods for your
17 clients? Such as, going to an auction and
18 buying vehicles or vessels.
19 A. Vessels?
20 Q. Yes.
21 A. We are not buying vessels. What
22 vessels?
23 Q. Does MTL buy any goods for your
24 clients?
25 A. No, we never go physically and we

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1 A. SOLOVYEVA
2 never buy anything from auctions.
3 But what we can do, if the
4 customer is asking us to pay for some
5 purchases they did, and that they will pay us
6 back, we might do that. We might support the
7 customers.
8 Q. Can you give me more detail about
9 how you would do that.
10 A. Well, some of the customers, for
11 example, if they have problems with the money,
12 it is stuck somewhere, or it will take like a
13 couple of days and they need to pay to the
14 auto auction for purchase of the vehicle, so I
15 might chip in.
16 But usually this is not the case.
17 I don't like to do that.
18 Q. Do you mean you lend money to
19 clients?
20 A. I don't lend money. It is not
21 lending.
22 It is just, I am paying for the
23 purchase so he is not going to get stuck with
24 the penalty charges.
25 Then, like, in a couple of days he

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1 A. SOLOVYEVA
2 pays me back. But it is a very rare
3 situation.
4 Q. Who signs checks on behalf of
5 Marine Transport Logistics?
6 A. Only me.
7 Q. Has your husband ever signed
8 checks on behalf of Marine Transport
9 Logistics?
10 A. He has no access to my checkbook,
11 and all my checks are getting printed. We
12 have printed forms. So it's impossible.
13 Q. Has your husband ever been a
14 representative or an agent on behalf of Marine
15 Transport Logistics?
16 A. Yes.
17 Q. In what capacity? Can you explain
18 that.
19 A. Well, see that I have a different
20 sources of how to sell my company services,
21 and how to produce the income, and you see
22 that any person can act on behalf of my
23 company as a broker.
24 For example, if you have a friend
25 and your friend is asking you, your friend is

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1 A. SOLOVYEVA
2 located overseas asking you to export a
3 container or some goods out of United States
4 or to overseas, then you are acting as the
5 agent for your customer, for your friend, and
6 for me.
7 So you are calling to me and you
8 are saying, you know what, I need to send
9 these goods outside. Can you please help me
10 out. I will give you the business.
11 Or, you know, it could be just not
12 on one occasion. It could be on many
13 different occasions.
14 So I do have these kind of people
15 who support my company with the business.
16 Q. And can you talk to me about how
17 your husband has done that in the past with
18 the company, how he has been an agent.
19 A. Well, it is very simple. You see
20 that he is selling his company services. It
21 is loading and storing and building something
22 on his lot, but very often the customer is
23 asking for the full services, not just the
24 loading, but the ocean freight as well. So
25 Alex sometimes he is asking me for the rate,

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1 A. SOLOVYEVA
2 how much it might cost, and then he is asking
3 not just me. He might ask somebody else, also
4 as well. I'm not the only choice he has and
5 he is working with.
6 So then, you know, it is like a
7 mutual benefit. He is loading. He has a job
8 for the loading and supporting his people, and
9 I have a job for my people in the office.
10 Q. How many employees does MTL have?
11 A. In all, it is, besides me, it is
12 12.
13 Q. And those are all office
14 employees?
15 A. Yes. But see, the employees, it
16 means that the people are getting W-2. Not
17 all my employees are on W-2. Some.
18 Q. You have contractors?
19 A. Yeah. I have -- yes, I have two
20 consultants and it is salespeople, and then I
21 have one consultant who is working in office
22 and, like, doing meetings, and, you know, more
23 like in HR.
24 And then I have documentation
25 department. And I have ro-ro department. R-O

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1 A. SOLOVYEVA
2 R-O. I have ro-ro department. It is
3 everything what is not containerized.
4 And I have loading department, and
5 domestic inland transportation.
6 Q. Have you ever heard of Alexander
7 Safonov?
8 A. Excuse me?
9 Q. Have you ever heard of Alexander
10 Safonov?
11 A. I have no idea who this person is.
12 Q. What do you know about the
13 transactions that are at issue in this case?
14 A. I don't know what the case is
15 about.
16 Q. What do you mean you don't know
17 what the case is about?
18 A. Well, you see, I have, I'm moving
19 approximately 10,000 containers per year, and,
20 you know, I cannot physically put my nose in
21 each shipment.
22 So I would like you to be a little
23 bit more specific.
24 Q. Well, you have, your company has
25 been sued in the Federal Maritime Commission.

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1 A. SOLOVYEVA
2 Do you know that?
3 A. Yes, I know that.
4 Q. And the complaint, the complainant
5 filed a complaint, a formal complaint where
6 they describe what the lawsuit is about. Do
7 you know that?
8 A. Um-hmm. Yes, I know.
9 Q. And there has been some discovery
10 served, there are documents that have been
11 served to your attorney that further describe
12 what the case is about.
13 Have you seen those?
14 A. Hold on a second.
15 (Witness/attorney colloquy.)
16 A. You see, I saw some documents.
17 I'm not the lawyer. I'm not professional.
18 The documents what you exchanged on 26.
19 MR. VENGROW: Excuse me. She
20 means Rule 26, not the 26th as a
21 calendar day.
22 A. I saw some documents and I read
23 them, but, you know, I'm not professional. I
24 don't understand. I understand only in
25 shipping.

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1 A. SOLOVYEVA
2 Q. I'm not talking about legal
3 documents. I'm talking about e-mails between
4 your husband, as agent for MTL, and the
5 complainant, the Crocuses, Crocus in Dubai and
6 the Crocus in Florida.
7 A. No, ma'am. I never saw this
8 document, and I never was involved in any
9 e-mails. I never was copied. And so I have
10 no idea what this is all about.
11 Q. Did you receive a notice of
12 deposition that described the scope of today's
13 deposition?
14 A. Yes, but, you see, that the name
15 of the company Crocus is not familiar to me.
16 MR. VENGROW: Just answer the
17 question. Okay. She just asked you if
18 you received this. That's all.
19 Q. But did you see the notice of
20 deposition that was served on your company
21 Marine Transport Logistics that --
22 A. Yes.
23 Q. -- asks the person that will be
24 testifying today to be apprised of the
25 information within the notice?

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1 A. SOLOVYEVA
2 A. Yes, but if I don't have the
3 information....
4 Q. So what you are saying is you
5 don't have any information.
6 Did you go back and try to look
7 for documents that relate to --
8 A. Ma'am, I just stated to you that I
9 was not copied in e-mails between Alex and
10 Crocus, and this company never was my
11 customer. So I cannot be involved or familiar
12 with the company which never was a customer of
13 my company.
14 Q. Who was the customer of your
15 company in that transaction?
16 A. The customer was Andrey Tretyikov.
17 Q. He was MTL's customer?
18 A. Well, in some occasions he was.
19 But what I know, that in some occasions he was
20 a customer of Royal Finance.
21 Q. Who was the -- the question I
22 asked, who was MTL's customer in this
23 transaction? Who did MTL serve?
24 A. In this transaction, you mean
25 these transactions for these two boats?

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1 A. SOLOVYEVA 2 Q. The three boats, the Monterey, the 3 Chaparral and the Formula. 4 A. I think only two boats were 5 exported. 6 Q. I'm referencing our complaint 7 where we describe the things that we describe. 8 I'm talking about everything today. So you 9 tell me. 10 Who was the customer, who did MTL 11 deal with in this transaction in relation to 12 the complaint? 13 MR. VENGROW: Counsel, don't you 14 have copies of these in your own files? 15 We sent them to you. You can ask 16 questions based on what you have. This 17 deposition will go quicker, because I'm 18 not sure I understand your questions. 19 THE WITNESS: Me too. 20 Q. You are saying that you don't know 21 anything about this lawsuit. Right? That's 22 my understanding that's what you said. 23 MR. VENGROW: No, you are 24 misrepresenting what she is saying. 25 You produced a topical list. She	1 A. SOLOVYEVA 2 The documents, what I can see 3 only, it's a bill of ladings and it's 4 invoices. 5 What other documents I should see? 6 Then she ask me that if I saw the 7 e-mails, exchanging e-mails between 8 Aleksandr Solovyev and company Crocus. 9 I never saw these e-mails. I was 10 not involved or copied in these e-mails. 11 So then she suggested that I don't 12 know nothing. 13 BY MS. TARASSOVA: 14 Q. Ma'am, let me clarify this for you 15 because I think you are confused. Let me 16 explain to you. 17 In this case there have been 18 documents, these e-mails that I'm talking 19 about, my client produced them to your 20 attorney. Your attorney is supposed to show 21 you these documents as part of the case. 22 These are not legal documents and it is okay 23 if you were not cc'd on them. They have been 24 disclosed to you at this time. 25 I'm asking: Have you seen the
Page 26	Page 28
1 A. SOLOVYEVA 2 can talk to that. Why don't you ask her 3 questions on those. Maybe that will 4 help you to go forward. 5 MS. TARASSOVA: Right. Can we go 6 off the record for a second. 7 MR. VENGROW: Sure. 8 (Discussion off the record.) 9 MR. VENGROW: Go on the record. 10 Say what you want - we were off the 11 record. 12 We are off the record right now. 13 (Discussion off the record.) 14 MR. VENGROW: Back on the record. 15 I'm going to ask this one question 16 of my client. 17 MS. TARASSOVA: Okay. 18 MR. VENGROW: Did you state that 19 you don't know anything about this case? 20 THE WITNESS: No, I did not. 21 MR. VENGROW: Can you - 22 THE WITNESS: What I think 23 occurred: She asked me if I saw any 24 documents. And I asked her what 25 documents.	1 A. SOLOVYEVA 2 e-mails between your husband and Mr. Safonov 3 in this case? Have you seen a copy of those 4 e-mails yet? Has your attorney showed them to 5 you? 6 MR. VENGROW: I didn't show them 7 to you. 8 A. No, I didn't see them. 9 MR. VENGROW: There is another 10 defendant in this case. You realize 11 that? 12 MS. TARASSOVA: I'm sorry? 13 MR. VENGROW: There is another 14 respondent in this case, which is Alex 15 and this a/k/a. 16 MS. TARASSOVA: I'm just asking 17 her a question. That's all. 18 A. Ma'am, I didn't see those e-mails 19 because those e-mails are not my concern. It 20 is e-mails between Aleksandr Solovyeva and 21 Crocus, and Crocus is not my customer. 22 So Alex is sending on a daily 23 basis, I don't know how many thousands of the 24 e-mails, and I don't understand why I should 25 be involved or read them. It's not - it's

Page 29 1 A. SOLOVYEVA 2 not my business. 3 Q. How was MTL involved in this case? 4 A. MTL provided Andrey Tretyikov with 5 the transportation and with the loading of his 6 boats. 7 So when my company, we have 8 specific department who receives the e-mails, 9 if the customer wants to ship something out. 10 So then after this request, we 11 start work on the process, then we are doing 12 the loadings, then we are producing bill of 13 lading, then the invoices, and send it over 14 to the customer. This is basically what my 15 company is doing. 16 Q. And when you talk about the 17 specific departments, what is the name of the 18 department that deals with that? 19 A. Loading department. 20 Q. Who works in the loading 21 department? 22 A. At that time when this occurred it 23 was Irina Polkovnik, but she is not with the 24 company any more. 25 Q. And other than Irina Polkovnik,	Page 31 1 A. SOLOVYEVA 2 customer, or it could be a customer. It could 3 be anybody. 4 So this department is basically 5 receiving all e-mails with requests. 6 Q. Did you work with Alex Solovyeva 7 directly? Did MTL and Alex have any 8 communications? 9 A. Well, usually how it happens that 10 Alex Solovyeva is just, you know, as a broker 11 he just sends the request, or his customers 12 might send request for the services and then 13 my loading department is just sending to me a 14 general e-mail. I even don't know who is the 15 customer because we have all rates for the 16 services like preset. It is basically almost 17 all the same. So it is, they send to me 18 request stating something like that. 19 Alla, how much it's going to cost 20 to ship out a vehicle or a boat this size from 21 the point A to point B? 22 So then I contact with the loading 23 manager, the loading manager outside who is 24 doing physical loading, and I ask him that, 25 what it will take to load this boat, if the
Page 30 1 A. SOLOVYEVA 2 did anyone else deal directly with this 3 transaction? 4 A. I don't think so because she was 5 involved in loading, unless if she was sick. 6 Q. And who made the request? Who did 7 the request come from? 8 A. Ma'am, I cannot say that because 9 we have this request, thousands of requests on 10 a daily basis. 11 This is what my employees, their 12 duties, they are receiving e-mails and they 13 are answering these e-mails and they're doing 14 what they have to do. 15 Q. So you are saying the request 16 would have come in through an e-mail? 17 A. Yes. 18 Q. And to whose e-mail address? 19 A. It is usually it was Irina 20 Polkovnik at MTLWorld.com. 21 So, ma'am, I just want to point to 22 you, it could be anybody. It could be you who 23 sends this first information what you want to 24 get loaded. It could be Steve. It could be 25 Alex if he wants to ship on behalf of his	Page 32 1 A. SOLOVYEVA 2 cargo is oversized cargo, or it is not 3 vehicle. Because with the vehicles we always 4 know. Or it's the pallets, because it is 5 standard cargo. 6 So if it is not standard cargo, so 7 then I make a phone call or I send a text 8 message to the loading manager and ask him, 9 listen, what do you think how much it might 10 cost and how long time it will take you. 11 So he is giving me the numbers, 12 and he is telling me, this boat will go with 13 the turn on the side, this boat will go 14 straight, you can consolidate this boat with 15 something else. So it is just routine, 16 routine request. 17 And then I make my decision on how 18 I will export and what I can offer to the 19 customer and what I can produce as an income 20 for the company, and I send back e-mail to my 21 loading division or department and I'm saying, 22 okay, I have this boat, we can consolidate for 23 something else. Do you have any more units or 24 not? Or if the customer agrees to consolidate 25 with another vehicle, or this boat is too big

Page 33	Page 35
1 A. SOLOVYEVA 2 and we cannot consolidate. It is going to be 3 a straight shipment. 4 So then I give the rate out and 5 usually salespeople -- so the loading 6 department is taking all information from the 7 customer, if they know this customer, if they 8 are just confirming if this customer will be 9 on the bill of lading as a shipper. 10 So they ask me or they ask my 11 sales department people to create a rate quote 12 in the system. 13 Based on the rate what I 14 produced -- and it is only on oversized cargo. 15 And then one of us, me or salespeople, we are 16 issuing rate quote and then the loading 17 department, based on this rate quote, is 18 requesting the loading and they requesting the 19 empty container from the trucking company and 20 so they load. This is their job on a daily 21 basis. 22 Q. Okay. I saw some invoices from 23 MTL to I think Royal Finance Group. Can you 24 explain what that's about, what the invoices 25 from MTL are in this case, because I think	1 A. SOLOVYEVA 2 software what we have. And the loading, 3 physical loading, is World Express who is 4 outside. 5 Q. Because I thought he had mentioned 6 earlier that when you are trying to ascertain 7 a quote for oversized goods, you go outside to 8 your loading guy? 9 A. I don't go. I call. It is not 10 mine. What I said to you, it is the loading 11 manager, but it is not my manager. And he is 12 not, this loading manager is not an employee 13 of my company. So I'm just calling, because 14 since it is a manager and he is doing this 15 specific work, and he knows how to load, so I 16 am asking him how much and what it take to 17 load this oversized cargo. 18 Q. Who is the loading manager? 19 A. His name is Stoli. 20 MR. VENGROW: Where does he work? 21 Tell her where he works. 22 A. He works for World Express and 23 Connection. 24 Q. That's why I'm confused. 25 So your husband's company World
Page 34	Page 36
1 A. SOLOVYEVA 2 there has been some storage fees that either 3 MTL had to pay for in regards to the boats. 4 Can you clarify how that works with one 5 company paying for another company and then 6 invoicing each other. How did that work? 7 A. Well, we have separate businesses 8 and separate activities and we are not sharing 9 the same incomes. 10 So World Express is providing my 11 company with the loading and sometimes I am 12 asking -- 13 Q. I'm sorry, can I stop you for a 14 second. 15 You said World Express provides 16 your company? 17 A. World Express. It is warehouse is 18 providing my company with the loading 19 services. 20 Q. But I thought we were, and correct 21 me if I am wrong, I thought MTL had its own 22 loading department? 23 A. No, loading it means the 24 documentation department. We do loading only 25 on a piece of paper. It is inside of the	1 A. SOLOVYEVA 2 Express and Connections, what is it, like next 3 door to MTL? 4 A. It's around the block. The other 5 side of the building we have, he has a lot and 6 all cargo from his customers are getting 7 accepted on this lot. 8 Q. Okay. 9 A. And then on the right side of this 10 lot, he has loading docks and he has, I don't 11 know how many teams of loaders. So they are 12 storing, they are accepting cargo, and then 13 they are loading this cargo inside of the 14 container. 15 Q. So I see here some invoices that 16 were produced to us from World Express and 17 Connections to MTL Transport Logistics Inc. 18 for the storage of the Formula boat at issue, 19 and the other two, the Chaparral and the 20 Monterey. 21 Can you explain how those invoices 22 came about. When did MTL receive those 23 invoices? 24 A. Ma'am, I'm not the accounting 25 department. I have three people working in

Page 37 1 A. SOLOVYEVA 2 the accounting department and all invoices, 3 and invoices from the vendors and invoices 4 from – to the customers, my company 5 customers, they end up in accounting office, 6 and we have account payable, we have account 7 receivable and we have like a little helper. 8 So they receive their own invoices, and 9 whatever invoices they receive, it is their 10 job, their duties to find out for what 11 services and if it is legitimate invoices. 12 And then they have to see if they were paid 13 for the services my company provided. So then 14 they – you see, it is routine accounting 15 work. 16 And since Marine Transport 17 Logistics is one of the customers of World 18 Express and Connection, so World Express and 19 Connection bills MTL every work what they are 20 doing for MTL. For example, they bill us for 21 the loading of every container. They give us 22 free time for the storage of the cargo, and 23 then they charge us for the storages if the 24 cargo is on storage for more than 30 days. 25 And this is basically it.	Page 39 1 A. SOLOVYEVA 2 But for this specific, I cannot 3 tell you because I did not get the money. I 4 did not deposit money into the bank, and you 5 see that I was not involved. I'm not the 6 accountant. 7 Q. I'm confused, because earlier you 8 stated that you signed the checks for MTL. 9 A. I sign the checks for the MTL, but 10 I told you that I'm signing -- do you know how 11 many checks I'm signing every day? 12 It's thousands of checks. My 13 checkbook for 700 checks -- it is not the 14 checkbook. It is preprinted forms -- usually 15 is gone in one month. And you are asking me 16 for something that happened like two years or 17 three years ago. 18 Q. Marine Transport Logistics also 19 issued their own invoices to Royal Finance 20 Group in this case. 21 A. Yes, because if Marine issued this 22 invoice, it is routine work inside of my 23 office. 24 So then the Royal Finance in this 25 transaction was like a broker or like
Page 38 1 A. SOLOVYEVA 2 Q. So the invoices that I'm talking 3 about, does MTL owe any money to World Express 4 and Connection in relation to this, for 5 storing the three boats, the Monterey, the 6 Chaparral and the Formula? 7 A. Well, I cannot say that. I'm not 8 sure if my accounting people paid for all the 9 storages. This, I cannot say you that. 10 Usually they pay because it is 11 working like magic. If the invoice has 30 12 days for the payment, they are not looking at 13 the numbers or something like that. They pay. 14 And they know that, you see, if we would not 15 pay, then World Express will stop loading of 16 the containers for my account. 17 Q. So in this case World Express and 18 Connections says that the total bill for 19 storing the three boats is about \$80,000. 20 Did MTL pay World Express and 21 Connections \$80,000 for the storage? 22 A. Ma'am. I just told you that I 23 cannot state what I -- I don't -- I don't 24 know. Because I told you the routine. 25 Usually, we pays for everything.	Page 40 1 A. SOLOVYEVA 2 sometimes Alex is doing -- I don't know, for a 3 customer, and he was acting on behalf of the 4 customer. So this is -- for this reason all 5 the storage charges is getting passed to the 6 right party, who is responsible for the 7 payment. 8 Q. So why would Royal Finance Group 9 be responsible for any invoicing from Marine 10 Transport Logistics? 11 A. I just explained you why just a 12 second ago. 13 Q. Maybe I didn't understand and 14 that's the point of this deposition is for you 15 to clarify certain facts. 16 So how was Royal Finance Group 17 involved in this transaction with Marine 18 Transport? Was there an agreement between 19 Royal Finance Group that they were going to do 20 certain things for Marine Transport Logistics? 21 A. You see, I cannot say what kind of 22 setup Alex and his company Royal Finance had 23 with Andrey Tretyikov. 24 Q. No, I'm talking about directly -- 25 A. Ma'am, I understand.

Page 41 1 A. SOLOVYEVA 2 MR. VENGROW: Be quiet. Let her 3 finish talking. 4 Go ahead, counsel. 5 Q. I'm asking what relationship and 6 what agreement Royal Finance Group had with 7 Marine Transport Logistics. I'm not talking 8 about anything else, just the two companies, 9 what was the agreement? 10 A. We don't have any agreements. It 11 just, you see, if my company was billed for 12 the storages, I have to pass these charges to 13 the right party. And at that moment the right 14 party was Royal Finance. 15 Q. Why was it the right party to pass 16 on the charges? 17 A. So then because Alex was acting as 18 the intermediate party between Andrey 19 Tretykov and MTL. So this is why we passed 20 it to him. 21 Somebody is supposed to pay those 22 charges. It is not my charges. It is his 23 customers charges. 24 Q. I'm just confused and this is why 25 I'm confused. So Alex's company World Express	Page 43 1 A. SOLOVYEVA 2 another company as well. This is what I'm 3 doing when I need to. I have a different 4 vendors and I'm using different services. Not 5 just Alex. 6 Q. And this is what I want to 7 clarify. 8 What did Royal Finance Group 9 request of Marine Transport Logistics? What 10 was the connection there? 11 A. Ma'am, I just stated you before. 12 Royal Finance -- 13 Q. The reason I'm confused -- and let 14 me explain this; the reason I'm confused, you 15 say Alex. I want you to talk in the sense of, 16 you are talking about Alex as in Royal Finance 17 Group or -- 18 A. I see, I'm sorry. 19 MR. VENGROW: I told you be 20 specific. 21 A. I'm sorry. 22 So Royal Finance -- you see that, 23 I'm not involved in daily routine. 24 My different departments in the 25 company are sending e-mails or invoices. They
Page 42 1 A. SOLOVYEVA 2 and Connections sends MTL an invoice. Then 3 MTL sends an invoice back to another one of 4 Alex's companies which is Royal Finance Group. 5 Can you please clarify that for me. Because, 6 I'm telling you, it looks suspicious. 7 A. I don't know what looks suspicious 8 to you. 9 For example, you have two 10 apartments and each apartment is under a 11 different address and a different company, and 12 if, in fact, you received money from one of 13 your company, and the other company was not 14 paid for the rent, is going to be, look 15 suspicious in front of a judge? I don't think 16 so. 17 Alex has a different type of 18 activities in his life. He has different 19 businesses. And you see that his loading 20 business has nothing to do I believe with his 21 Royal Finance business, and he has, for this 22 reason, he has a different companies. 23 So one of his companies providing 24 my company with the loadings. 25 But I can request the loading from	Page 44 1 A. SOLOVYEVA 2 know how to do it because it is a routine for 3 them on daily basis. 4 If my company was billed for the 5 services, which services was not mentioned or 6 included in a rate quote, or out of the 7 ordinary, so then this, they -- usually, if it 8 is not something like, I don't know, out of 9 this world, and it is normal procedure and we 10 have this on a daily basis when we are getting 11 billed from warehouses, and they have five 12 different locations of the warehouses, 13 different warehouses almost in all -- it is in 14 all ports of the United States. 15 Q. Okay -- 16 A. So they bill me. 17 I'm sorry, ma'am, hold on. Let me 18 finish it. 19 Q. It is not answering my question, 20 and I don't want to waste your time. I'm sure 21 you are paying your lawyer a lot of money to 22 sit here. 23 MR. VENGROW: Counsel -- 24 Q. I would -- 25 MR. VENGROW: Excuse me. She is

Page 45 1 A. SOLOVYEVA 2 still giving her answer as she believes 3 she is responding properly to you. 4 MS. TARASSOVA: That's not what 5 I'm looking for. 6 THE WITNESS: Ma'am, let me 7 finish, please. Let me finish. 8 MR. VENGROW: Be quiet. 9 You asked a question and she is 10 trying to give you an answer. Maybe you 11 believe it is not responsive to your 12 question, but she has a right to give 13 you her full answer, and I think you owe 14 her a courtesy to let her speak, and 15 then you can take that answer and bring 16 it back to what you really want. 17 MS. TARASSOVA: It is going on for 18 quite a long time, and I want to save 19 all the parties money. 20 Let me ask the question. Maybe I 21 wasn't specific enough. 22 Q. The question that I'm asking is 23 what role did Royal Finance Group play 24 specifically in this transaction with MTL? 25 That's it.	Page 47 1 A. SOLOVYEVA 2 you that. Because Andrey -- Andrey Tretyikov 3 is a well-known person, and Andrey Tretyikov 4 was in the contact with the different 5 departments in my company, and he was sending 6 request for the loading himself. 7 So, you see, to tell you what the 8 role was between Andrey Tretyikov and the 9 Royal Finance, I cannot tell you that. 10 Q. That's not what I'm asking. What 11 I'm asking is if MTL was issuing invoices to 12 Royal Finance, there must have been some kind 13 of agreement or relationship. 14 Why, if you are getting requests 15 from Andrey Tretyikov, do you think, why 16 wouldn't you issue the invoice to Andrey 17 Tretyikov instead of Royal Finance Group? 18 That's where I'm confused. 19 A. Because -- 20 MR. VENGROW: You can answer. 21 A. Because Andrey Tretyikov was 22 paying to Royal Finance, and Royal Finance was 23 paying to my company. 24 Q. Was there an agreement, like a 25 written agreement that Royal Finance would owe
Page 46 1 A. SOLOVYEVA 2 What was your agreement? Why 3 would Royal Finance Group owe MTL money? 4 A. Because I believe that it was 5 Royal Finance customer who requested to export 6 and load boat out of United States, and Royal 7 Finance was involved in this chain. 8 So when warehouse -- warehouse is 9 billing my company for storage fees. It is 10 automatically we send these charges to the 11 next chain party, and in this chain it was 12 Royal Finance. And I believe that Royal 13 Finance at this point supposed to, if, of 14 course, the owner of this company wants to, 15 send these charges to his customer. 16 Q. I understand that. So can you 17 answer my question. 18 Am I correct in understanding that 19 Royal Finance had ordered the services from 20 MTL on their client's behalf? 21 A. This, I cannot speak to you if 22 Royal Finance was the company who ordered the 23 services. Most likely, Royal Finance was 24 involved maybe in financing, maybe helping to 25 purchase these boats, maybe -- I cannot say	Page 48 1 A. SOLOVYEVA 2 Marine Transport Logistics money? 3 A. There is no agreement, no. It is 4 common procedure. The customer is overseas 5 and they have no ability to pay for services. 6 So I gave you the sample before. 7 So if your friend or your mother 8 cannot pay for the services my company 9 provided to her, and it happens quite a lot, 10 so then she is asking you to pay for her. 11 I don't know what kind of 12 relationship you have with this person, is it 13 your mother, or you want just to give this as 14 a gift. 15 Q. I understand that Royal Finance 16 may have had some agreements and that you 17 can't answer those questions today because you 18 don't own Royal Finance. You are not an 19 appropriate representative for Royal Finance. 20 What you can answer are questions 21 about MTL's relationship with third parties. 22 What I'm asking you is 23 specifically the transactions, communications, 24 dealings, correspondence, things like that. 25 What did Marine Transport Logistics have with

Page 49 1 A. SOLOVYEVA 2 Royal Finance Group in connection to the 3 transactions that are at issue in this 4 lawsuit? So is it my understanding that you 5 are not sure? 6 A. No, it is not true. I just gave 7 you explanations back and forth. 8 Q. They were not clear. 9 A. I said the same thing from the 10 different angles, and we are going around the 11 same bushes. 12 MR. VENGROW: Why don't you 13 just — 14 THE WITNESS: I'm sorry. 15 MR. VENGROW: Just lower your 16 voice and answer the question. 17 A. I'm sorry. What I told you, 18 ma'am, Andrey Tretyikov was the regional 19 shipper, not Royal Finance. So we have, when 20 we are doing, producing bill of ladings and 21 the shipments, the bill of ladings are always 22 have a regional shipper information. So the 23 regional shipper was Andrey Tretyikov. 24 So in this case when you know who 25 the regional shipper is and who is that	Page 51 1 A. SOLOVYEVA 2 Alex's customer and at that time — you see, 3 that, I don't know what company he was dealing 4 with Alex. So it was his customer and his 5 location was in Jebel Ali. 6 Q. Is he a family friend? 7 A. No. 8 Q. Do you know him personally? 9 A. Well, I know all my customers 10 personally. We speak on Skype. They come to 11 my office. I have to know all my customers. 12 It is my due diligence. 13 Q. Okay. I'm a little bit confused 14 because earlier I thought I heard you say that 15 sometimes you are not even sure who your 16 customers are. 17 A. Because when we are doing routine 18 work, I don't know this specific loading or 19 request from which customer. 20 Q. Okay. I understand. 21 A. Because we have all rates preset. 22 It is all like a standard. 23 Q. I understand what you are saying, 24 and that is the point of this deposition is to 25 clarify, because that may be something you
Page 50 1 A. SOLOVYEVA 2 person, but this person was using Alex — 3 Royal Finance and Alexander Solovyeva as the 4 company he send the money to for the services, 5 and the Royal Finance paid for my company 6 services. And we have all of this recorded, 7 and they paid for the services. It is not 8 like it wasn't paid. 9 So they paid for this specific 10 services my company provided them with, and 11 then when my company received storage fees 12 from the warehouse, it could be not World 13 Express, because Andrey Tretyikov was 14 exporting vehicles and the boats from Miami as 15 well. So then we used a different warehouse. 16 So in that warehouse, if the cargo 17 were stored for more than 30 days, I would 18 still send the invoice from that warehouse, 19 which happens to be in Miami, to Royal 20 Finance. 21 But we all knew that the regional 22 shipper is Andrey Tretyikov. This is the 23 relationship. 24 Q. Who a Andrey Tretyikov? 25 A. Andrey Tretyikov is I believe	Page 52 1 A. SOLOVYEVA 2 were thinking, but I did not know that's what 3 you meant. 4 So you are aware of who your 5 clients are. It is just that you are not sure 6 who specifically the request is coming from at 7 one time or another. Is that right? 8 A. Yes. 9 Q. So there was no written agreement 10 between Marine Transport Logistics and Royal 11 Finance. It was just verbal. 12 A. What was the agreement? What do 13 you mean by agreement? 14 Q. That you were going to Royal 15 Finance Group for certain service in these 16 three transactions and the transactions that 17 involved the Crocuses and Andrey Tretyikov, et 18 cetera? 19 A. If it is out of the ordinary, no. 20 Q. It is just verbal, mostly? 21 A. What verbal? 22 Q. Does Royal Finance, your husband, 23 call you and say, go ahead and invoice my 24 company for services? 25 A. I don't know — I don't do

Page 53 1 A. SOLOVYEVA 2 invoices. I even don't know how to do them. 3 Ma'am, I just told you it is all 4 automatically if we are getting invoiced, so 5 then we pass these invoices to my company, 6 specific department. If bookkeeper received 7 the invoice, bookkeeper is looking in the 8 system and sees who is the company, who is 9 responsible for the payment. So then they 10 just forward these charges to the correct 11 person who is supposed to pay. 12 Q. Yes, I understand that. 13 What I'm asking is the agreement. 14 How do you know to invoice Royal Finance Group 15 and not invoice a company X? That agreement 16 has to be either verbal or in writing. 17 What I'm asking is, was there ever 18 a written agreement, or is it your normal 19 course of business to have it in writing where 20 Royal Finance Group tells you specifically, go 21 ahead and invoice me for any services that you 22 provide for the following shipping? 23 A. Ma'am. I think that you just 24 missed the point when I explained to you. You 25 see, this specific shipment, and it is very	Page 55 1 A. SOLOVYEVA 2 the bill of lading because they are not a 3 regional shippers. It is against the law. 4 So he is the broker between -- 5 Royal Finance, between my company and Mr. 6 Tretyikov. This is what I'm trying to explain 7 to you. 8 So there is no agreement verbally 9 or in writing at all. Royal Finance is acting 10 as a broker. 11 Is it clear? 12 MR. VENGROW: Don't become 13 aggravated. 14 Q. That order from Royal Finance 15 Group, how would it have come into MTL? Would 16 it have been through e-mail, or a phone call? 17 A. Usually it is e-mail. Usually. 18 But sometimes it can happen with 19 the phone call. Not from Alex. Not from the 20 Royal Finance. 21 So what we have, we have companies 22 located in the United States and we have 23 companies or private individuals located 24 overseas. Okay? 25 So, you see, that companies
Page 54 1 A. SOLOVYEVA 2 quite a lot, when a company located in the 3 United States, provide with some services, no 4 matter what. They even can sell an air to the 5 customer, big customer, and this customer is 6 located in Jebel Ali or in Alaska or anywhere 7 else in the world. 8 So the company in the United 9 States, they want to produce some income. And 10 how they can do it? They can produce with the 11 services they have, or they can purchase 12 services his customer needs from a company or 13 the party who have the services. 14 So Royal Finance had a customer 15 overseas. And it is not just one customer he 16 has. The Royal Finance has many different 17 customers. So when Royal Finance needs a 18 service. He orders the service from the 19 correct party. In this case it was my 20 company. 21 So Royal Finance orders from my 22 company, and his shipper, a regional shipper, 23 and it is supposed to be like that on the bill 24 of lading, was Andrey Tretyikov, because the 25 Royal Finance cannot be a regional shipper on	Page 56 1 A. SOLOVYEVA 2 located overseas, they have difficulties to 3 purchase any goods in the United States 4 because they have problems to pay for those 5 goods in United States. For this reason they 6 are asking companies like Royal Finance -- and 7 I have a hundred other companies providing 8 with the services, people and the customers 9 overseas. You see? And they getting income 10 from this. 11 So -- because people overseas, 12 they don't know whom to trust, whom to send 13 the money, who will do the service the best 14 for them. So they are using this kinds of 15 brokers. And it is a very common procedure. 16 Because a lot of time -- a lot of 17 times, even if companies like Mr. Tretyikov 18 had, or his individual, when he is paying for 19 the goods in the United States, even he send 20 the money to United States, it can be 21 rejected. 22 Q. We are going way beyond my 23 question. 24 My question is how do the requests 25 from Royal Finance Group come --

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1 A. SOLOVYEVA 2 A. Let me continue. I understand. 3 So what Andrey Tretyikov was 4 doing, and many different accounts overseas 5 are doing, they are sending -- 6 Q. Let's talk about specifically this 7 case. 8 A. I don't know specifically about 9 this case because I was not involved in 10 e-mails. 11 Q. Okay. So let's pause for a 12 second. And I have a question for -- 13 A. Ma'am, can I finish, please. Let 14 me just finish this a couple of sentences. 15 MS. TARASSOVA: It wouldn't help. 16 Just give me one second. Let the 17 lawyers deal with this. 18 Mr. Vengrow, I have an issue here 19 because this was something that was 20 noticed on the notice of deposition for 21 the corporate rep. It is actually No. 22 4. 23 MR. VENGROW: Okay. She can 24 answer it. 25 What you should have done, quite	1 A. SOLOVYEVA 2 What you should be doing, quite 3 frankly, is providing her with documents 4 specifically what you have and which was 5 sent over to us and ask questions on 6 that. And you are just confusing the 7 matter -- 8 MS. TARASSOVA: I don't have any 9 documents I want to use as an exhibit 10 for this deposition. I'm asking her 11 about No. 4. 12 A. Ma'am, I am trying to explain to 13 you. 14 MR. VENGROW: Be quiet. Please, 15 be quiet. 16 I'm just saying to you she 17 answered that topic as best she could. 18 You may not like the answer, but that's 19 it. 20 MS. TARASSOVA: My problem, and 21 I'm trying to allow you to cure this 22 issue because I don't want to have to 23 file a motion to compel. 24 My problem is that she is saying 25 she is not apprised of the information
Page 58	Page 60
1 A. SOLOVYEVA 2 frankly, is pointed to No. 4 at the 3 beginning of her deposition. 4 And now give your answer, Alla. 5 MS. TARASSOVA: That's not a 6 question. No. 4 is not a question. 7 MR. VENGROW: It is a subject 8 matter. 9 MS. TARASSOVA: It is -- 10 A. But you do not let me finish. 11 MS. TARASSOVA: So my concern, 12 and let me just tell you what my concern 13 is and maybe you can cure that, is right 14 now Ms. Solovyeva is saying she does not 15 know specifically because she wasn't 16 dealing with this. 17 So my question is, has she been 18 apprised of the information for purposes 19 of this deposition of the corporate 20 representative. I'm not asking her as 21 far as her personal knowledge of it. 22 She should have been apprised -- 23 MR. VENGROW: She was. You gave 24 her the subject matter and she answered 25 your subject matter question.	1 A. SOLOVYEVA 2 because she doesn't deal with that 3 department. For purposes of a corporate 4 rep depo, she is supposed to have 5 obtained the information. 6 MR. VENGROW: No, the purpose of 7 this deposition is to talk to these 8 subjects that you brought up. And you 9 ask appropriate questions. 10 Your questions are broad, vague 11 and confusing. They really are without 12 documents. That's a problem we are 13 facing. 14 MS. TARASSOVA: That's fine. If 15 you don't want to take this opportunity 16 to cure, we will just deal with it 17 later. I'm just letting you cure it now 18 and I'm bringing it up and making a good 19 faith effort to bring this up and deal 20 with it now. 21 If you think that her questions or 22 her answers are sufficient enough, then, 23 absolutely, you know best. 24 A. So maybe, can I finish what I was 25 trying to tell you what is the routine? And

Page 61 1 A. SOLOVYEVA 2 it is a usual routine. 3 MS. TARASSOVA: Hold on one 4 second. I'm not sure that we are on the 5 record. 6 Do you want to take a five-minute 7 break really quick? 8 THE WITNESS: No, I don't want to 9 take any break. 10 MS. TARASSOVA: I need a 5-minute 11 break, and so I will be doing that and I 12 will be back in five minutes. 13 (Recess taken.) 14 BY MS. TARASSOVA: 15 Q. Ms. Solovyeva, do you know about 16 any communications that had occurred between 17 Marine Transport Logistics and Royal Finance 18 Group in connection with this case? 19 A. No. 20 Q. Can you talk about the, any 21 correspondence that Marine Transport Logistics 22 would have had with Royal Finance in relation 23 to the matters or the parties at issue in this 24 case? 25 A. No. It's -- If it is between	Page 63 1 A. SOLOVYEVA 2 A. Ma'am, I don't know that. If it 3 was between departments or not, I cannot say 4 that. I was not involved in the e-mails. 5 Q. Who would know that, Ms. 6 Solovyeva? 7 A. The credit department. If the 8 e-mail was sent to somebody in my office, one 9 of the employees, then this person would know 10 that. 11 It is just the routine work. We 12 are receiving e-mails on a daily basis and 13 answer them. 14 Q. My problem that I'm having right 15 now, and I want to put this on the record, is 16 that we served the notice of deposition to 17 Marine Transport Logistics which is your 18 company. 19 A. Um-hmm. 20 Q. Today will be the time that we 21 will be discussing items No. 1 through 16. 22 A. Okay. 23 Q. Your attorney has stated that you 24 are the corporate representative for Marine 25 Transport Logistics and you are prepared to
Page 62 1 A. SOLOVYEVA 2 departments, no. 3 Q. What about any e-mails or anything 4 like that, could they be in existence, you 5 were just not aware of them today? 6 MR. VENGROW: E-mails between who? 7 MS. TARASSOVA: Royal Finance 8 Group and Marine Transport Logistics. 9 A. If it is between departments, then 10 I don't know about this correspondence. It is 11 a normal working routine. 12 Q. I understand. And when you say 13 departments, you are talking about departments 14 within Marine Transport Logistics? 15 A. Exactly. 16 Q. Were there any communications that 17 took place between Marine Transport Logistics 18 and the Crocuses, either the Crocus in Dubai 19 or the Crocus in Florida? 20 A. Excuse me? I didn't hear that. 21 Can you please repeat. 22 Q. Sure. Are there any 23 communications that occurred between Marine 24 Transport Logistics and either Crocus FZE or 25 Crocus LLC?	Page 64 1 A. SOLOVYEVA 2 discuss items 1 through 16 on the notice of 3 deposition. 4 A. I am, but I told you before that 5 Crocus was never my customer and for this 6 reason I was not involved in any e-mails and 7 then, I believe that any of my employees were 8 involved in any e-mails. Nobody heard before 9 about this company. 10 Q. The question is do you know if 11 there are e-mails or have you even looked to 12 see if there are e-mails? That's what I'm 13 asking. 14 A. Ma'am, I didn't see any e-mails 15 between me or my employees and Crocus. I 16 didn't see them. 17 Q. So they do not exist, is that what 18 you are saying? 19 A. I didn't say that. I told you I 20 didn't see them. 21 Q. What do you mean you didn't see 22 them? A person cannot see something, either, 23 one, they didn't look, or, two, they looked, 24 they just couldn't find. 25 Which category do you fit into?

Page 65 1 A. SOLOVYEVA 2 Did you look and you couldn't find, or you 3 just didn't even look? 4 A. My question: Where would I go and 5 look? 6 MR. VENGROW: Don't do that, 7 please. She asks the questions. 8 THE WITNESS: I know, but - 9 MR. VENGROW: Please, just answer 10 the questions as best your ability, and 11 it will make your life a lot easier. 12 A. I have 12 computers and 12 13 employees, and I have - I don't know where to 14 go and where to look, unless I have my own 15 computer and I receive something on my 16 computer. 17 MR. VENGROW: Counsel, do you have 18 any indication that there are e-mails 19 between MTL and Crocus? 20 MS. TARASSOVA: I'm asking her the 21 questions. 22 MR. VENGROW: I'm asking you the 23 question because you are making a lot of 24 this, and it may be a lot about nothing. 25 That's why I'm wondering.	Page 67 1 A. SOLOVYEVA 2 A. Yes. 3 Q. Did they eventually make it to 4 Dubai, the two boats? 5 A. Well, my documentation department 6 was supposed to know that. I guess they did 7 make it if they were sent out. 8 Q. But you are guessing right now. 9 Do you know for sure? 10 A. Yes. 11 MR. VENGROW: Is this, counsel, is 12 this still an issue? I thought that was 13 resolved at an earlier time. 14 MS. TARASSOVA: Let me ask my 15 questions. 16 MR. VENGROW: Well, no, because 17 you are wasting my time now, or my 18 client's time. 19 I don't think there is any issue 20 with regard to when those boats were 21 delivered and where and coming back. 22 You agreed to that and you said that 23 statement at one time. That's why I 24 wondered. 25 If you have a real question, go to
Page 66 1 A. SOLOVYEVA 2 If you have those e-mails, you 3 should at least point them out to us. 4 MS. TARASSOVA: I'm not trying to 5 trick Ms. Solovyeva. I'm simply asking 6 discovery questions, and that is my 7 prerogative. 8 The way that she answered it, is 9 perfectly fine. I'm ready to move on to 10 the next subject. I've got what I need 11 on the record. Thank you. 12 Q. Do you know about the agreement, 13 did Marine Transport Logistics provide 14 transportation for two of the boats, the 15 Chaparral and the Monterey, to Dubai? 16 MR. VENGROW: Answer the question. 17 A. Transportation? 18 What transportation? You mean 19 transportation on the vessel? 20 Q. Correct. 21 A. Yes. 22 Q. So that was what you are saying 23 was ordered by Royal Finance Group that Mr. 24 Tretyikov was the shipper. Is that the 25 transaction you are talking about?	Page 68 1 A. SOLOVYEVA 2 it. 3 Q. Ms. Solovyeva, did the boats make 4 it to Dubai? 5 A. Yes. 6 Q. Were the boats eventually shipped 7 through MTL back to New Jersey from Dubai? 8 MR. VENGROW: What do you mean 9 through MTL? 10 MS. TARASSOVA: Mr. Vengrow, I 11 would really ask you not to comment, and 12 let the witness answer the questions. 13 If she has a question about what I'm 14 asking - 15 MR. VENGROW: Counsel, I'm trying 16 to help you here. 17 You are talking about a maritime 18 transportation, and words are very 19 specific when you are talking about 20 movement of vehicles or cargo back and 21 forth between countries. 22 Q. Can you answer the question, 23 please. 24 A. Ma'am, I didn't understand your 25 question because you see that you are not, I

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1 A. SOLOVYEVA
2 believe, a maritime lawyer, and I'm in this
3 business for 20 years -- over 20 years.
4 So your question is not clear to
5 me. I don't understand it.
6 What do you mean through MTL?
7 MTL is just providing customers
8 with the slot on the vessel because they are
9 not allowed to do the bookings themselves.
10 Q. Right. And that's what I mean.
11 Did MTL provide that for the complainants, to
12 bring the boats back from Dubai to New Jersey?
13 That's it.
14 A. For the complainants?
15 Q. Yes.
16 A. Who is the complainants? What do
17 you mean complainants?
18 MR. VENGROW: Talking about
19 Crocus.
20 A. Crocus?
21 MR. VENGROW: Yes.
22 A. You see, I don't believe that I
23 provided any services for Crocus.
24 Q. You did not provide, MTL did not
25 provide any services to Crocus?

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1 A. SOLOVYEVA
2 A. No.
3 Q. Who did MTL provide services to?
4 A. For the company on record.
5 MR. VENGROW: Bill of lading
6 shipper, counsel. She has answered that
7 about five times now.
8 Q. So you are saying Royal Finance
9 Group --
10 A. Royal Finance Group was not a
11 regional shipper.
12 Q. Mr. Tretyikov was?
13 A. For the regional shipper, yes.
14 Q. And when you are talking about --
15 this is where it is confusing.
16 When you are talking about Mr.
17 Tretyikov, are you talking about a company
18 that he owned or worked for, or are you
19 talking about him as an individual?
20 A. Ma'am --
21 MR. VENGROW: Just answer the
22 question.
23 A. Okay. Ma'am, I believe that he
24 had the company, and if it was a company, then
25 the company was the regional shipper. And the

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1 A. SOLOVYEVA
2 bill of lading was issued on behalf of this
3 company. If he used his own name, then he was
4 the regional shipper.
5 Q. On that bill of lading, what does
6 it say?
7 A. Which bill of lading are you
8 talking about?
9 Q. From Dubai to New Jersey.
10 A. Because you see that overseas
11 every -- let's put it this way. Every country
12 has its own rules, and you, as an individual,
13 are not allowed to send anything out of the
14 country in Dubai. I believe so. Without a
15 proper party.
16 And I believe that the proper
17 party in this case is supposed to be a
18 company. Usually this company is the agent,
19 and it is a proper agent with the agent
20 license overseas. So this agent was with the
21 agent's license overseas, can file
22 electronically shippers export declaration,
23 and then if -- in this case, they can act as
24 the regional shipper when the cargo is coming
25 back.

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1 A. SOLOVYEVA
2 Q. So does MTL assist clients -- say
3 you have a client overseas and they contact
4 MTL and they say I need to ship something from
5 Dubai to New Jersey. Even though MTL may not
6 be the proper agent or party, would MTL be
7 able to assist clients with that?
8 A. MTL is located in the United
9 States and MTL is providing with the space on
10 the vessel, and in order to ship something in
11 or out, you have to use correct parties.
12 Q. And was that party you?
13 A. Well, ma'am, you see it is daily
14 routine and --
15 MR. VENGROW: Do you recall the
16 cargo? Was MTL involved in getting the
17 two boats back from Dubai to New York?
18 If you know.
19 THE WITNESS: I don't, because I
20 don't know if we did the booking or
21 somebody else did the booking.
22 MR. VENGROW: The way you would
23 know would be by looking at the bill of
24 lading when it arrived?
25 THE WITNESS: Yes.

Page 73 1 A. SOLOVYEVA 2 MR. VENGROW: And then you would 3 be able to talk -- 4 THE WITNESS: Yes. 5 MR. VENGROW: Counsel, can you 6 tell her who the bill of lading shipper 7 was and who the bill of lading consignee 8 was. 9 MS. TARASSOVA: No, I'm asking the 10 corporate representative for MTL. 11 A. It is general. 12 MS. TARASSOVA: If she doesn't 13 know, she can put on the record she has 14 no idea. 15 MR. VENGROW: She didn't say that. 16 She is saying if she had the bill of 17 lading, she can answer your question 18 very specifically, and you are not 19 providing it and you have that document. 20 MS. TARASSOVA: I don't have it 21 with me right now, and I'm not trying to 22 hide it. She has access to it, just as 23 I do. 24 MR. VENGROW: Yeah, and we didn't 25 bring any documents with us, and you	Page 75 1 A. SOLOVYEVA 2 in the shipping business. Back and forth. So 3 I'm not even involved in this routine. It's a 4 routine. So we are sending and we are 5 receiving. 6 Q. Okay. 7 A. And we are loading. 8 Q. But, casually, you have not 9 discussed these issues with your husband? 10 A. I didn't have any issues. I was 11 just requested to send something outside of 12 the country, and then I believe that my 13 company was the consignee for the cargo coming 14 from another country. And I have this on a 15 daily basis. 16 So whether my company is the 17 consignee or the agent for the import, my job 18 is to unload the cargo, to act as the proper 19 agent and provide with the unloading and 20 that's it. 21 Q. Have you ever been convicted of a 22 crime? 23 A. No. 24 Q. Have you ever been sued? 25 A. Personally?
Page 74 1 A. SOLOVYEVA 2 didn't send us any documents. 3 So, consequently, if you want to 4 talk about a shipment coming back from 5 Dubai, you should be at least referring 6 to the document. 7 MS. TARASSOVA: Can we go off the 8 record. 9 (Discussion off the record.) 10 MS. TARASSOVA: Let's go back on 11 the record. 12 Q. Ms. Solovyeva, have you and your 13 husband ever talked about the transactions as 14 they were happening? Have you discussed with 15 Mr. Solovyeva about this case? 16 A. Ma'am, I don't understand. 17 Q. Have you and Mr. Solovyeva, your 18 husband, discussed the facts of this case, as 19 they were happening in 2013 and '14, have you 20 ever heard from your husband? Has he ever 21 said anything about Mr. Tretyikov or the 22 Crocuses and Mr. Safonov? Have you guys ever 23 discussed these issues? 24 A. I don't believe so, because I have 25 containers coming back on a weekly basis. I'm	Page 76 1 A. SOLOVYEVA 2 Q. Correct. 3 A. No. 4 Q. You have never been sued? 5 A. I don't remember. I don't recall. 6 Q. Have you ever been named as a 7 party in a lawsuit individually, along with 8 Marine Transport Logistics? 9 A. Yes. 10 Q. How many times? 11 A. I cannot recall that. 12 Q. Is it more than one time? 13 A. I cannot recall that. Maybe one, 14 maybe two times. I don't remember. 15 Q. You have no idea? 16 A. No. 17 MR. VENGROW: And she wouldn't, 18 because, counsel, maybe I will help you 19 out. 20 A. For 20 years. 21 MR. VENGROW: If you want to put a 22 written request. We don't understand 23 the relevancy of that line of 24 questioning, but out of deference to 25 you, if you put your request in writing

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1 A. SOLOVYEVA
2 beyond being specific, we will do our
3 best to respond to it.
4 We have been representing them for
5 quite a while.
6 MS. TARASSOVA: The point of the
7 deposition is for her to give me
8 realtime answers.
9 That's fine. I will take her
10 answer for what it is. It is on the
11 record.
12 MR. VENGROW: You have an
13 opportunity, we will give you the docket
14 numbers and the case numbers.
15 What's the time frame? That's
16 what I need.
17 Q. I'm talking about for the last ten
18 years, Ms. Solovyeva, how many times have you
19 been sued?
20 MR. VENGROW: Ten years? That's a
21 long time.
22 A. Maybe three, maybe four times.
23 Personally.
24 MR. VENGROW: You. Personally.
25 A. I don't know. MTL. With the MTL.

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1 A. SOLOVYEVA
2 MR. VENGROW: That's what I
3 thought. We will provide -- just put it
4 in writing.
5 MS. TARASSOVA: Let me ask the
6 questions, Mr. Vengrow.
7 I will file my requests if I need
8 to. Let me ask my questions in the
9 deposition.
10 Q. Ms. Solovyeva, so you said maybe
11 how many times?
12 MR. VENGROW: She answered your
13 question.
14 A. With the MTL, as a part of the
15 MTL.
16 Q. So they are two separate things
17 I'm asking.
18 Number one, the first question I
19 asked was, how many times have you been sued
20 as an individual where your name, Alla
21 Solovyeva, was in the complaint?
22 A. But if my name was just -- just my
23 name? Or my name and the company?
24 Q. Your name anywhere, whether it
25 stands by itself or it stands --

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1 A. SOLOVYEVA
2 A. I never was sued as Alla Solovyeva
3 without the company.
4 (Lost video conference
5 transmission.)
6 BY MS. TARASSOVA:
7 Q. Was the company Marine Transport
8 Logistics ever sued?
9 A. Yes.
10 Q. How many times?
11 A. Ma'am, I cannot recall that, how
12 many times.
13 Q. What was it sued for?
14 A. For --
15 MR. VENGROW: Excuse me. You are
16 asking legal questions right now. I
17 suggest to you, if you want, you give us
18 a time frame, we will come back and give
19 you the name of the case.
20 Can you hear me, because your
21 picture is not there? Your photo.
22 MS. TARASSOVA: I can hear you.
23 I'm sorry. I'm nodding, but I guess you
24 can't see that.
25 MR. VENGROW: We will give you the

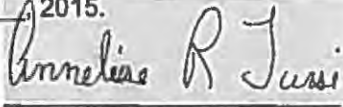
Page 80

1 A. SOLOVYEVA
2 names of the cases and the docket
3 numbers, but they are all
4 maritime-related.
5 MS. TARASSOVA: I'm sorry, what?
6 MR. VENGROW: They are all
7 maritime-related.
8 Q. Ms. Solovyeva, had Marine
9 Transport Logistics ever been sued in a
10 non-maritime capacity?
11 A. Small claim court?
12 Q. No. In any court, not related to
13 maritime law.
14 A. No.
15 MS. TARASSOVA: I don't have any
16 more questions. So if you have any
17 questions, Mr. Vengrow.
18 MR. VENGROW: No.
19 MS. TARASSOVA: You said no?
20 MR. VENGROW: Yes. The answer is
21 no.
22 MS. TARASSOVA: Okay. Thank you.
23 That's all I guess.
24 Is there anyone else that is a
25 corporate representative, or is that it

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1 A. SOLOVYEVA
2 for today?
3 MR. VENGROW: That's it, in
4 compliance with your notice of
5 deposition.
6 MS. TARASSOVA: Okay.
7 MR. VENGROW: I would like to
8 order a transcript of this.
9 (Time noted: 12:41 p.m.)
10
11
12 ALLA SOLOVYEVA
13
14 Subscribed and sworn to before me
15 this ____ day of _____, 2015.
16
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23
24
25

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1
2 CERTIFICATE
3 STATE OF NEW YORK)
4 : ss.
5 COUNTY OF NEW YORK)
6
7 I, ANNELIESE R. TURSI, a
8 Registered Professional Reporter and Notary
9 Public within and for the State of New York,
10 do hereby certify:
11 That the witness whose deposition
12 is hereinbefore set forth, was duly sworn by
13 me and that such deposition is a true record
14 of the testimony given by the witness.
15 I further certify that I am not
16 related to any of the parties to this action
17 by blood or marriage, and that I am in no way
18 interested in the outcome of this matter.
19 IN WITNESS WHEREOF, I have
20 hereunto set my hand this ____ day of
21 _____, 2015.
22 
23 ANNELIESE R. TURSI, RPR
24
25

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1
2 DEPOSITION ERRATA SHEET
3
4 Esquire Deposition Assignment No. JD243957
5 Case Caption: Crocus v. MTL
6
7 DECLARATION UNDER PENALTY OF PERJURY
8 I declare under penalty of perjury that
9 I have read the entire transcript of my
10 deposition taken in the captioned matter or
11 the same has been read to me, and the same is
12 true and accurate, save and except for changes
13 and/or corrections, if any, as indicated by me
14 on the DEPOSITION ERRATA SHEET hereof, with
15 the understanding that I offer these changes
16 as if still under oath.
17 Signed on the ____ day of
18 _____, 20____
19
20 ALLA SOLOVYEVA
21
22
23
24
25

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2 DEPOSITION ERRATA SHEET
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24 SIGNATURE: _____ DATE: _____
25 ALLA SOLOVYEVA

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24	SIGNATURE: _____ DATE: _____
25	ALLA SOLOVYEVA

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2	November 19, 2015
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5	I N D E X
6	EXAM BY PAGE
7	Ms. Tarassova 4
8	
9	E X H I B I T S
10	FOR IDENTIFICATION PAGE
11	(None marked.)
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Page 1	Page 3
1 2 FEDERAL MARITIME COMMISSION 3 DOCKET NO.: 15-04 4 -----X 5 CROCUS INVESTMENTS, LLC AND CROCUS, PZE 6 Complainants 7 v. 8 MARINE TRANSPORT LOGISTICS, INC. AND ALEKSANDR 9 SOLOVYEV a/k/a ROYAL FINANCE GROUP INC. 10 Respondents 11 -----X 12 1384 Broadway 13 New York, New York 10018 14 November 20, 2015 15 10:13 a.m. 16 17 EXAMINATION BEFORE TRIAL of ALEKSANDR 18 SOLOVYEV, the Defendant in the above-entitled 19 action, taken on behalf of the Plaintiffs, held 20 at the above time and place, and taken before 21 Dorene Glover, a reporter and Notary Public 22 within and for the State of New York. 23 24 25	1 IT IS HEREBY STIPULATED AND AGREED by and 2 between the attorneys for the respective 3 parties herein, and in compliance with Rule 221 4 of the Uniform Rules for the Trial Courts: 5 THAT the parties recognize the provision of 6 Rule 3115 subdivisions (b), (c), and/or (d). 7 All objections made at a deposition shall be 8 noted by the officer before whom the deposition 9 is taken, and the answer shall be given and the 10 deposition shall proceed subject to the 11 objections and to the right of a person to 12 apply for appropriate relief pursuant to 13 Article 31 of the CPLR. 14 THAT every objection raised during a 15 deposition shall be stated succinctly and 16 framed so as not to suggest an answer to the 17 deponent and, at the request of the questioning 18 attorney, shall include a clear statement as to 19 any defect in form or other basis of error or 20 irregularity. Except to the extent permitted 21 by CPLR Rule 3115 or by this rule, during the 22 course of the examination persons in attendance 23 shall not make statements or comments that 24 interfere with the questioning. 25
Page 2	Page 4
1 2 A P P E A R A N C E S: 3 4 THE LAW OFFICE OF LOUIZA TARASSOVA, P.A. 5 Attorneys for Complainants 6 1420 Lake Baldwin Lane 7 Orlando, Florida 32814 8 BY: LOUIZA TARASSOVA, ESQ. 9 10 CICHANOWICZ, CALLAN, KEANE, VENGROW & TEXTOR, 11 LLP. 12 Attorneys for Respondents 13 61 Broadway 14 New York, New York 10006 15 BY: ERIC CHANG, ESQ. 16 17 18 19 20 21 22 23 24 25	1 2 THAT a deponent shall answer all questions 3 at a deposition, except (i) to preserve a 4 privilege or right of confidentiality, (ii) to 5 enforce a limitation set forth in an order of a 6 court, or (iii) when the question is plainly 7 improper and would, if answered, cause 8 significant prejudice to any person. An 9 attorney shall not direct a deponent not to 10 answer except as provided in CPLR Rule 3115 or 11 this subdivision. Any refusal to answer or 12 direction not to answer shall be accompanied by 13 a succinct and clear statement of the basis 14 therefore. If the deponent does not answer a 15 question, the examining party shall have the 16 right to complete the remainder of the 17 deposition. 18 THAT an attorney shall not interrupt the 19 deposition for the purpose of communicating 20 with the deponent unless all parties consent or 21 the communication is made for the purpose of 22 determining whether the question should not be 23 answered on the grounds set forth in section 24 221.2 of these rules and, in such event, the 25 reason for the communication shall be state for

Page 5	Page 7
1 2 the record succinctly and clearly. 3 THAT failure to object to any question or to 4 move to strike and testimony at this 5 examination shall not be a bar or waiver to 6 make such objection or motion at the time of 7 the trial of this action, and is hereby 8 reserved; and 9 THAT this examination may be signed and 10 sworn to by the witness examined herein before 11 any Notary Public, but the failure to do so or 12 to return the original of the examination to 13 the attorney on whose behalf the examination is 14 taken shall not be deemed a waiver of the 15 rights provided by Rules 3116 and 3117 of the 16 CPLR, and shall be controlled thereby, and 17 THAT certification and filing of the 18 original of this examination are waived; and 19 THAT the questioning attorney shall provide 20 counsel for the witness examined herein with a 21 copy of this examination at no charge. 22 23 24 25	1 SOLOVYEV 2 a range between one and five, five and ten, ten 3 to 15; how many would you say? 4 A. Two. 5 Q. What were those cases? 6 A. I don't remember. 7 Q. Do you know how long ago they were? 8 A. Ten years ago. 9 Q. I am sure at that time they 10 explained the ground rules to you but I'm going 11 to remind you about the ground rules of the 12 deposition today again. 13 I am going to assume that you 14 understood my question unless you tell me that 15 you did not. And ask me to rephrase it or 16 restate it; do you understand? 17 A. Understand. 18 Q. So sometimes lawyer tend to want to 19 get their thoughts out and it don't come out as 20 well as we have them in our minds. Stop me and 21 say can you rephrase that, I don't understand 22 and I'll be happy to do that, okay. 23 A. Yes. 24 Q. Answer just like you would if the 25 judge was here. Everything is being recorded
Page 6	Page 8
1 2 ALEKSANDR SOLOVYEV, 3 the witness herein, having first been duly 4 sworn 5 by a Notary Public of the State of New York, 6 was 7 examined and testified as follows: 8 EXAMINATION BY 9 MS. TARASSOVA: 10 Q. Please state your name for the 11 record. 12 A. Aleksandr Solovyev. 13 Q. Please state your address. 14 A. 2820 Ocean Parkway, Brooklyn, New 15 York 11223. 16 Q. Good morning, Mr. Solovyev. Can 17 you hear me well? 18 A. Good morning, yes. 19 Q. Have you ever been to a deposition 20 before? 21 A. Yes. 22 Q. How many times would you say? 23 A. Don't remember. 24 Q. Do you know approximately? I'm not 25 asking for a specific number. I'm looking for	1 SOLOVYEV 2 and it will be used in a hearing at a later 3 time. So if you truly do not remember then go 4 ahead and state so, but remember if you 5 suddenly remember or recall facts at a hearing 6 or at a trial, it will be basically used 7 against you; do you understand that? 8 A. Yes. 9 Q. Also, and you're doing a very good 10 job but I want to remind you to give verbal 11 responses. Sometime we tend to nod shakes our 12 heads when we agree or disagree and I do want 13 you to say yes or no; do you understand that? 14 A. Yes. 15 Q. I see that you are on your phone 16 right now; what are you doing? 17 A. Giving constructions. 18 Q. I would ask that you pay complete 19 and full attention today to the deposition. It 20 is very important that you are completely 21 participating in this because like I said, 22 everything's being recorded and if you give a 23 wrong answer, if you're distracted, it will be 24 used against you; do you understand that? 25 A. Yes.

Page 9 1 SOLOVYEV 2 MR. CHANG: Louiza, if he gets a 3 business phone call and he needs to have 4 quick break, can we just let you know 5 and you'll stop questioning. Obviously 6 if there's a pending question, we'll 7 have him answer before he leaves. I 8 think the reason he's on his phone is 9 because he getting calls almost nonstop 10 throughout the day for work. 11 MS. TARASSOVA: Okay, Eric, that's 12 fine. 13 Q. As you know from doing previous 14 depositions, in your career, breaks are totally 15 fine but when you're talking about constant 16 phone calls, that's not going to work and so 17 that brings me to my next question: Mr. 18 Solovyev, is there anything that may be 19 distracting you today in preventing you from 20 being able to have participate fully in this 21 deposition? 22 A. No. 23 Q. So you're prepared to do this 24 deposition? You're going to be fully focused; 25 is that correct?	Page 11 1 SOLOVYEV 2 Q. Okay, perfect. 3 You mentioned that -- well, let's 4 start from the beginning: What is your current 5 home address? 6 A. 2820 Ocean Parkway. 7 Q. Okay, what state is that in? 8 A. New York. Brooklyn, New York. 9 Q. And how long have you lived at that 10 address? 11 A. Three years. 12 Q. And where did you live prior to 13 that address? 14 A. I don't remember. It was the same 15 building. I moved to a new apartment. I don't 16 remember what building number it was. I don't 17 remember now. The same area. 18 Q. It was also at 2820 that building? 19 A. No, different numbers. 20 Q. Have you ever -- are you married? 21 A. Separated. 22 Q. But legally you are married right 23 now? 24 A. No, separated. 25 Q. Have you gotten a divorce?
Page 10 1 SOLOVYEV 2 A. I am fully focused. 3 Q. Okay, perfect. And throughout the 4 deposition, you're attorney may be objecting to 5 certain questions. That's absolutely normal go 6 ahead and stop your answer. Let us put what we 7 need to put on the record and then proceed to 8 answer once you've been instructed to do so, 9 okay. 10 A. Okay. 11 Q. And finally, are you on any type of 12 medication today that would prevent you from 13 remembering certain facts? 14 A. Not yet. 15 Q. What do you mean not yet? Do you 16 think you might need to take some medication 17 later today that might prevent you from 18 remembering certain facts? 19 A. Let's see which say you're going 20 today. Maybe you're going to make it crazier 21 and I will need some Tylenol. 22 Q. Do you think Tylenol might prevent 23 you from remembering? 24 A. I don't know yet. Let's start 25 working.	Page 12 1 SOLOVYEV 2 A. No. 3 Q. And what is the name of your spouse 4 who you're separated from? 5 A. Allah Solovyev. 6 Q. What address does she live at? 7 A. 420 Jensen Street, Staten Island, 8 New York. 9 Q. Have you ever lived at that 10 address? 11 A. No. 12 Q. So you never lived at that address 13 with your wife? 14 A. No. 15 Q. What is your cellphone number? 16 MR. CHANG: Is this something he 17 can check? 18 MS. TARASSOVA: Absolutely. The 19 other rule that I forgot, this is not a 20 quiz. If you do need to refer to 21 something in your phone or if there's 22 some documents, go ahead and do that. 23 That's not a problem. I want you to 24 give accurate answers. 25 A. 646-725-1355.

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1 SOLOVYEV
2 Q. Have you ever had a cellphone
3 number that was 646-725-1335?
4 A. Yes, this is my number, yes.
5 Q. 1335?
6 A. Yes.
7 Q. Is that a different cellphone
8 number from the one you just gave me that ends
9 with 1355?
10 A. Did I?
11 Q. The phone number you just gave me
12 was 646-725-1355?
13 A. No, 1335.
14 Q. How long did you have the cellphone
15 number?
16 A. Way too long.
17 Q. Pretty long. How much --
18 approximately how many years would you say?
19 A. Five years.
20 Q. And did you use the cellphone
21 number throughout the time that the dispute is
22 about? This case -- it's from the transactions
23 happened between 2013 and 2014, did you use
24 that cellphone number at the time?
25 A. Yes.

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1 SOLOVYEV
2 Q. And did you have any other
3 cellphone numbers that you used at the time?
4 A. Yes.
5 Q. And what was the number for that?
6 A. 201-467-5205.
7 Q. Did you use the cellphone number
8 during the time that the transactions occurred?
9 A. Yes.
10 Q. And did you have any other
11 cellphone in the United States of Americas
12 besides those two that you gave me?
13 A. No.
14 Q. Did you have an office number that
15 you used?
16 A. Yes.
17 Q. And how many office numbers did you
18 have at the time?
19 A. No, no, no, sorry, no.
20 Q. No landline?
21 A. No landline.
22 Q. And did you have an e-mail address
23 that you used during the transactions?
24 A. Yes.
25 Q. How many e-mail addresses did you

Page 15

1 SOLOVYEV
2 have?
3 MR. CHANG: During the 2013 or 2014
4 period?
5 MS. TARASSOVA: Correct, yes.
6 A. It was two e-mails.
7 Q. What is the first e-mail address?
8 A. Worldexpress2010@gmail.com.
9 Q. And what was the next e-mail
10 address?
11 A. Alex -- no, no, sorry.
12 MTLworld@MTLworld.com.
13 Q. Those were the only e-mail
14 addresses that you used during the transaction
15 period?
16 A. Yes.
17 Q. And I just want to clarify, when I
18 say transaction period I'm talking about the
19 transactions between the complainants and the
20 respondents, you know what I'm talking about
21 right the issues that are in the lawsuit?
22 A. No.
23 Q. No what?
24 A. Means I never had any deals with
25 your plaintiff.

Page 16

1 SOLOVYEV
2 Q. I understand.
3 So let's clarify because going
4 forward at some point we identify the parties
5 and the characters in this story correctly, so
6 tell me who you thought or who you had dealings
7 with?
8 A. About what?
9 Q. With the transactions at issue,
10 with this issue?
11 A. The boat.
12 Q. The shipping the buys everything?
13 A. Andre Trejaykov, T-R-E-J-A-Y-K-O-V,
14 and the company Middle Asia in Dubai.
15 Q. Is it Middle East Asia Alpha?
16 A. Yes, Middle East Asia Alpha.
17 Q. Have you ever had dealings with Mr.
18 Aleksandr Safonov?
19 MR. CHANG: Are you asking about
20 before this case?
21 MS. TARASSOVA: No, during the
22 transactions. We're trying to identify
23 the people involved in these
24 transactions so that I'm, you know,
25 properly asking the questions and it's

Page 17	Page 19
1 SOLOVYEV 2 not confusing. 3 Q. Mr. Solovyev, have you ever in 4 these transactions dealt with Mr. Safonov? 5 A. Couple of times. 6 Q. Have you ever had dealings with 7 Crocus FZE the Dubai company? 8 A. No, never. 9 Q. Your company's never received any 10 money from Crocus FZE? 11 A. Crocus was sending money as far as 12 I remember from a Miami account. He got 13 offshore in Miami. He was trying to find money 14 in Michigan. 15 Q. So you're saying that any 16 transportations that would have been between 17 your companies and Crocus it would have been 18 the Crocus that's registered in Florida? 19 A. Yes. 20 Q. And had your company's ever issued 21 any invoices to Crocus FZE the Dubai company? 22 A. I don't remember. 23 Q. Is it possible or no? 24 A. I don't remember. 25 Q. What is your highest level of	1 SOLOVYEV 2 Q. And who are you employed by? 3 A. World Express. 4 Q. And what do you mean World Express 5 in connection? 6 A. It's what I meant. 7 Q. Can you give me the physical 8 address for that business? 9 A. 63 New Hook Road, Bayonne, New 10 Jersey 07002. 11 Q. What state is it incorporated in? 12 A. New Jersey. 13 Q. What year was it incorporated in? 14 A. Around 2007. 15 Q. And does the company hold any 16 licenses? 17 A. No. 18 Q. It does not an FMC license? And I 19 see you looking at your attorney. Are you 20 unable to answer that question? 21 MR. CHANG: If you can answer the 22 question, if you don't know the answer 23 or you don't understand the question -- 24 A. No, it's what -- I don't remember. 25 Q. You don't remember if your company
Page 18	Page 20
1 SOLOVYEV 2 education? 3 A. College in Moscow Russia. 4 Q. What did you major in? 5 A. Professional musician. 6 Q. Did you attend any colleges or take 7 any college courses in the United States? 8 A. No. 9 Q. Do you hold any degrees? 10 A. No. 11 Q. And do you hold any degrees from 12 Russia? 13 A. Yes. 14 Q. What degree? 15 A. Bachelor degree. 16 Q. Do you hold any professional 17 licenses? 18 A. Where? 19 Q. In the United States. 20 A. No. 21 Q. Do you hold any professional 22 licenses anywhere else in the world? 23 A. No. 24 Q. Are you currently employed? 25 A. Yes.	1 SOLOVYEV 2 World Express in connection has a license from 3 the Federal Maritime Commission? 4 A. I don't remember. Maybe yes, maybe 5 not. 6 Q. 'Cause I found online that the 7 company actually applied for one in 2009 and 8 was issue an FMC license number? 9 A. If you have it, we can use it. 10 Q. What was that? 11 A. I don't remember because we don't 12 use it for -- since whatever you said, 2009. 13 Q. Can you -- so then can you explain 14 what the business does? What is it in the 15 business of doing World Express in connection? 16 A. Warehousing business. 17 Q. By that, what do you mean 18 specifically? 19 A. Warehousing means warehousing 20 whatever is connected. Cargo into the house 21 and getting out of your houses means their 22 housing business. 23 Q. So you hold goods for who? Do you 24 hold goods for like other businesses? 25 A. For other businesses.

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1 SOLOVYEV
2 Q. Why did you apply for an FMC
3 license? Were you going to do some shipping
4 internationally?
5 A. I don't remember why.
6 Q. Did you own the business?
7 A. I own the business.
8 Q. Does anyone else own the business
9 with you?
10 A. Maybe, yes.
11 Q. You say maybe. Why maybe?
12 A. Because I don't remember. It
13 was -- it stopped a long time ago. If I
14 know -- I would be prepared, right now I'm not
15 prepared, so, I'm answering maybe.
16 Q. And where would you go to find this
17 information?
18 A. In the World Express files.
19 Q. And where are those files held?
20 A. At the same address what I just
21 remained (sic) to you 63 New Hook Road in our
22 archive specific place where we keep up all the
23 documentation which is required by the
24 government during the last seven years. We
25 call it the archive for World Express.

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1 SOLOVYEV
2 Q. Does World Express have any
3 employees?
4 A. Yes.
5 Q. How many employees does that have?
6 A. Four.
7 Q. And who are those employees?
8 A. Workers, warehouse workers.
9 Q. Can you explain what they do? They
10 all do the same job?
11 A. All they do is the same job.
12 Q. And what is that job?
13 A. Work in the warehouse, unloading,
14 packing and loading cargo.
15 Q. Does anyone work in the office?
16 A. Accounting, accountant one,
17 accountant work in the office.
18 Q. Is that one in addition to the four
19 warehouse workers?
20 A. No, it's including four workers.
21 Q. So you have three warehouse
22 employees and one office employee that's an
23 accountant?
24 A. Yes.
25 Q. And who handles all the paperwork

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1 SOLOVYEV
2 on behalf of the company; is it your accountant
3 or is it you?
4 A. Me.
5 Q. So are you the one that signs
6 documents on behalf of the company?
7 A. Yes.
8 Q. And are you the one that stores
9 documents in the archives for World Express?
10 A. Yes.
11 Q. Are you employed by any other
12 employer?
13 A. No.
14 Q. What about your company called
15 World Finance Group, LLC?
16 A. It's a self-employee. I'm working
17 as a self-employee.
18 Q. Do you own that company?
19 A. I own this company.
20 Q. What is the address for that
21 company for Royal Finance Group?
22 A. I don't remember. It's a Fort
23 Lauderdale, Miami it's 1040 Seminole Drive.
24 Q. Is that an office building?
25 A. It's a private residence.

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1 SOLOVYEV
2 Q. Whose residence is it?
3 A. I don't remember.
4 Q. Is it your residence?
5 A. It's not my residence. Can I
6 interrupt, please?
7 Q. Sure.
8 (Whereupon, an off-the-record
9 discussion was held.)
10 A. Sorry.
11 MS. TARASSOVA: We are we back on
12 the record.
13 Q. Mr. Solovyev, we were talking about
14 the business address for Royal Finance Group.
15 You were telling me it was a private residence
16 but you don't remember who it belongs to. The
17 last question I asked you was is it your
18 residence?
19 A. No.
20 Q. Is it a family member's residence?
21 A. Yes.
22 Q. Why don't you remember who it
23 belongs to?
24 A. It's not important.
25 Q. Are you just refusing to answer

Page 25	Page 27
1 SOLOVYEV 2 that question? 3 A. No, it has nothing to do with this 4 your plaintiff about whatever his request is. 5 Q. I don't understand that. I get to 6 ask a wide range of questions. That is 7 something that my client's have a right to do. 8 If your attorney states the question is 9 inappropriate, he may object. At this point 10 your attorney has not objected. I would 11 instruct you to go ahead and answer that 12 question. 13 A. I ask for you clearly what I know. 14 The rest, I don't remember. 15 Q. You have no idea who this private 16 residence belongs to other than it's a family 17 member? 18 A. Yes. 19 Q. Does the business Royal Finance 20 Group have any employees? 21 A. No. 22 Q. Are you an employee of the 23 business? 24 A. Yes. 25 Q. So it has one employee which is	1 SOLOVYEV 2 A. International business which 3 required help with buying and selling some 4 merchandise, rules and regulations in the 5 U.S.A. for wholesalers or retailers, support 6 and knowledge of working procedures. It was 7 banks, it was a legal entities with lawyers, 8 and some other stuff. 9 Q. And when did those businesses 10 begin? 11 A. This business began three years 12 ago. 13 Q. And how are you qualified to give 14 such consulting information to clients? Do you 15 have some kind of a specialize knowledge or 16 some kind of experience that would allow you to 17 be able to consult clients on the things you 18 described? 19 A. Yes. 20 Q. Can you explain what that expertise 21 or knowledge is? 22 A. In my experience of 25 years doing 23 international business is worldwide activities. 24 Q. And which companies was that 25 through? I assume they're through your own
Page 26	Page 28
1 SOLOVYEV 2 you; is that correct? 3 A. Yes. 4 Q. What does Royal Finance Group do? 5 A. Consulting business. 6 Q. What does - what areas does it 7 consult in? 8 A. International transactions. 9 Q. Can you describe that what you do 10 you go to a different business clients you talk 11 to them about international transactions? 12 A. Yes, one second. 13 MS. TARASSOVA: Okay. 14 (Whereupon, an off-the-record 15 discussion was held.) 16 MS. TARASSOVA: Let the record 17 reflect this is the deponent's second 18 interruption with a phone call. I just 19 want to put that on the record. It's 20 been in the last ten minutes. 21 MR. CHANG: That's fine. 22 Q. You were telling me about the 23 nature of the business. Can you explain what 24 types of clients the business has, the Royal 25 Finance Group?	1 SOLOVYEV 2 companies. You tell me what does your 25 years 3 of experience, what does that entail? 4 A. It entails nothing. It just 5 entails that I was logging in international 6 procedure and learning how to do it for many 7 years. It's my own knowledge. 8 Q. Were you employed by some companies 9 in the last 25 years or did you own your own 10 companies? 11 A. No, from the books and internet. 12 Q. You learned from books and internet 13 you said you know you have expertise or 14 knowledge from the last 25 years of doing 15 international business? 16 A. Absolutely right. Doing 17 international business. 18 Q. So how were you doing it? Were you 19 working, were you employed for a company or did 20 you have your own company? 21 A. I had my own companies overseas. 22 Q. Did you - let's talk about another 23 business that you own currently. Car express 24 and import; do you own that business? 25 A. Yes, I own that business.

Page 29 1 SOLOVYEV 2 Q. And what is the address for that 3 business? 4 A. 333 Avenue X, second floor, 5 Brooklyn, New York 11223. 6 Q. Is that an office building? 7 A. It's an office building. 8 Q. What is the phone number for this 9 business? 10 A. 646-725-1335. 11 Q. Is that your cellphone number? 12 A. It's a company number, yeah, 13 company, business number, yeah. 14 Q. Does the business have a fax 15 number? 16 A. No. 17 Q. It does not? 18 A. Does not. 19 Q. Does the business have a website? 20 A. Yes. 21 Q. Is there a fax number listed on 22 that website? 23 A. I don't remember the fax number. I 24 don't remember. I never use a fax. 25 Q. So if there was a fax number listed	Page 31 1 SOLOVYEV 2 very distracted today. He has 3 interrupted the deposition twice to pick 4 up his phone. He's looking at his phone 5 right now, he cannot describe to me what 6 he's doing that is relevant to this 7 deposition. So I'm a little bit 8 concerned about how this is going. Do 9 we need to reschedule this deposition in 10 order for us to have him focused and 11 attentive? 12 MR. CHANG: Do you want this on the 13 record? 14 MS. TARASSOVA: Yeah, I do. I want 15 it on the record as far as what your 16 response is to this? 17 MR. CHANG: Can you continue 18 without your cellphone for the rest of 19 the deposition? 20 THE WITNESS: No, I have to. I 21 have nothing to do. There is no 22 interruptions. 23 MR. CHANG: Can you put it away for 24 the next hour. Can I take the phone for 25 the next hour? Otherwise, we have to
Page 30 1 SOLOVYEV 2 on the website, you're saying that you would 3 know about it? 4 A. I would know about it. 5 Q. So how do you reconcile the fact 6 that on the website which -- tell me what the 7 website is so that we have that on the record. 8 What is the domain for this business? 9 A. Carexpress@gmail.com. 10 Q. What is the domain address for the 11 website? 12 A. Carexpress.org. 13 Q. What about car express.U.S.? 14 A. It's the same. 15 Q. Are you looking, are you checking 16 that on the phone right now? 17 A. No. 18 Q. Are you texting on the phone right 19 now? 20 A. No. 21 MS. TARASSOVA: Eric? 22 MR. CHANG: Yes. 23 MS. TARASSOVA: I'm going to have 24 to raise an issue here and I want to put 25 that on the record. Mr. Solovyev is	Page 32 1 SOLOVYEV 2 reschedule, all right. I'm taking away 3 his with cellphone for now. If we have 4 to reschedule then we'll reschedule 5 let's try to get through this today. 6 MS. TARASSOVA: I agree. Thank you 7 so much. 8 Q. Mr. Solovyev, we're talking about 9 the Car Express website. I see here that it 10 has a website called carexpres.U.S.? 11 A. As well, yes. 12 Q. Is that in addition to 13 carexpress.org that you say? 14 A. Yes, it's in addition. 15 Q. Does Car Express -- where is Car 16 Express an import registered? Which state? 17 A. New York. 18 Q. Does it have any employees? 19 A. No. 20 Q. Are you employed with the company? 21 A. Yes. 22 Q. So it has one employee which is 23 you? 24 A. Yes. 25 Q. Do you own any other companies?

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1 SOLOVYEV
2 A. No.
3 Q. What about Leader Transportation,
4 Inc.?
5 A. What about Leader?
6 Q. Do you own that company?
7 A. Yes, I am.
8 Q. Did you forget that you owned it
9 when I just asked you if you own any other
10 companies?
11 A. I didn't forget about it.
12 Q. So you do own the company?
13 A. I do.
14 Q. What's the business address of that
15 company?
16 A. 63 New Hook Road, New Jersey.
17 Q. What is the phone number for the
18 company?
19 A. 201-858-3785.
20 Q. Where is that company registered?
21 A. New Jersey.
22 Q. Does anyone else own the company
23 besides you?
24 A. No.
25 Q. Does it have employees?

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1 SOLOVYEV
2 A. Yes.
3 Q. How many employees?
4 A. Just one.
5 Q. Is that you?
6 A. Two employees; me and another
7 employee, yeah.
8 Q. And who's the other employee?
9 A. Rami Homeine, R-A-M-I.
10 H-O-M-E-I-N-E.
11 Q. And what does Rami do with the
12 company?
13 A. He's dispatcher of the company.
14 Q. What kind of business is it?
15 A. It's a tracking business.
16 Q. Does the company own its own
17 trucks?
18 A. Several of them, yes.
19 Q. And what does it deliver goods? Is
20 that what it does?
21 A. Yes.
22 Q. And do you use Leader
23 Transportation to deliver like vehicles or
24 vessels for your clients?
25 A. No.

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1 SOLOVYEV
2 Q. What kinds of deliveries does
3 Leader Transportation do?
4 A. Cargo from the warehouse.
5 Q. From which warehouse?
6 A. World Express Warehouse.
7 Q. Are you currently employed by
8 Marine Transport Logistics?
9 A. No.
10 Q. Have you ever been employed?
11 A. No.
12 Q. Do you own it?
13 A. No.
14 Q. Have you ever owned it?
15 A. No.
16 Q. Have you ever owned a company
17 called Mosaic Transportation Lines?
18 A. Yes.
19 Q. And what kind of a company was it?
20 A. It was an NVOCC Company.
21 Q. And what years was it active in?
22 When was it working?
23 A. '93, '97.
24 Q. And how did it close down?
25 A. Just closed down.

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1 SOLOVYEV
2 Q. What was the reason for closing it
3 down?
4 A. I don't remember.
5 Q. Were you the only owner of the
6 business?
7 A. Yes.
8 Q. How many employees did it have?
9 A. I don't remember.
10 Q. Did your wife Allah Solovyev ever
11 participate in that business?
12 A. No.
13 Q. Did you own a business called MTL
14 Worldwide Agency, Inc.?
15 A. I can get your question.
16 Q. Did you own a company called MTL
17 Worldwide Agency, Inc.?
18 A. No.
19 Q. Mr. Solovyev, have you ever filed
20 for bankruptcy?
21 A. Yes.
22 Q. What year was that?
23 A. It was ten years ago.
24 Q. Was it in 2008?
25 A. Around that time.

Page 37 1 SOLOVYEV 2 Q. Do you remember submitting 3 information to your attorney in the bankruptcy 4 case about your employment? 5 A. I don't remember. 6 Q. Because if your bankruptcy petition 7 in the schedules attached to it, you report 8 that you were employed by MTL Worldwide Agency? 9 A. So what does it mean? 10 Q. Well, I'm asking you to clarify 11 that. I want to get that information clear. 12 So that if we have to go to trial or a hearing 13 I understand that I'm not mistaken in that 14 information? 15 A. I don't remember. 16 Q. Is it a possibility that you may 17 have owned MTL Worldwide Agency, Inc and worked 18 for it? 19 A. It's a possibility. 20 Q. Do you remember signing a 21 certification in your bankruptcy process that 22 states that your petition is true and accurate? 23 A. Absolutely. 24 Q. Have you ever held yourself out as 25 an agent or a representative for Marine	Page 39 1 SOLOVYEV 2 would use MTL to ship the items to the clients; 3 is that correct? 4 A. It's correct. 5 Q. So how were you an agent for MTL? 6 I don't understand. My understanding is you 7 were just to use MTL for your services or to 8 subcontract the shipping. Did you -- I mean, 9 did your client have an understanding that you 10 were working with MTL or MTL was working for 11 them? 12 A. I didn't get your question. Why is 13 it two different companies? It has to be doing 14 something together when one is a company. It's 15 buying the stuff and another is a shipping -- 16 it's two different entities. 17 Q. I understand that. My question is: 18 Why were you an agent for MTL? How does that 19 play in? 20 A. Because I was trying to promote a 21 company, MTL on a friendly basis because this 22 is a very good company for the shipping and if 23 somebody out of business -- but MTL is still in 24 business, so, it's showing the faces -- the 25 company's still doing something right.
Page 38 1 SOLOVYEV 2 Transport Logistics? 3 A. Yes. 4 Q. In what circumstance did you do 5 that? 6 A. To ship my cars through the money 7 Transport Logistics cars or boats or any 8 commodities which required to be shipped 9 worldwide. 10 Q. And can you explain your 11 understanding of being an agent for MTL? 12 A. Car Express is a wholesale company 13 which was buying cars, boats or any machinery 14 at the USA auto auctions. These requirements 15 to ship it overseas. And the Car Express was 16 using money transport for such purpose. 17 Q. I guess I'm confused. Maybe you 18 can clarify. 19 So you would get a client that -- 20 and tell me if I'm wrong but tell me what you 21 understand -- you would get a client through 22 Car Express, they would order something either 23 to buy a used car or used boat or some kind of 24 machinery? Your business would go to the auto 25 auction and purchase those items and then you	Page 40 1 SOLOVYEV 2 Q. And so in your e-mails, would you 3 write Aleksandr Solovyev agent for Transport 4 Logistics? 5 A. Yes. 6 Q. Do you know Aleksandr? We talked 7 about Aleksandr Safanov earlier? Do you know 8 him? 9 A. No, I don't know him. 10 Q. And what do you mean you don't know 11 him? Have you ever communicated with him? 12 A. What do you mean? Do I know him? 13 Q. Yes, that's what we have to clarify 14 is I guess -- let's start from the beginning: 15 Have you ever heard about him? 16 A. I heard about him. 17 Q. How did you first hear about him? 18 A. I heard about this person as Andre 19 Trejaykov from Middle East Asia and he present 20 me this person. 21 Q. And how do you know Andre 22 Trejaykov? 23 A. I know from Dubai. 24 Q. How do you know him from Dubai? 25 Did you meet in person one day? Do you have

Page 41	Page 43
1 SOLOVYEV 2 common colleagues or friends? 3 A. I meet him in Dubai one day before. 4 Q. And did you have some kind of a 5 business relationship with Mr. Trejaykov? 6 A. Yes we have business before he 7 present me Safonov. It wasn't the business. 8 It was the same corporation. Trejaykov was 9 buying cars from my Car Express and shipping 10 through MTL in 2013. He brought Safonov into 11 this business. 12 Q. So the first time you heard about 13 Mr. Safonov was in 2013? 14 A. Approximately. 15 Q. What was your understanding about 16 the relationship between Mr. Trejaykov and Mr. 17 Safonov? 18 A. I have no idea. He just brought 19 him. That's all they started to buy boat 20 through Car Express. 21 Q. So when Mr. Trejaykov introduced 22 Mr. Safonov to you, you understood that they 23 were working together? 24 A. Yes. 25 Q. Have you ever met Mr. Safonov in	1 SOLOVYEV 2 don't see a problem with it whatsoever. 3 Q. Mr. Solovyev, so the first time you 4 ever met Mr. Safonov in person was when -- 5 after this lawsuit had been filed and he went 6 to mediation, correct? 7 A. Yes. 8 Q. Prior to this lawsuit, you never 9 met Mr. Safonov in person; is that correct? 10 A. Never. 11 Q. Had you ever communicated with Mr. 12 Safonov prior to the lawsuit? 13 A. Yes. 14 Q. And how did you communicate with 15 him? 16 A. It was some communication in the 17 end of 2013 by Skype and some communication in 18 2014 by e-mails. 19 Q. When we're talking about Skype, did 20 you have a Skype username? 21 A. If I communicate through the Skype, 22 so, I have it. 23 Q. And sometimes the question's seem 24 very like basic but I have to set the record 25 that there was a username and then I will ask
Page 42	Page 44
1 SOLOVYEV 2 person? 3 A. Once Russia tone, two weeks ago, 4 they brought him for that. 5 MR. CHANG: Louiza, I think the 6 record's getting a little confusing 7 because you're asking him -- I think 8 he's thinking of as of this day have. 9 Q. No, I completely understand what 10 he's saying. 11 A. But we also have to understand what 12 you're asking's a little bit frustrating for 13 everybody here. Be specific, please. 14 MR. CHANG: Let her finish. I know 15 some of the answers in the record were 16 confused. If you're asking questions 17 predating this days, can I ask you to be 18 specific? 19 MS. TARASSOVA: I mean I think I 20 was specific enough. I asked if he ever 21 met him in person. He said, yes, once, 22 two weeks ago. That's pretty clear. 23 MR. CHANG: If that answers your 24 questions. 25 MS. TARASSOVA: Absolutely. I	1 SOLOVYEV 2 you to get specific and tell me what the 3 username is. So I just want to let you know 4 to -- so you did have a username. What was the 5 username for Skype that you used to communicate 6 with Mr. Safonov? 7 A. Aleksandr.Solovyev. 8 Q. What was the e-mail address that 9 you used to communicate with him? 10 A. It was MTLworld@MTLworld.com. 11 Q. Did you purchase the Shopwell in 12 the Monterey for either Mr. Trejaykov or Mr. 13 Safonov or both of them at some point, the two 14 boats that are -- 15 A. The boat purchase through any 16 company, Car Express from co-part which 17 litigated in Long Island City. 18 Q. And how were you first contacted 19 about buying these two boats? 20 A. I didn't contact them. They 21 contacted me. They were asking me to help them 22 to buy it. 23 Q. And who specifically reached out to 24 you? 25 A. Andre Trejaykov.

Page 45	Page 47
1 SOLOVYEV 2 Q. And do you remember the date? 3 A. No. 4 Q. What year was that? 5 A. Everything is in the files. I 6 don't remember the date but that was 2013. 7 Q. It was in 2014? 8 A. '13. 9 Q. Who paid for the boats? 10 A. Their side paid for the boat, 11 Middle East Asia. 12 Q. So middle East Asia paid for it? 13 A. Yes. 14 Q. Who did they pay to? 15 A. They paid to Car Express. The 16 hold, they paid to Royal Finance Group. 17 Q. Why did they have to pay to Royal 18 Finance Group? 19 A. Because restrictions of the co-part 20 auto auction regarding the payment obligation 21 was given on a three free-day basis. After 22 that, it's a huge amount of penalty which 23 applies their day which we call in professional 24 way, detention demurrage, D-E-M-U-R-R-A-G-E, 25 and the storage charges and the Royal Finance	1 SOLOVYEV 2 Q. So you're saying they went directly 3 to Car Express to get the boats and then they 4 went separately? Did they go separately to 5 World Finance Group to finance the purchase? 6 A. They didn't go to Royal Finance. 7 They were receiving invoices from Royal Finance 8 because they couldn't manage their business in 9 a timely basis and I have to find out the way 10 how you excite -- would support them of doing 11 such transactions in the business of buying and 12 shipping to Dubai. So I was helping my friend 13 Andre to establish this business out of U.S.A. 14 using Car Express and Royal Finance. 15 Q. So you were doing it just, you 16 know, as a friendly favor, make sure that they 17 he had the money to pay for the boats at the 18 car auction and basically you were kind of 19 helping him arrange everything through your 20 companies? 21 A. Correct. 22 Q. And then after Royal Finance Group 23 collected the money, did it pay directly to 24 Co-part or did it have to pay Car Express? 25 A. They paid directly to co-part.
Page 46	Page 48
1 SOLOVYEV 2 was helping them to pay in a timely basis for 3 their orders of whatever they bought and pay in 4 time. And after that, was waiting for the 5 payment from overseas, from Middle Asia and 6 usually it was working in time and they've been 7 paying during seven or 10 days. 8 Q. Why did Royal Finance Group do that 9 for them? Does it collect some kind of a fee 10 or interest? 11 A. Yes. 12 Q. What's the fee for the service? 13 A. From \$200 to \$400 per boat. We 14 call it commission. 15 Q. And when they -- when they first 16 reached out to you in this particular 17 transaction, were they going through your 18 company Royal Finance Group to arrange the 19 purchase and shipping or were they going to 20 your company Car Express or World Express who 21 were they contacting to arrange the purchase in 22 the shipment? 23 A. To arrange the purchase of the 24 equipment. We call it equipment. Let's say it 25 the right way. They contacted to Car Express.	1 SOLOVYEV 2 Q. Who arranged the shipment of the 3 boats to Dubai? 4 A. According to arrangement of the 5 shipping to Dubai customer itself sitting in 6 the Dubai made an arrangement through Car 7 Express and the Car Express is the agent of 8 Money Transport Logistic suggests to the 9 customer in Dubai to go through Money Transport 10 and ship it through Marine Transport. 11 Q. And when you're talking about them 12 going to Car Express which is an agent for MTL, 13 do you mean that they e-mailed you at your 14 address at MTLworld.com; is that how it 15 happened? 16 A. You're talking about what 17 instruction? For the buying, shipping, 18 financing? Which instructions, which 19 investment you're talking right now? (Sic) 20 Q. Arranging the shipment. 21 A. Yes, they were asking mostly 22 verbally to ship it to help them to ship to 23 Dubai and after that, once they're already to 24 ship, they've been in touch with Marine 25 Transport Logistics. They were talking to

Page 49 1 SOLOVYEV 2 purchase when the bookings on the timing, on 3 the loading, documentation, mailing back and 4 forth. 5 Q. The reason I ask this question is 6 because all the e-mails from you are from 7 the -- that I've seen so far are from 8 MTLworld@MTLworld.com, right where your 9 signature blog says Aleksandr as agent for MTL. 10 What I'm asking you is that how you 11 communicated; through e-mail? Is that the only 12 e-mail you use, whether it was to do your 13 business with Royal Finance Group or do you do 14 your business with Car Express or did you have 15 separate e-mail addresses for Car Express Royal 16 Finance Group? 17 A. Usually I'm doing for every 18 customer a different way of doing business. 19 (Sic) In this case, in your particular case 20 because Safonov didn't speak English and any 21 other language besides Russian and I started 22 this business early -- years ago with Andrea. 23 My e-mail MTL@MTLworld.com. I didn't want him 24 to bring in other sources of communication. Do 25 not make his business corporation complicated.	Page 51 1 SOLOVYEV 2 A. Yes, they arrived to Dubai. 3 Q. And how do you know that? How did 4 you get that information? 5 A. We got a bill of lading from Marine 6 Logistics. 7 Q. Why did you receive a bill of 8 lading? 9 A. I didn't receive it. Andre sent it 10 to us. 11 Q. So you received the bill of lading 12 from Andre? 13 A. Yes. 14 Q. That MTL had prepared, correct? 15 A. Yes. 16 Q. Who quoted -- who quoted Andre or 17 Mr. Safonov for the shipping, how much it would 18 cost? 19 A. MTL. 20 Q. Did you participate in quoting them 21 for the shipping at all for these two boats? 22 A. Yes, I helped them to buy trailers, 23 and measure boats with the trailers and to 24 participate in reasonable local shipping of all 25 his boats to Dubai.
Page 50 1 SOLOVYEV 2 So I was trying to setup his transactions 3 through one e-mail which is 4 MTLworld@MTLworld.com. 5 Q. Did you think it was going to be 6 confusing for him to get an e-mail from you 7 from another e-mail address? 8 A. Yes. 9 Q. Does Car Express have its own 10 e-mail address? 11 A. Yes. 12 Q. What is the e-mail address for Car 13 Express? 14 A. I don't remember right now but we 15 have the e-mail -- yes, it's on the website. 16 Q. And on the website I see it says 17 info@Carexpress.U.S.? 18 A. Absolutely right. 19 Q. Do you know if the boats ever 20 arrived in Dubai? 21 A. Which boats? 22 Q. The two boats that we were talking 23 about earlier. The Shopwell and the Monterey 24 that you purchased at the auction and set up -- 25 set them up with MTL to be shipped?	Page 52 1 SOLOVYEV 2 Q. So had you ever had to contact MTL 3 yourself on their behalf and find out how much 4 it would cost to ship? 5 A. Yes, of course because we have to 6 put together loading and the shipping. 7 Q. Were you getting paid for these 8 services, for arranging everything? 9 A. Who? Me personally? 10 Q. You, yes. 11 A. Personally, not. 12 Q. Any of your companies, were they 13 getting paid for all of this for arranging 14 everything? 15 A. Yes. 16 Q. Which company? 17 A. Royal Finance Group commission for 18 financing, Car Express for commission for the 19 buying boat; some commission was put on top for 20 buying trailers for the customers. And no 21 commission on the shipping with Marine 22 Transport. 23 Q. But did you get any commission or 24 any of your companies for arranging 25 orchestrating. I understand that Royal Finance

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2 Group received a commission for its service
3 which is basically floating the purchase and
4 Car Express got a commission for buying but did
5 you or your companies get any commission or
6 payment for going to MTL and measuring these
7 boats and finding out the quotes?
8 A. No, we don't have that in our
9 invoices.
10 Q. Were you just doing that out of the
11 goodness of your heart?
12 A. Yes, I have a big heart, yes.
13 Q. Was MTL paid for its services?
14 A. I didn't get your question. MTL
15 paid nothing for anything. MTL was supposed to
16 be paid for the shipping.
17 Q. Yes, that was my question. Was MTL
18 paid for its services?
19 A. No. MTL didn't pay for anything.
20 MS. TARASSOVA: Ma'am, court
21 reporter, can you repeat my question to
22 the deponent, please.
23 (Whereupon, the referred question
24 was read back by the Reporter.)
25 A. For the shipping, MTL for the

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2 shipping to the steamship line, steamship line
3 and the quoted on top, the commission.
4 Q. So MTL was paid a commission for
5 shipping, correct?
6 MR. CHANG: I'm sorry, can you read
7 back his answer. That wasn't his
8 answer.
9 (Whereupon, the referred answer was
10 read back by the Reporter.)
11 Q. Can you clarify that? I think your
12 attorney was confused. I understood your
13 answer as saying that MTL charges a commission
14 for setting up the shipping with vessel?
15 A. Yes, absolutely right, yes.
16 Q. How much was that commission? Do
17 you know?
18 A. No.
19 Q. Did Royal Finance Group receive
20 payment on behalf of MTL?
21 A. Yes.
22 Q. Why did it do that?
23 A. Because it was easy to receive one
24 lump sum from Dubai and Andre was asking to pay
25 once to the company for the all services out of

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2 USA and Royal Finances -- Royal Finance Group
3 was receiving money for all services, five, six
4 services and paying on behalf of the customer
5 for all the services up to shipping to the pay
6 Dubai.
7 Q. So Royal Finance Group would
8 receive money on behalf of MTL and then pay MTL
9 its portion for its services?
10 A. Yes.
11 Q. And how does that work? Does Royal
12 Finance Group invoice your clients?
13 A. Yes.
14 Q. Is it invoice based on a quote or a
15 prior agreement?
16 A. On a quote from Marine Transport
17 Logistics.
18 Q. And at some point were these two
19 boats, the month, day and the Shopwell, were
20 they shipped back to New Jersey from Dubai?
21 A. Yes.
22 Q. Why were they shipped back; do you
23 know?
24 A. No.
25 Q. Were you helping with that

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2 transaction? Were you helping set up the
3 shipment from Dubai back to New Jersey?
4 A. No.
5 Q. Because I believe I saw some
6 e-mails that Mr. Safonov produced in discovery
7 that showed that you -- I think you forwarded
8 him some communications where you were
9 arranging the shipment and asking for quotes
10 from various companies to ship the two boats
11 from Dubai to New Jersey; do you remember that?
12 A. Yes, they were asking a lot of
13 questions. I was trying to help them to do
14 their business but it's not easier of any
15 company, either companies that you just
16 mentioned been involved in the shipping out of
17 Dubai. They were doing it on their own.
18 Q. And where did those boats end up
19 after they arrived in New Jersey; do you know?
20 A. They end up in the port of New
21 York.
22 Q. And do you know where they went
23 from the port?
24 A. From the port they went to 63 New
25 Hook Road in Bayonne, New Jersey to a warehouse

Page 57 1 SOLOVYEV 2 of World Express. 3 Q. How did they end up being stored at 4 World Express? 5 A. They end up as a receiver, final 6 receiver on a bill of lading where it stated 7 that Marine Transport is a notified party for 8 these two boats in U.S.A. 9 Q. Did you help them with that? How 10 did MTL become involved in this? 11 A. MTL was a receiver as an agent for 12 the line. They would receive something from a 13 notified party on a bill of lading and they 14 hire the tracker and unloading department to 15 take this boat out of the container and store 16 it on the World Express yacht. 17 Q. So what I'm trying to understand is 18 your involvement. Prior you had said that you 19 had been helping them deal with MTL, right? 20 Did you have anything to do with the boats back 21 to New Jersey? 22 A. No. 23 Q. Did you help them arrange that? 24 A. No, to New York. No, they did it 25 under their own bill of lading and their own	Page 59 1 SOLOVYEV 2 Q. And did you have an agreement about 3 how much that would cost? 4 A. Yes. 5 Q. And was it a written agreement or a 6 verbal agreement? 7 A. It was a Skype communication with 8 numbers which is supposed to indicate the 9 number of the Monterey number for the services. 10 Q. And how much were those services 11 supposed to cost? 12 A. What services? 13 Q. For storage, you said that you guys 14 via Skype that was there was a monetary amount 15 for a monetary number that you discussed for 16 the storage of the two bets with Mr. 17 Trejaykov? 18 A. You're wrong. In order to receive 19 such cargo out of foreign country, you do not 20 have to pay storage accumulating after all 21 other services and charges which occurred 22 before which is included. Custom clearance, 23 port charges, THC, destination, local 24 demurrage, track, unloading and covering and 25 letting of the boats and after that, in about
Page 58 1 SOLOVYEV 2 loading and their own decision to ship it back. 3 Q. Do you know why MTL was listed as 4 the final receiver? 5 A. Because like Andre says to me, he 6 don't - he didn't know anybody in the U.S.A. 7 and he wants to use his boat in U.S.A. 8 Q. And were these boats you said that 9 they were put on a truck and moved to World 10 Express, did they use your company leader? 11 A. I don't know. It looks like not. 12 There was no leader at the time. 13 MR. CHANG: Can you pick a spot for 14 a five-minute break? 15 MS. TARASSOVA: Yes, let's do it 16 now. 17 (Whereupon, a five-minute break was 18 taken.) 19 Q. Mr. Solovyev, we left off on me 20 asking you how the two boats, the Shopwell and 21 the Monterey ended up in storage with World 22 Express in connection; how did that happen? 23 A. Customer from Dubai Andre asked me 24 to install them, ship them and install them in 25 New York.	Page 60 1 SOLOVYEV 2 two weeks according to the filing storages 3 accommodated so before storages we have plenty 4 of charges which connected with import 5 shipments of the boat. 6 Q. When you described those charges, 7 can you explain who was responsible for 8 satisfying those charges on the United States 9 side? 10 A. Whoever was a shipper of the 11 anchor, Middle East Asia. They're supposed to 12 be paying all these charges. 13 Q. Did someone pay those charges? 14 A. No. 15 Q. So no one ever paid for customs 16 fees, anything like that? 17 A. Nobody. 18 Q. Do those goods not get held up in 19 customs, if customs had not paid for it? 20 A. No. 21 Q. Can you explain the process to me? 22 How does it work? So say Middle East Asia, 23 sends over the two boats, they don't pay 24 anything to anyone, who takes the hit I mean, 25 do they just have outstanding balances?

Page 61 1 SOLOVYEV 2 A. They're supposed to send all 3 balances to the company Marine Transport who 4 was paying for all these charges. 5 Q. So Marine Transport Logistics paid 6 for the charges for Middle East? 7 A. Yes. 8 Q. How does that work? Why would you 9 not collect the fees up front? Why would you 10 invoice afterwards? 11 A. It was invoiced up front. 12 Q. Did they pay? 13 A. It's the same story as procedure of 14 buying equipment from the auctions in order to 15 pay lump sum amount for all services, service 16 has to be provided. As soon as Marine 17 Transport recognizes all the charges for the 18 car and services, invoice was issued and 19 deliver to the customer in full because to 20 predict \$1.00 plus and minus, it's impossible 21 that customs can hold it for any reason. If 22 something come up legal -- but in this case 23 everything was legal -- and all the procedure 24 went smoothly and the boats resolved as a yacht 25 of World Express resolved any additional	Page 63 1 SOLOVYEV 2 cargo falls down to the final destination 3 storages will be accommodated according to the 4 filing and any unit or any object which would 5 be stored at the facility of World Express 6 would be penalized with the storage charges. 7 Q. And that policy, is it written 8 somewhere? 9 A. Yes, it's written somewhere. 10 Q. And where is that policy written? 11 A. On the performer of World Express. 12 Q. And would you give that to the 13 compliance? Is it on a website somewhere? Is 14 it an e-mail? 15 A. Yes, it's on the website. Every 16 customer can see it through the website. 17 Q. What is the website? 18 A. MTLworld.com. 19 Q. I'm confused and I hear your 20 attorney is confused as well. 21 So I'm talking about storage with 22 World Express? 23 A. Sorry. It's my mistaken. On the 24 inspection report, yes, you're right. On the 25 inspection report of World Express, there is a
Page 62 1 SOLOVYEV 2 charges. 3 Q. So was Royal Finance Group involved 4 in this transaction of the boats being shipped 5 back to New Jersey to MTL? 6 A. No. 7 Q. Did Royal Finance Group pay the 8 money upfront to cover customs and shipping 9 charges, Etc.? 10 A. I don't remember. As far as I 11 remember, Marine Transport was paying for all 12 the charges. 13 Q. And to go back to my question 14 before we got into that, I was asking you 15 about -- was there an agreement or an 16 arrangement about the storage fees and you 17 said, well, storage fees are incurred after all 18 of this is paid. Can you please clarify that 19 for me? 20 A. Yes, according to -- we have 21 30 days of fee for the customer who will 22 conduct next step for the business transaction 23 between one of our companies and in resolved 24 reason customer using storage facility as to 25 store and do not ship, do not transact his	Page 64 1 SOLOVYEV 2 stipulation on the backside. Absolutely on the 3 bill of lading stipulation of the storage 4 charges, yes, Marine Transport has nothing to 5 do with it on the World Express policy. Its 6 inspection report is stipulated as a bill of 7 lading at the backside of this paper, it 8 stipulated the storage charges procedure. 9 Absolutely right, you're right. 10 Q. Do you have a record of giving that 11 of that document from World Express where the 12 policy is written on the back of the bill of 13 lading? Do you have a copy of that that we can 14 see? 15 A. Yeah, you can see it. 16 Q. But you have it? 17 A. I can have a copy in my office in 18 the office of World Express. You can see it 19 was mentioned to Andre Trejaykov about this 20 policy he decided to ship it back or when I 21 decided to ship it to Dubai, it was stated to 22 him verbally. He doesn't speak English. So it 23 was verbally and stipulated to him that he 24 would be responsible for the storage. 25 Q. And on that written document, does

Page 65 1 SOLOVYEV 2 he have to sign the bill of lading at any 3 point? You're saying it's on the back of the 4 bill of lading, that policy? 5 A. Yes, it's on the back, yes. 6 Q. Did Mr. Andre Trejaykov or Mr. 7 Safonov or anyone else, did they ever have to 8 sign that document? 9 A. Don't have to. 10 Q. So did they come in contact with 11 that document in the regular course of 12 business? 13 A. No. 14 Q. So how would they be on notice that 15 that policy's on the back of the bill of 16 lading? 17 A. There was no notice. They would 18 ask me if there was any storage. I show them 19 the paperwork. It's my translation. It's my 20 full translation from English to Russian that 21 they would be in charge for the storage such 22 and such numbers to the -- according to the 23 size of their boat. 24 Q. So basically you're saying that it 25 was on a piece of paper that they didn't sign	Page 67 1 SOLOVYEV 2 say it's about \$40 a day for the large boat 3 it's maybe from \$100 up to \$150 a day. 4 Q. Is that the industry rate or is 5 that something that you assign as a company? 6 A. Industry rate is three times higher 7 than I just mentioned to you. 8 Q. How long were the monitoring and 9 the Shopwell at World Express? 10 A. Very long years and years. More 11 than a year. 12 Q. More than a year. 13 Did you at any point notify either 14 Mr. Trejaykov or Mr. Safonov that their boats 15 are going to be incurring storage fees? 16 A. Absolutely. 17 Q. How did you notify them? 18 A. In writing. 19 Q. Through what medium? 20 A. Through the internet, Skype. 21 Q. So you wrote them a message through 22 Skype? 23 A. Absolutely. 24 Q. And when did you first inform them 25 about the storage fees?
Page 66 1 SOLOVYEV 2 and you verbally explained it to them? 3 A. Yes, every customer -- there is 4 thousands and thousands of customers coming 5 through World Express knows about this 6 procedure. Thousands and thousands and during 7 last 20 years. It was the same procedure for 8 every customer. Maybe medium people know this 9 procedure. If you ask anybody about this 10 procedure, everybody knows it. The storage 11 charges will apply if the customer does not 12 ship. It just wants to store it. 13 Q. It's like a regular course of 14 business activity for the -- 15 A. It's a regulation of the business, 16 yes. 17 Q. And so if they don't pick up their, 18 you know, goods in 30 days, what are the 19 storage fees? 20 A. It's according to the measurement 21 of let's say for the cars. We got from \$10 up 22 to \$15 per day and for the boat it's from liner 23 meter. It's like \$20. I don't remember how 24 much. It's \$20 per liner meter so it's like if 25 the boat -- let's say for the small boat, let's	Page 68 1 SOLOVYEV 2 A. When I understood that they were 3 hiding from me and they have some kind of 4 problems speaking them up (sic) and their 5 boats, their boat on top of my neck and they 6 just -- keeping the space which is supposed to 7 be for the business purpose, not for the 8 storage. 9 Q. What is your procedure to notify 10 clients if it's past 30 days? Do you reach out 11 to them immediately after the 30 days is up or 12 do you wait for them to contact you and just 13 passively add to their balance with the 14 company? What's your procedure? 15 A. It's a different procedure. 16 Usually if the customer is shipping with us, 17 and he's asking to store it, it's over the 18 phone or by e-mail. It's always -- it's a 19 different procedure. It depends on what kind 20 of customer how we ask him. We can talk 21 verbally. If you do not trust the customer, we 22 can send them an official letter or lawyer sign 23 or through the court order. 24 Q. And in this case with the two 25 boats, the Shopwell and the monitor ray, did

Page 69 1 SOLOVYEV 2 you trust Andre Trejaykov and Aleksandr 3 Safonov; did you trust them? 4 A. Absolutely, yes. 5 Q. So what happened when you noticed 6 that 30 days went by, the boats are sitting on 7 your lot and they're not picking them up? Did 8 you notify them? 9 A. Yes, we notify them. Not after 10 three days, maybe a couple of months because 11 they -- it was having a problem during the 12 period of time, 2014 to bring them out. It was 13 a lot of snow and they said give us months or 14 two, we'll take care of it and snow. It's 15 just -- and then after that, it was spring and 16 the summer and, you know, we didn't what to do 17 with these boats. After that we started 18 sending them messages. 19 Q. And when you're talking about snow 20 do you mean snow? New Jersey on your end? 21 A. Yes, snow in New Jersey. It was a 22 lot of snow. They couldn't handle these boats 23 calling me several times keep these boats to 24 pay for the storages. 25 Q. Why would they have a problem with	Page 71 1 SOLOVYEV 2 A. Yes. 3 Q. And what is that -- do you know 4 what the date of that e-mail is? 5 A. No. As far as I remember, it was 6 in May 2014 with several messages by Skype in 7 about -- in April time. 8 Q. April 2014? 9 A. Yes. 10 Q. And do you have those records? 11 A. Yes, we have it, yeah. 12 Q. And the first thing that you 13 notified them, it was wintertime. Did you do 14 it by phone or e-mail and Skype? 15 A. By phone for sure. They knew that 16 was going on and if the ship it -- hold on. 17 Can you give me a second? 18 MS. TARASSOVA: Sure. 19 (Whereupon, an off-the-record 20 discussion was held.) 21 Q. Let the record reflect that Mr. 22 Solovyev is double checking on his computer. 23 And Mr. Solovyev, can you just let us know what 24 you're referring to right now? What you're 25 looking at?
Page 70 1 SOLOVYEV 2 the snow? Is it because you charged them more 3 to get them out? Why would they care, it's not 4 their problem? 5 A. I didn't charge them more because 6 to keep out and move boats in such snow, it's 7 very difficult. Nobody any tracking company 8 would do it. I remember it was a lot of snow 9 during this time, yes. I don't know, maybe 10 there was their reason. I don't know why. 11 It's my suggestion but we've been talking about 12 weather, conditions of the weather during this 13 time and they knew the condition it was in. 14 Maybe it was interruption of the next step to 15 continue business here. 16 Q. And then when the snow cleared, did 17 you contact them again and let them know that 18 they are incurring fees? 19 A. Yes. 20 Q. How did you contact them the second 21 time? 22 A. Over the phone, over e-mail. 23 Q. Do you have proof? Do you have an 24 e-mail retained from that when you gave them 25 notice?	Page 72 1 SOLOVYEV 2 A. I was trying to remember when the 3 boats came back. 4 Q. What are you looking at? What are 5 you referring to on your computer? What 6 document? 7 A. Bill of lading for these two boats 8 arrive back. 9 Q. And what was the day on the bill of 10 lading? 11 A. It was August, September 2014 when 12 they came back. 13 Q. You said when? What was the date? 14 A. 2014 in the middle of the year two 15 boats arrived there. 16 Q. Do you have the date or you just 17 know that it's was summertime? 18 A. Let me find -- 19 Q. Can you let me know what you're 20 looking at there? What are you referring to? 21 What document is helping you remember? 22 A. You're asking me about these two 23 boats. When they arrived with the dates and 24 I'm trying to find the exact date when they 25 arrived here in New York out of Dubai all

Page 73 1 SOLOVYEV 2 right. 3 Q. Yep. What document are you 4 referring to on your computer? 5 A. Bill of lading which was sent to me 6 from Andre Trejaykov under his booking for 7 these two boats. I'm looking for the bill of 8 lading. 9 Q. Okay. 10 A. Yes, on August 2014, yes. 11 Q. So in the winter of 2014 they were 12 not in New Jersey. They were in Dubai, right? 13 A. Yes. 14 Q. So can you clarify that; cause you 15 said you remember there was a storm that 16 prevented them from getting picked up. When 17 was that. Is this even in reference to these 18 boats or might it have been something else? 19 A. It's in reference to Formula, 20 another boat. 21 Q. And when was the Formula purchased? 22 A. In August 2013. 23 Q. So it stayed and where was it 24 stored, with what company? 25 A. World Express.	Page 75 1 SOLOVYEV 2 see now I'm confused. 3 As far as the notices, I want to 4 talk about, the notices that your company or 5 you gave to them are about storage fees. In 6 relation to the Monterey and the Shopwell, when 7 was the first time that you gave either Mr. 8 Trejaykov or Mr. Safonov notice that they are 9 incurring storage charges? 10 A. Immediately after their arrival to 11 New York back. They knew about storage charges 12 immediately. 13 Q. How did they know about them? 14 A. Because they were asking if any 15 storages occurred and they received a positive 16 answer yes would be storages if they occur. 17 Q. Was this — did they ask in writing 18 and did you respond in writing or was this all 19 verbal? 20 A. It was verbal and as far as I 21 remember, in writing definitely it was in 22 writing. 23 Q. Do you have evidence of that? Can 24 you go to an e-mail or Skype message and pull 25 that up right now?
Page 74 1 SOLOVYEV 2 Q. What company bought it? 3 A. Car Express. 4 Q. Was the purchase through co-part as 5 well? 6 A. The same through co-part. 7 Q. And did Royal Finance Group collect 8 money for all the services that your company's 9 provided? 10 A. Yes. 11 Q. And in relation to the transaction 12 with the Formula, how did you communicate? Who 13 did you communicate with? 14 A. Andre Trejaykov. 15 Q. And how did you communicate with 16 him; through Skype, e-mail, phone? 17 A. E-mail, Skype and phone. 18 Q. And did you use that e-mail called 19 our e-mail MTLworld@MTLworld.com? 20 A. Yes. 21 Q. So that was — was that the boat 22 that was being stored through the wintertime 23 and you had issues with the snow? 24 A. Yes. 25 Q. So let's get this clear because —	Page 76 1 SOLOVYEV 2 A. Not right now. My lawyer also has 3 this information for you. 4 Q. He already has the information for 5 us? 6 A. Yes. 7 Q. And when you're talking about 8 writing what would you look in? Would you look 9 into your Skype account or would you look into 10 your e-mail account or both? 11 A. Both. 12 Q. So if they arrived in August 2014 13 at what point did they begin incurring storage 14 fees? 15 A. Right in the month after arrival. 16 Q. Within 30 days? 17 A. Within 30 days, yes. 18 Q. And when was that the first written 19 notice given? Do you know the date of that? 20 A. I don't remember the date but it 21 was given, notice was given. 22 Q. And we're talking about written 23 notice? 24 A. Written notice, yes. 25 Q. How many — did you remind them

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1 SOLOVYEV 2 again? Did you give them additional notices or 3 it was just that one time? 4 A. It was mentioned on every 5 conversation over Skype to Andre Trejaykov. 6 Q. Did you ever send an official 7 invoice to Andre or Mr. Safonov? 8 A. Yes, it was an official invoice, 9 yes. 10 Q. And when was that invoice sent? 11 A. Official invoice was September, 12 within a couple of months after boats arrived. 13 Q. And how much was that invoice for? 14 A. It was particularly for the storage 15 charges which is occurred up to storage day, 16 particular storage day. It was several 17 invoices which was issued from the beginning 18 after that bill had been adjusted to the higher 19 amount and never applied to other invoices and 20 nothing replied from any of the customers. 21 What you just mentioned, Andre Trejaykov or 22 Aleksandr Safonov, on the storage charges when 23 they're planning to pay or any other movements 24 of the boats. 25 For the proposal, for helping them	1 SOLOVYEV 2 shop has a stipulation, they're going to charge 3 you \$45 for storage car or \$60 per day and if 4 its amount exceeds such particular amount, 5 let's say \$2,000, they needed to put a lien or 6 just bring it to the auction and resell to get 7 their money back for the storage. The same 8 storage procedure supposed to be in this case 9 with World Express which stipulated on World 10 Express bill of lading, okay but because it was 11 my friends, we didn't put a lien and we didn't 12 sell them to cover our expenses to store them 13 for our own money. And if the customer who are 14 using somebody services in U.S.A. not 15 responsible for their boats, let's say in this 16 situation, so it's his fault to be punished 17 according to the New Jersey law for storages or 18 resending his entity in order to cover the 19 storage charges which accumulated because of 20 his mistake, not calculation for -- not to be 21 responsible for his own boat. 22 MR. CHANG: Note my objection 23 that's not responsive to the question. 24 Q. Had you ever charged them -- when I 25 say you, I guess I'm talking about World
Page 78	Page 80
1 SOLOVYEV 2 to ship it from Dubai or to fly never got to 3 this point during the next two years on any of 4 my question. So according to the New Jersey 5 law, and we have this law stipulated by 6 governor of New Jersey, we have three months of 7 storage free. After that we can get rid of the 8 boats, sell them, give us the rights on our 9 side, you can do it as well but we didn't do 10 it. We were trusted in believing that these 11 people would be -- would resolve this issue of 12 storage on their own. 13 Q. So is it my understanding and tell 14 me where I'm incorrect in the record, my 15 understanding from Mr. Safonov is that the 16 first time he heard about any storage fees was 17 when he received an invoice for about \$40,000; 18 was that the only invoice that you had sent or 19 were there invoices prior to that? 20 A. Let me explain to you how it works. 21 If you bring your car, I can give you an 22 example to a repair shop and you don't pick it 23 up after the day of your car was repaired in 24 every way in U.S.A. they will charge you and 25 everybody has the same stipulation, every car	1 SOLOVYEV 2 Express in connection, right because that would 3 be the entity that's charging them for storage; 4 is that correct? 5 A. Correct. 6 Q. Had you ever charged them storage 7 fees before? First of all, let me back up so 8 we can set the record straight. Had you done 9 business with Mr. Trejaykov or Mr. Safonov 10 prior to these three boats? 11 A. Yes, I did business with Mr. 12 Trejaykov before Safonov for about two years 13 before. 14 Q. And had you ever had charged Mr. 15 Trejaykov any storage fees? 16 A. No, there was no storage fees 17 because he was shipping everything in time out 18 of U.S.A. If he spent his money, he's supposed 19 to get his goods in Dubai as soon as possible. 20 He had never get in storage. 21 Q. So this was the first time that you 22 had to enforce your storage fee policy? 23 A. Absolutely. It was the first time 24 and customer had not been responsible for his 25 own goods.

Page 81 1 SOLOVYEV 2 Q. So what I'm getting at is this, 3 what I'm trying to figure out right now usually 4 when a business sees that their client who's 5 been doing well and has been honest through 6 their course of dealings is not picking up the 7 boats is not responding now they're an 8 inconvenience to you as a business, right? 9 A. Right. 10 Q. Usually the business will give 11 notice to that person or that company. So say, 12 listen you are now incurring storage fees 13 because you are not picking up your boats, 14 you're being nonresponsive or unresponsive. So 15 you're saying you did that and I'm trying to 16 figure out because at this point I have not 17 seen any documentation other than the e-mail 18 where you sent the \$40,000 invoice at, what 19 point did you give them notice in writing that 20 they will start incurring storages? 21 A. It was a notice over the phone and 22 Skype conversation between me and Andre which I 23 present to my lawyer where Andre says that 24 Aleksandr Safonov called him recently asking 25 why he is getting storage charges for his boat.	Page 83 1 SOLOVYEV 2 first. 3 MR. CHANG: Objection to form. 4 MR. TARASSOVA: And then the 5 question to Eric is, Eric, do you know 6 what Skype conversation he's talking 7 about because I haven't received that? 8 MR. CHANG: I do not but obviously 9 if you make the request for it, we'll 10 dig it up and turn it over. 11 A. I'll mark it up. 12 MR. CHANG: We'll find it just so 13 the record's clear post August 2014? 14 MS. TARASSOVA: What are you 15 talking about? 16 MR. CHANG: Are you asking about 17 post August 2014? 18 MS. TARASSOVA: No, I'm talking 19 about -- your client told you that he 20 submitted as a disclosure that I haven't 21 received -- I'm talking about everything 22 your client submitted. It's not post or 23 prior, it's everything that may be in 24 your possession that is supposed to be 25 disclosed.
Page 82 1 SOLOVYEV 2 I got this information over Skype and if 3 Safonov is saying that he never received it, he 4 received it, I got proof. 5 MS. TARASSOVA: And counsel, do you 6 know what your client is talking about 7 because I have not seen those Skype 8 conversations? 9 MR. CHANG: I'm not positive. It 10 sounds like he's talking about a Skype 11 conversation after the invoice was sent; 12 is that correct? 13 A. Sure. 14 MR. CHANG: Does that answer your 15 question? 16 MS. TARASSOVA: Okay. 17 Q. So this Skype conversation after 18 the \$40,000 invoice; is that right? 19 A. Yes, absolutely right. 20 Q. So tell me if I'm wrong but the 21 first time that Mr. Safonov or Mr. Trejaykov 22 got notice in writing or an official invoice, 23 that was the e-mail that had the invoice for 24 \$40,000; is that correct? 25 A. Yes, whatever it was. It was	Page 84 1 SOLOVYEV 2 MR. CHANG: Okay. I will look 3 through our files and see what we have 4 responsive your demand. 5 MS. TARASSOVA: Okay. 6 Q. So now the invoice, who did you 7 send that invoice, the \$43,000? Let me look -- 8 MS. TARASSOVA: Let me look for 9 something. Off the record. 10 (Whereupon, an off-the-record 11 discussion was held.) 12 Q. I found the invoice and it is dated 13 August 13th, 2014, it is from Royal Finance 14 Group, Inc. to Crocus Investments for storage 15 of the \$2,010 Formula at \$9.60 for one linear 16 meter per day. And unloading from the trailer 17 and that is in the amount of \$39,409.39. Is 18 that the invoice that you were talking about? 19 A. Yes. 20 Q. Now, this invoice looks like it was 21 just made out for the storage of the formula. 22 What about the other two boats the Monterey and 23 the Shopwell had just arrived to New Jersey 24 that summer? 25 A. Yes.

Page 85	Page 87
1 SOLOVYEV 2 Q. So when this invoice came out for 3 the storage of the formula, would an invoice 4 have been due for the storage of the Shopwell 5 and the Monterey at that point in August 2014? 6 A. It was an additional invoice 7 separated from formula. 8 Q. And when did that invoice go out 9 for the monitor ray and the Shopwell? 10 A. As soon as these two boats arrived 11 back from Dubai. 12 Q. Now, this invoice for the formula, 13 who did you send that invoice to? 14 A. It was sent to Crocus and Andre 15 Trejaykov. 16 Q. To both, so they were sent -- were 17 they sent to Mr. Safonov on behalf of Crocus? 18 A. Yes. 19 Q. Why did you wait so long to issue 20 the bill for the formula? 21 A. I didn't wait. They were waiting. 22 I didn't wait. 23 Q. Because the invoice is issued about 24 a year after it had been purchased in standing 25 at World Express in connection. It was bought	1 SOLOVYEV 2 may not pay the large fee? 3 A. No. 4 Q. Isn't that a risk for your 5 business? 6 A. It's a very big risk for the 7 business what I did to my friends so much time 8 to think about it. As they didn't make up 9 their minds, they didn't make a final decision 10 but they've been in touch with me constantly 11 about this boat opportunity to bring it to 12 Florida or to Dubai. They were talking to me. 13 Q. What prompted you to finally issue 14 the invoice for \$39,000 for formula for the 15 storage of the formula? 16 A. Say it again. 17 Q. What made you finally issue the 18 invoice because you said you were waiting on 19 them to figure out what they were going to do 20 finally in August? You decided to send them 21 the invoice. What event prompted you to send 22 that invoice? 23 A. Because people steal. They know 24 what to do with this boat even after seeing 25 some proposals from my side to shipping to ship
Page 86	Page 88
1 SOLOVYEV 2 in the summer of 2013 and the invoice is issued 3 in the summer of 2014; is that correct? 4 A. No. 5 Q. When was the formula purchased? 6 A. Purchased in about 7 August/September 2013. 8 Q. So this invoice for \$39,000 was 9 issued in August 2014? 10 A. So what? 11 Q. What I'm asking is: Why did you 12 wait one year to issue the invoice? 13 A. I didn't wait. Customer was 14 waiting for his decision, what to do with the 15 boats. I didn't wait. As soon as the boat was 16 on my way the invoice but it was the decision 17 of the customer how soon to get this invoice 18 and what to do with the boat. We have nothing 19 to do with his boat. It's a customer who was 20 waiting whoever they didn't know what to do 21 with his boat. 22 Q. Right, but aren't you concerned 23 like any other business would be if you're 24 providing a service for a long time and the 25 clients is incurring a lot of fees that they	1 SOLOVYEV 2 them to Dubai or to bring them back to Florida 3 they didn't react to any of my proposals and I 4 was frustrated keeping the cargo at our 5 facility for nothing. 6 Q. Do you know what their current 7 balance with World Express in connection is to 8 date for storage? 9 A. More than a hundred thousand 10 dollars. 11 Q. Can you tell me about the business 12 relationship that you had with Mr. Trejaykov 13 and Mr. Safonov as far as you and your company, 14 shipping cars to Dubai to repair and resell; 15 what is that about? 16 A. They were buying the cars, bots, 17 jet ski, some parts, auto parts, boat parts out 18 of U.S.A. and I was helping them to buy those 19 units or cargo or commodities and usually we 20 ship them to Dubai during all this time 21 calculating fees, that's all. 22 Q. What was your agreement? Was it 23 for you to make some money off of the profit 24 and/or were you just purely providing the cars 25 for them for a commission?

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1 SOLOVYEV
2 A. No, usually they were buying cars
3 or boats or parts on their own money. Do not
4 ask me about whatever I would be participating
5 as a business. I never participate in their
6 business.
7 Q. Because I have an e-mail which we
8 provided to you that is between you and Mr.
9 Safonov in December 2013 talking about a
10 Mercedes Benz SL and a Porsche that you had
11 shipped over to Dubai. What's the deal of
12 that? What was the understanding?
13 A. It was customer who was shipping
14 panorama and a Mercedes. It's salvage cars
15 which Andre Trejaykov was supposed to sell it
16 in Dubai. Make his commission and return money
17 back to let's say United States, that's all.
18 Q. But do you buy the cars for them
19 and did you charge them for them?
20 A. No, it's not the business. It was
21 a business for one of the customers in U.S.A.
22 which ask me to sell them in Dubai, that's all.
23 Q. I guess what I'm getting at is, you
24 know, my clients are saying that they had a
25 business relationship with you where they would

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1 SOLOVYEV
2 hold your vehicles that you sent over to Dubai
3 to resell just like you held their boats in New
4 Jersey. It was a mutual relationship in,
5 therefore, storage fees wouldn't be due because
6 their storage of your vehicles equal the
7 storage of the boats; is that incorrect?
8 What's your response on that issue?
9 A. I have no idea what you are talking
10 about.
11 Q. You never heard about, you know,
12 them claiming that they had stored cars for you
13 in Dubai?
14 A. No.
15 Q. So would you say your business
16 relationship with them was purely you
17 purchasing items on the auction and then taking
18 a commission and arranging shipment to Dubai?
19 Was that strictly contained to that?
20 A. Absolutely.
21 Q. Now, I asked you earlier if you
22 were at all in any way employed or owned part
23 of Marine Transport Logistics and you said, no;
24 is that correct?
25 A. Yes.

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1 SOLOVYEV
2 Q. Have you -- you said that you were
3 sued prior? How many times would you say you
4 were sued?
5 MR. CHANG: Object to the form
6 but --
7 A. I don't understand your question.
8 Q. How many times have you been sued
9 as Aleksandr Solovyev but how many times have
10 you been named as a party in the lawsuit?
11 A. Just once.
12 Q. I found a couple of lawsuits that
13 named you as a party and I want to go over them
14 with you to see if you remember that.
15 In 20 -- in 1997 you were sued?
16 You were named as a party along with a company
17 named Mosaic Transportation Lines, the
18 plaintiff in that case was Hockeye. Do you
19 remember that lawsuit?
20 A. No.
21 Q. In 2005, you were named as an
22 individual in a lawsuit along with MTL
23 Worldwide Agency, Inc. in a lawsuit where the
24 plaintiff was American president lines; do you
25 remember that lawsuit?

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1 SOLOVYEV
2 A. Yes.
3 Q. What was that about?
4 MR. CHANG: I'm going to object to
5 that line of questioning. I'm going to
6 instruct him not to answer unless you
7 can tie up some relevance to these
8 lawsuits.
9 MS. TARASSOVA: No, I don't think
10 that's how objections work, unless it's
11 privileged. You can't instruct him not
12 to answer the question. You can object
13 to form and you can object to it not
14 leading to any discoverable evidence but
15 we can deal with that in court. Are you
16 instructing him not to answer based on
17 privilege?
18 MR. CHANG: What was your question?
19 What was the lawsuit about?
20 MS. TARASSOVA: Right, correct.
21 MR. CHANG: If you remember, answer
22 the question.
23 Q. Go ahead Mr. Solovyev.
24 A. We had six containers with
25 windshield washer shipped no, no, no. Which

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1 SOLOVYEV
2 company was it?
3 Q. American President Lines, LTD 2005?
4 A. What was it about?
5 Q. That's what I'm asking you?
6 A. No, I don't remember. Then I don't
7 remember if you just asking -- you don't know
8 what you're asking about. I don't remember.
9 Q. No, I'm asking you about a lawsuit
10 that you were named as a party and you said you
11 do remember that lawsuit and you were about to
12 tell me what it is about?
13 A. No, you tell me what it is about
14 and I tell you in details because I don't
15 remember like from this guy what happened ten
16 years ago.
17 Q. Let's talk about more recent cases
18 that you may remember in 2009. You were named
19 as a party in a lawsuit along with Marine
20 Transport Logistics and your wife and World
21 Express it was a labor and employment lawsuit.
22 You were sued by Nadia, N-A-D-I-A, Fursoff,
23 F-U-R-S-O-F-F; do you remember that?
24 A. Yes, I remember.
25 Q. Do you remember in that lawsuit her

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1 SOLOVYEV
2 alleging that you had control over MTL and she
3 had actually been employed by both companies
4 MTL and World Express in connection at the same
5 time?
6 A. It's maybe it. I don't remember
7 details but maybe.
8 Q. Why would she say that you had
9 control over MTL and were responsible for
10 hiring and firing employees for MTL?
11 MR. CHANG: Note my objection. I
12 am instructing him not to answer this
13 one.
14 MS. TARASSOVA: Based on privilege?
15 MR. CHANG: Privilege and
16 attorney/client. You're asking him to
17 speculate the offenses. The plaintiff
18 may have alleged.
19 MS. TARASSOVA: Absolutely not.
20 MR. CHANG: Why would the plaintiff
21 against him have alleged so and so cause
22 of action?
23 MS. TARASSOVA: Right.
24 MR. CHANG: I'm instructing him not
25 to answer.

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1 SOLOVYEV
2 MS. TARASSOVA: Not a cause of
3 action. It's not a cause of action
4 because the cause of action was a labor
5 and employment issue. What I'm asking
6 is why would she allege the fact?
7 MR. CHANG: You're asking him to
8 speculate as to why a plaintiff alleged
9 so and so cause of action? That's not
10 what he's here for. That's not even a
11 question he can answer.
12 MS. TARASSOVA: He can answer that
13 question. This isn't court so
14 speculation would not be an objection.
15 You can use that later. I'm asking why
16 would she allege that fact? We can go
17 into that. This is very relevant, Eric.
18 Mr. Solovyev was saying on the record
19 that he has nothing to do with MTL. I'm
20 talking about examples of other people
21 stating that in fact he does have
22 control over it so --
23 MR. CHANG: That's not a question
24 that Mr. Solovyev has any capability of
25 answering. Again, you're asking him to

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1 SOLOVYEV
2 speculate what a third party is thinking
3 or might have done.
4 MS. TARASSOVA: That's fine. He
5 can answer in any way that he wants to
6 answer that but I want him to answer the
7 question. You know I don't think you
8 can jump in and fight his fight for him.
9 It's a question that he has to answer
10 the best way he can. It's a deposition.
11 MR. CHANG: Okay, if you can answer
12 the question.
13 A. Yes, I can answer. I remember
14 Nadia Fursoff she was the biggest liar which
15 I've seen in my life. She was stealing money
16 of doing her duties in the company World
17 Express. It was a big fuss when she had an
18 agreement. She got the cleaning activity
19 between her working as a dispatcher for the
20 company and a subcontracting company whom she
21 hired and she was watching the money and
22 presenting false invoices to the company,
23 buying cheap and they're it sending to MTL or
24 MCL services much more higher than it's
25 supposed to be. I think she's a big liar.

Page 97 1 SOLOVYEV 2 Whatever you got information right now about 3 this case, you couldn't get me convinced that I 4 was doing something wrong. I know this person 5 is a big, big liar and she has a criminal 6 record. She was a lap dancer before, she was a 7 prostitute before and it was huge history of 8 this person. So it's not resolved of what you 9 can get truthful information about what's going 10 on in the companies. 11 Q. What position did she serve with 12 World Express in connection? 13 A. She was handling some deliveries 14 some warehousing drop. 15 Q. At the time that she was an 16 employee for World Express In Connection, was 17 she an employee with MTL as well at the same 18 time? 19 A. I don't remember. 20 Q. Then, again, in 2013 you had a 21 similar lawsuit where an employee named Kirill, 22 K-I-R-I-L-L, Delendra, D-E-L-E-N-D-R-A. He 23 alleged basically the same thing that Nadia did 24 that you are in charge of both MTL and World 25 Express In Connection that he had worked for	Page 99 1 SOLOVYEV 2 MR. CHANG: That's the exact 3 question you were asking. Why is this 4 guy alleging these facts. 5 MS. TARASSOVA: Correct. It's not 6 why is he bringing the lawsuit for, you 7 know, unpaid wages, the question is why 8 is he alleging that fact. It's a fact 9 question. 10 MR. CHANG: It's not a fact 11 question within Mr. Solovyev's 12 knowledge. Why would a plaintiff bring 13 such a lawsuit, what facts does the 14 plaintiff brings? 15 MS. TARASSOVA: I think you're 16 answering on behalf of Mr. Solovyev but 17 I have not heard Mr. Solovyev say that 18 he doesn't know. So I would propose 19 that Mr. Solovyev answer that question 20 to the best of his ability. I would 21 raise the same issue as the 2009 case 22 that you made the same argument. I said 23 stop fighting, stop answering the 24 questions for him. There's no legal 25 grounds why he should not respond to
Page 98 1 SOLOVYEV 2 both of the companies simultaneously and that 3 you were responsible for hiring and firing for 4 both companies. Same question: Why would he 5 allege that fact in the 2013 case? 6 MR. CHANG: None of your questions 7 are factual questions. Every one of 8 your questions you're asking him why a 9 plaintiff might have sued him but that's 10 a question. 11 MS. TARASSOVA: No. 12 MR. CHANG: If you have a factual 13 question that you can answer ask him, 14 otherwise I'm instructing him not to 15 answer. If you want to make a motion to 16 get an answer for this go ahead but -- 17 MS. TARASSOVA: I want to put on 18 the record that the question did not go 19 to why the plaintiff sued him or what 20 his theory of liability was. My 21 question -- 22 MR. CHANG: Can I have the reporter 23 read back the question? 24 (Whereupon, the referred question 25 was read back by the Reporter.)	Page 100 1 SOLOVYEV 2 this question. It's not privileged. I 3 just asked him why would this person 4 state the same fact. 5 MR. CHANG: Why would someone who's 6 not Mr. Solovyev state these facts? 7 MS. TARASSOVA: Correct. 8 MR. CHANG: That's your question? 9 MS. TARASSOVA: That's my question. 10 MR. CHANG: If you can answer, why 11 the plaintiff in the 2013-case -- 12 A. I can explain. I have nothing 13 against this question. This person Kirill was 14 working as a loader in our warehouse, whatever 15 he say. He said nothing. His lawyer said the 16 same way like you are asking on behalf of your 17 customers, and we know how lawyers are working 18 this case, they are trying to find somebody who 19 pays money to his customers. So the same with 20 Kirill. When he punched me with a nail gun, 21 ear gun, he did it himself. Nobody discharge 22 this person at the time of his labor. And 23 after that, the lawyer went for everybody who 24 was in the same building, every company, he 25 started to swear at everybody. That's all what

Page 101 1 SOLOVYEV 2 happened, but he was working to the World 3 Express just loading cars, that's all. 4 Q. In 2013, there was a case against 5 you as an individual as well as MTL Royal 6 Finance Group, Car Express and imports, that 7 case was brought by MAVL Capital, Inc.; do you 8 remember this case? 9 A. I remember this case. 10 Q. I believe in this case, the 11 plaintiff also alleges that you are in control 12 of MTL and you are responsible for the actions 13 of MTL. Why would they allege that in 2013? 14 What happened? 15 A. Can my lawyer answer all your 16 questions because he was involved? 17 MR. CHANG: I'm not going to answer 18 his question but I'm objecting to the 19 form. There was two questions. 20 Q. The first question is: What were 21 the circumstances of that case? 22 A. It was stolen property, ships 23 through MTL. Unknown payment for boat cars and 24 some units which MAVL Company and according to 25 the shipping law, he was talking to only his	Page 103 1 SOLOVYEV 2 failure to disclose funds and the United States 3 ended up coming in and taking about \$600,000 4 out of the MTL bank account; do you remember 5 that case? 6 A. Yes. 7 Q. Why would the United States of 8 America state that you were involved with MTL? 9 Why would they tie you to MTL if you have 10 nothing to do with it? 11 A. I have nothing to do with it. It 12 was shipping of some cars through Iran which is 13 an unfriendly blacklister country. This was a 14 case only with MTL not with Car Express or me. 15 Maybe it's a leased but I guzzling money from 16 MTL not from me or my companies, no. 17 Q. But based on their investigation, 18 they found that you were involved with MTL. 19 MR. CHANG: Is there a question? 20 A. I wouldn't be penalized. It wasn't 21 just money penalties, that's all. I have 22 nothing to do with this case. 23 Q. Have you ever been convicted of a 24 crime? 25 A. Convicted of a crime? I've never
Page 102 1 SOLOVYEV 2 owner of the money. I never talk to him about 3 shipping of his goods. So nobody has proof 4 that I was advised him where to ship, how to 5 ship, that's all what has happened. So one 6 more time stolen property, which he stole ships 7 from MTL and FBI was involved in this case and 8 plus he stole some bull dozer for \$250,000 and 9 that also involved. So right now this 10 company's hiding out of U.S.A. I don't know 11 where this person is. 12 Q. What about the case that you had 13 with Homeland Security where you were named as 14 an individual along with your wife Allah 15 Solovyev and MTL where the United States 16 attorney is alleging that you are an agent for 17 MTL? 18 A. I don't know. 19 MR. CHANG: Is there a question 20 there? 21 A. What is this? 22 Q. What are the -- why would the 23 United States attorney allege that you were 24 involved with MTL in that case where just to 25 remind you that's where it was a case about	Page 104 1 SOLOVYEV 2 been convicted. 3 Q. You were never convicted of a crime 4 in New Jersey for receiving stolen property? 5 A. It has to do with the boat? 6 Q. I'm entitled to ask that question. 7 A. I have to object. 8 MR. CHANG: This is whether you -- 9 was there a conviction? 10 A. No, there was no conviction. 11 Q. Have you ever been on probation? 12 A. Yes. 13 Q. What were you on probation for? 14 A. Don't matter. 15 Q. It does. Your attorney can explain 16 to you why this is relevant but it is and I'm 17 entitled to ask that question it is actually 18 very important. So can you please explain to 19 me why you were put on probation? What was 20 that in relation to? 21 MR. CHANG: You are asking for 22 the -- 23 MS. TARASSOVA: Why was he put on 24 probation? Why would the state of New 25 Jersey put him on probation?

Page 105	Page 107
1 SOLOVYEV	1 SOLOVYEV
2 A. I don't remember. It was some	2 I N D E X
3 stolen cars as the property, that's all.	3
4 Q. What were you accused of?	4 WITNESS EXAMINATION BY
5 A. I don't remember the stipulation	5 PAGE
6 but it was something like stolen Renwickr cars	6 6-106 MS. TARASSOVA
7 as the property of World Express.	7
8 Q. Was MTL involved in that?	8
9 A. No.	9
10 Q. Did you plead guilty in that case?	10
11 A. Yes.	11
12 Q. Other than probation, did you have	12
13 to serve any time in jail?	13
14 A. No.	14
15 (Continued on next page	15
16 to include jurat.)	16
17	17
18	18
19	19
20	20
21	21
22	22
23	23
24	24
25	25

Page 106	Page 108
1 SOLOVYEV	1 SOLOVYEV
2 Q. Have you been convicted of anything	2 C E R T I F I C A T E
3 else?	3
4 A. No.	4 STATE OF NEW YORK)
5 MS. TARASSOVA: Those are all the	5 ss.:)
6 questions I have.	6 COUNTY OF BRONX)
7 THE COURT REPORTER: Would you like	7
8 a copy of the transcript?	8
9 MR. CHANG: Sure.	9 I, DORENE GLOVER, a Notary Public for
10	10 and within the State of New York, do hereby
11 (Whereupon, at 12:48 p.m., the	11 certify:
12 examination of this witness was	12 That the witness whose examination is
13 concluded.)	13 hereinbefore set forth was duly sworn and that
14	14 such examination is a true record of the
15	15 testimony given by that witness.
16	16 I further certify that I am not related
17	17 to any of the parties to this action by blood
18	18 or by marriage and that I am in no way
19	19 interested in the outcome of this matter.
20	20 IN WITNESS WHEREOF, I have hereunto set
21	21 my hand this 4th day of December, 2015.
22	22
23	23
24	24
25	25

Page 109	
1	SOLOVYEV
2	STATE OF NEW YORK)
	ss.:
3	COUNTY OF BRONX)
4	
5	I wish to make the following changes, for
6	the following reasons:
7	
8	PAGE LINE
9	_____ CHANGE:
10	_____
11	REASON:
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24	_____
25	_____

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 15-04

CROCUS INVESTMENTS, LLC, and CROCUS, FZE
(Complainants)

v.

MARINE TRANSPORT LOGISTICS, INC., and
ALEKSANDR SOLOVYEV a/k/a ROYAL FINANCE GROUP, INC.

(Respondents)

Veritext Reporting
37 N. Orange Avenue
Suite 500
Orlando, Florida
Thursday, 1:00-5:45 p.m.
December 3, 2015

DEPOSITION OF ALEXANDER SAFANOV
INTERPRETED IN RUSSIAN

Taken on Behalf of the Respondents before
Lisa Gerlach, Court Reporter, Notary Public
in and for the State of Florida at Large,
pursuant to Respondents' Notice of Taking
Deposition in the above cause.

Page 2 1 Appearances: 2 Counsel for the Claimants: 3 LOUIZA TARASSOVA, ESQUIRE 4 The Law Office of Louiza Tarassova 5 1420 Lake Baldwin Lane 6 Orlando, FL 32814-6671 7 407.622.1885 8 louiza@mylawadvocate.com 9 10 Counsel for Respondents, by speakerphone: 11 ERIC CHANG, ESQUIRE 12 Cichanowicz Callan Keane Vengrow & Textor 13 61 Broadway 14 Suite 3000 15 New York, NY 10006-2809 16 212.344.7042 17 echang@cckvt.com 18 19 Also Present: 20 Valentina Maydell, Russian Interpreter 21 22 Tatiana Timoshkina, wife of witness 23 24 Aleksandr Solovyev (with his attorney by 25 speakerphone)	Page 4 1 (The interpreter was duly sworn to 2 translate the proceedings from English to 3 Russian, and Russian to English as follows:) 4 THEREUPON, 5 ALEXANDER SAFONOV, 6 a witness herein, acknowledged after having been duly 7 sworn, testified upon his oath as follows: 8 THE WITNESS: I do. 9 DIRECT EXAMINATION 10 BY MR. CHANG: 11 Q. Good afternoon, Mr. Safonov. My name is Eric 12 Chang. I'm a lawyer for Marine Transport Logistics 13 and Aleksandr Solovyev. 14 A. Good afternoon. 15 Q. Have you attended a deposition before? 16 A. No. 17 Q. Okay. What I'd like to do now is go over 18 some basic rules for the deposition so you understand 19 what is going to take place today. Is that all right? 20 A. Yes. 21 Q. Mr. Safonov, one of the things I would ask 22 you to do is to make sure that you give a verbal 23 response, because everything that we say is being 24 written down by the court reporter, but she can't 25 write down anybody's movements or body language.
Page 3 1 INDEX 2 WITNESS EXAMINATION PAGE 3 Alexander Safonov 4 Direct by Mr. Chang 4 5 Certificate of Oath 76 6 Certificate of Reporter 77 7 Witness Review Letter 78 8 Errata Sheet 79 9 EXHIBITS 10 None 11 12 13 14 15 16 17 18 19 20 21 22 23 24 25	Page 5 1 A. I will do. 2 Q. Thank you. What's going to happen today, I 3 will ask you a series of questions, which you will be 4 answering under oath to the best of your ability; the 5 same as if a judge was asking you the questions. 6 Do you understand? 7 A. Understood. 8 Q. If I ask a question and you don't understand 9 my question, please let me know. 10 A. I will do. 11 Q. Otherwise, if you answer the question, we are 12 going to assume that you understood what I was asking. 13 A. Okay. 14 Q. Okay. Also, if I ask a question and you do 15 not remember the answer, you can say that, because 16 this is not a test of your memory. 17 A. Okay. 18 Q. Lastly, if you need a break at any point, 19 please let myself or your lawyer know. I would only 20 ask that if there's a question pending, that you 21 answer that question before we take a break. 22 Is that understood? 23 A. Okay. 24 Q. Let's begin. Mr. Safonov, where are you 25 currently residing?

2 (Pages 2 - 5)

Page 6 1 A. Boca Raton, Florida. 2 Q. Could you give the building number and street 3 address, please? 4 A. 11484 Seagrass Circle. 5 Q. Okay. How long have you lived at that 6 address? 7 A. From the summer, 2014. 8 Q. Do you live alone at that address or is 9 anyone else living with you currently? 10 A. Alone. 11 Q. Where did you live before the summer of 2014? 12 A. Dubai. 13 Q. Could you please state the address of your 14 residence in Dubai prior to the summer of 2014? 15 A. I don't remember exactly. It was Palm 16 Jumeirah Street, but I do not remember the building 17 number. 18 Q. Is there any documents that you have -- not 19 in front of you right now -- but that you have 20 elsewhere that would help you remember the address? 21 A. In general, I believe I do have some 22 documents that will confirm my address. 23 MS. TARASSOVA: Eric, I just want to 24 interject really quick. I think Mr. Safonov, 25 when he answered the question that he lives	Page 8 1 a company called Crocus Investments, LLC? 2 A. Yes, I am. 3 Q. Did you start this company? 4 A. No. 5 Q. Who started the company, Crocus Investments, 6 LLC? 7 A. Yes, I am the one who started the company. 8 Q. Okay. Mr. Safonov, did anyone assist you in 9 starting Crocus Investments, LLC? 10 A. I'm 100 percent owner of the company. 11 Q. When did you start this company? 12 A. In the summer of 2013. 13 Q. Where is this company incorporated or formed? 14 A. In Florida, Aventura. 15 Q. In the summer of 2013, when you started this 16 company, did this company have an office address? 17 A. My company was registered by a law firm, and 18 initially that law firm provided their address. After 19 that, after the company was formed, we added a second 20 address of the company, but I do not remember neither 21 one, neither first or the later added. 22 Q. Okay. Are you still the owner -- 100 percent 23 owner -- of Crocus Investments, LLC, today? 24 A. Yes, I am; 100 percent. 25 Q. Does Crocus Investments have any offices
Page 7 1 in the house alone, I think he misunderstood 2 the question. 3 Can you ask him that question again, 4 because I think he forgot to mention that his 5 wife lives with him? 6 MR. CHANG: Okay. 7 BY MR. CHANG: 8 Q. Mr. Safonov, at your Seagrass Circle address 9 in Florida, do you live there alone currently or with 10 someone else? 11 A. No. I live with my family. 12 Q. Is that including Mrs. Tatiana Safonov? 13 A. Tatiana Timoshkina; not Safonov. 14 Q. With regard to your Dubai address that you 15 were describing, how long did you live at that 16 address? 17 A. One-and-a-half years. 18 Q. Where did you live prior to that? 19 A. In Moscow. 20 Q. I'm sorry. What was the answer? 21 A. I lived -- prior to Dubai, I resided in 22 Moscow. 23 Q. Russia, correct? 24 A. Russia. 25 Q. Thank you. Mr. Safonov, are you the owner of	Page 9 1 today? 2 A. Our company office is at our home. 3 Q. When you said that you did not remember what 4 the second address was in 2013, was that a different 5 address than your home today? 6 A. No. It wasn't my present address of my 7 present home. It was, I believe, Pembroke or 8 something town -- Pembroke Pines. 9 Q. How many employees does Crocus Investments 10 have today, including yourself? 11 A. Just two of us; my spouse and I. 12 Q. That would be referring to Tatiana; correct? 13 A. Yes. 14 Q. Other than yourself and Tatiana, does Crocus 15 Investments have any other employees from 2013 through 16 today? 17 A. No. 18 Q. Mr. Safonov, what is your official title with 19 Crocus Investments? 20 A. Owner. 21 Q. Do you have any other job titles? 22 A. Well, I would say general manager. 23 Q. What kind of business does Crocus Investments 24 do today? 25 A. Online business.

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1 Q. What do you mean by, "online business"?

2 A. That is commercial secret.

3 Q. Okay. Does Crocus Investments provide

4 services to customers?

5 A. Not at this time. Not at present.

6 Q. At present, does Crocus Investments sell

7 goods to customers?

8 A. No. At present, we offer consultation only.

9 Consulting services.

10 Q. Does Crocus Investments have an online

11 website?

12 A. Yes.

13 Q. What is the website address?

14 A. There are a few website addresses, and that

15 is also a commercial proprietary -- or secret.

16 Q. Mr. Safonov, how do Crocus Investments

17 customers know who you are if you do not have a public

18 website?

19 A. Well, online business works by itself. We

20 don't have to look for clients. This is analytical

21 website.

22 Q. Did you say you have two websites for Crocus

23 Investments?

24 A. Yes.

25 Q. How long has Crocus Investments been

Page 11

1 operating these two websites?

2 A. Approximately half a year.

3 Q. Did Crocus Investments have any websites

4 prior to half a year ago?

5 A. Yes, Crocus Investments had, also, website.

6 Q. Did Crocus Investments have a website in 2014

7 and 2013?

8 A. Yes, correct.

9 Q. One website or more than one website?

10 A. One website.

11 Q. When did Crocus Investments start using that

12 one website?

13 A. In 2013.

14 Q. Is that since the beginning of the company?

15 A. Yes. When I opened the company, I also

16 prepared or made ready a website for the Crocus

17 Investments company, and the website was related to

18 boats -- motor boats -- rental -- renting motor boats.

19 MS. TARASSOVA: He said it wasn't up.

20 A. Yes; however the website was ready, but I

21 have never put -- connected it to internet.

22 BY MR. CHANG:

23 Q. Okay. Just so I understand, does that mean

24 that you never had a website address for your

25 motorboat website?

Page 12

1 A. I had the address. I registered it. I just

2 didn't open the site. I can even give the address --

3 registered address -- for my first website.

4 Q. Mr. Safonov, could you please provide us with

5 that registered address?

6 A. Crocusmarine.com.

7 Q. When you started Crocus Investments in 2013,

8 what type of business were you doing?

9 A. That was for motorboat rentals.

10 Q. Did you provide any consulting services in

11 2013?

12 A. No.

13 Q. What kind of business was Crocus Investments

14 doing in 2014?

15 A. Consulting. Hold on. 2014 -- if you mean in

16 year 2014, I believe we didn't offer any services in

17 2014. We started consulting from 2015.

18 Q. In 2013, for motorboat rentals, how many

19 boats did you own or lease?

20 A. Three here in United States. Are you asking

21 2013? Please repeat again.

22 Q. In 2013, how many motor boats did Crocus

23 Investments have, either owned or leased?

24 A. Crocus Investments had, in 2013, one boat;

25 and that one boat we bought from Mr. Solovyev.

Page 13

1 Q. Do you remember the year, make and model of

2 that one boat?

3 A. It was Formula 24, year 2010.

4 Q. This Formula boat was at Crocus Investments

5 in Florida?

6 A. No. Mr. Solovyev stole it.

7 Q. Okay. In 2013, did Crocus Investments

8 successfully rent any boats to any customers?

9 A. No, we did not rent one, because Solovyev

10 never gave us that boat.

11 Q. Is it correct that, in 2013, Crocus

12 Investments did not obtain any rental revenue from the

13 renting of motorboats?

14 A. Yes. The company, Crocus, has not received

15 any profit or, actually, income from renting of a

16 boat.

17 Q. In 2014, did Crocus Investments have any

18 motorboats either owned or leased?

19 A. Yes. In 2014, I shipped personally, from

20 Dubai, two boats as a property of Crocus Investments.

21 And these two boats, Solovyev did not -- these two

22 boats were shipped from Dubai to him, and he did not

23 ship it forward -- the shipping. So we have not

24 received the two boats we shipped from Dubai via

25 Mr. Solovyev.

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1 Q. Mr. Safonov, are you referring to the two
2 boats that are at issue in this case, a Chaparral and
3 a Monterey?
4 A. Yes, correct.
5 Q. So is it correct that, in 2014, Crocus
6 Investments did not make any income from motorboat
7 rentals?
8 A. That is correct. Not even -- in 2014, no.
9 Q. Other than motorboat rentals, did Crocus
10 Investments make any income in 2013?
11 A. No; no other income.
12 Q. Mr. Safonov, you understand, when I use the
13 word "income," I mean any money earned or obtained by
14 the company during that year. Do you understand?
15 A. The company or Crocus Investments did not
16 have any income.
17 Q. Okay. But, Mr. Safonov, you understand that
18 when I say, "income," it doesn't mean just profits.
19 It means any money earned.
20 A. I understand the difference between income
21 and profit. But in that year, this company, which is
22 Crocus Investments, no money went through, in or out.
23 Q. Okay. In 2014, did Crocus Investments have
24 any income?
25 A. No. It's the third time you asked.

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1 MS. TARASSOVA: Eric, the prior
2 questions, weren't they about 2014 as well?
3 MR. CHANG: I think it was just 2013.
4 MS. TARASSOVA: Oh, no. We understood
5 all the questions --
6 THE INTERPRETER: I'm writing it down.
7 MS. TARASSOVA: The interpreter wrote
8 down '14. So the answers as they were
9 answered, it was for the year 2014.
10 MR. CHANG: I apologize for that.
11 BY MR. CHANG:
12 Q. In 2013, did Crocus Investments have any
13 income?
14 A. No, no income. 2013, no.
15 Q. In 2015, did Crocus Investments have any
16 income?
17 A. As of today, none.
18 Q. Mr. Safonov, if I'm asking the same question
19 more than once and you answered more than once, please
20 feel free to let me know. Understood?
21 A. Okay.
22 Q. Thank you. In 2013, were you employed or
23 working with any other company other than Crocus
24 Investments?
25 A. Yes, I worked.

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1 Q. Where were you working other than Crocus
2 Investments in 2013?
3 A. Company in Dubai.
4 Q. What was the name of this company in Dubai?
5 A. Middle East Asia Alfa.
6 Q. I will refer to this company as "Middle
7 East." When did you begin working for Middle East?
8 A. There was also a second company. It was
9 Crocus FZE.
10 Q. Mr. Safonov, when did you begin working with
11 Middle East?
12 A. I'm co-founder of that company from
13 April 2013.
14 Q. Are you still a co-founder today of Middle
15 East? Let me take that back. Sorry. Were you a
16 co-owner of Middle East in 2013?
17 A. Yes; I was also co-owner with decision-making
18 rights for the company.
19 Q. Today, in 2015, are you still a co-owner of
20 Middle East?
21 A. I haven't been to Dubai for almost a year or
22 over a year, so I don't know if that Middle East
23 company still exists. I think it was closed.
24 Q. When was the last time that you were in
25 Dubai?

Page 17

1 A. In May. We moved here -- I misunderstood. I
2 think we moved here in May 2014, but the last time we
3 were in Dubai, it was August 2014.
4 Q. Were you still co-owner of Middle East in
5 August of 2014?
6 A. Yes.
7 Q. What kind of business does Middle East do?
8 A. Okay. Repair and sale of motorboats.
9 Q. Was that always Middle East's business since
10 it started in 2013 through August 2014?
11 A. Yes, that was the services that company
12 provided -- Middle East has provided from the
13 beginning.
14 Q. In April 2013, how many employees did Middle
15 East have, including any officers of the company?
16 A. Officially employed or also part-time or
17 under-the-table workers, yes -- so-called seasonal
18 workers.
19 MS. TARASSOVA: Let me correct that
20 translation. He never said,
21 "under-the-table." He meant, like,
22 contractors. There's nothing under the
23 table.
24 THE INTERPRETER: Seasonal workers.
25 MS. TARASSOVA: Can we strike that from

5 (Pages 14 - 17)

Page 18 1 the record, Eric? 2 MR. CHANG: Louiza, I'm going to ask the 3 court reporter to read back the answer. Did 4 he give a number of workers, or no? 5 THE WITNESS: Nine or ten people. 6 BY MR. CHANG: 7 Q. Who was the other co-owner of Middle East in 8 2013? 9 A. Oleg Bortsov. 10 Q. Do you know a person by the name of Andrey 11 Tretiakov? 12 A. I know. 13 Q. Did Andrey work for Middle East in 2013? 14 A. Yes. 15 Q. Mr. Safonov, what was your job title with 16 Middle East in 2013? 17 A. I didn't have any other than owner. 18 Q. Do you know what Oleg's job title was with 19 Middle East? 20 A. General manager. 21 Q. Do you know what Andrey's title was with 22 Middle East? 23 A. Associate. He was more like associate. 24 Q. Did Oleg have decision-making authority on 25 behalf of the company?	Page 20 1 BY MR. CHANG: 2 Q. Do you know what Andrey's job duties were in 3 2013? 4 A. Also repair of boats; also to pick up or meet 5 the boats that arrived from Solovyev, or shipped by 6 Solovyev, to meet and pick up at the port. So Mr. 7 Tretiakov would go to the port, pick up or meet with 8 those who brought the boat, and was responsible to 9 deliver it. 10 Q. Deliver it to where? 11 A. To the warehouse, and, also, where the boat 12 maybe need to be repaired -- to the warehouse. Also, 13 he was in charge to find spare parts for repairs. 14 Q. Is that a warehouse owned by Middle East? 15 A. Yes, correct. 16 Q. Do you know when Middle East first started 17 using that warehouse? 18 A. I don't remember exactly, but I believe it 19 was from April 1st, 2013; and I was the one who rented 20 it -- the warehouse -- and I paid for it. 21 Q. Did you pay for the warehouse through August 22 of 2014? 23 A. No. I rented this warehouse for one year, so 24 I didn't pay til August of 2014; because we rented it 25 for a year, and then we moved into the office
Page 19 1 THE INTERPRETER: This is interpreter. 2 Could you repeat what authority? I didn't 3 hear exactly what you said. 4 MR. CHANG: Okay. Decision-making 5 authority. 6 Who is speaking right now? Is someone 7 else speaking other than Mr. Safonov? I'm 8 just hearing overlap. 9 MS. TARASSOVA: Tatiana was talking. Can 10 you repeat the question? Because I think 11 we're confused. Do you want the court 12 reporter to read back the question? 13 MR. CHANG: I'd like the interpreter to 14 translate what was just said, if that's 15 possible. 16 THE INTERPRETER: Yes. Once interpreter 17 asked to clarify what authority -- 18 decision-making authority -- so Mr. Safonov 19 answered that, since he was the owner with 20 main decision-making package -- I assume he 21 had -- so he made all major decisions related 22 to the company business. It was Mr. Safonov. 23 But Oleg, as the general manager, his 24 decision making was limited to repairs, 25 maintenance or technical or sales.	Page 21 1 building. 2 Q. Okay. After April of 2014, did Middle East 3 rent or own any warehouse space? 4 A. Yes. We had at that time -- from April 1st, 5 we had office building and warehouse. 6 Q. Were you also the person who paid for the 7 rent of the new warehouse in April 2014? 8 A. Yes; I was the one who paid for that new. 9 Q. Okay. With regard to Middle East, were you 10 personally involved in the repair of motorboats? 11 A. No. 12 Q. Were you involved in -- were you personally 13 involved in the sale of motorboats by Middle East? 14 A. Yes, of course, I was. Without my decision, 15 nobody has right to sell anything. And I'm talking 16 about boats; because they had right to sell some cars, 17 but no authority to sell boats. 18 Q. Earlier, you mentioned that the business of 19 Middle East was for the repair and sale of motorboats; 20 is that correct? 21 A. Initially, and our intention was to sell 22 boats. That's what we did -- most of our business. 23 Just, somewhat late, Solovyev asked us to sell some 24 cars -- his cars. He asked us, actually, to help him 25 to sell his cars.

6 (Pages 18 - 21)

Page 22 1 Q. Do you remember how many cars Mr. Solovyev 2 asked you or Middle East to help him sell? 3 A. Two cars. He asked for help to sell off 4 quite a few cars. The amount of cars will be quite a 5 few, but he sent only two cars. 6 Q. Okay. Just so I understand, you're saying, 7 from 2013 through 2014, Middle East only helped 8 Mr. Solovyev sell two cars; is that correct? 9 A. Not exactly. The story is that his friend 10 actually stole those two cars, so I don't know exactly 11 what was going on -- what's the story with those cars. 12 One car, from what I know, he sold it without 13 my actually knowing -- it was in secrecy that he sold 14 one car -- and then sent money to Solovyev, and he did 15 it so I would not notice it or not find out about 16 that. 17 Q. When you say he sold the one car, who are you 18 referring to? 19 A. Andrey Tretiakov, the friend of Mr. Solovyev. 20 Q. Okay. Do you remember the make and model of 21 the one car that you say Andrey sold? 22 A. It was Mercedes SL65. I do not remember 23 year. 24 Q. How about the other of the two cars; do you 25 remember the make and model?	Page 24 1 "Looking for investor to open plant or shop," so 2 looking for investor to open a business. 3 Q. How long after you saw this advertisement did 4 you meet Oleg? 5 A. The advertisement was placed by Tretiakov. 6 And I believe the same week that I read it or saw it, 7 we met. 8 Q. You met Oleg, is that correct? 9 A. No. Initially, we met with Andrey. Oleg is 10 Andrey's son. 11 Q. After you met with Oleg and Andrey, did you 12 invest in their proposed company? 13 A. No. Initially, we prepared the business 14 plan. And when we prepared this business plan, 15 Andrey, of course, said then that he has a friend, 16 Solovyev, who will ship or provide boats, and we will 17 repair and sell them. 18 Q. When you said, "We were preparing a business 19 plan," that meant you and who else? 20 A. I -- myself -- Andrey and Oleg. 21 Q. After the business plan was created, did you 22 invest in the proposed company? 23 A. Of course. 24 Q. And this company became Middle East; correct? 25 A. Correct.
Page 23 1 A. The second one was Porsche Panamera. 2 Q. Other than these two cars, did Middle East 3 sell any other cars from 2013 to 2014? 4 A. I am not aware of any other cars. Maybe 5 they -- Andrey and his friend -- managed to bring and 6 sell some cars, but I am not aware of any other car. 7 Q. So other than these two cars, did Middle East 8 do any other business besides repair and selling of 9 motorboats? 10 A. No, nothing more. 11 Q. When did you first meet Oleg? 12 A. I'm not sure. February or March 2013. 13 Q. How did you meet Oleg in February-March 2013? 14 A. I think it was -- I saw advertisement, online 15 newspaper. 16 MS. TARASSOVA: I think he gave the 17 advertisement. 18 A. The answer is that I saw some advertisement. 19 It was in online newspaper at that time. 20 BY MR. CHANG: 21 Q. Do you remember the name of the online 22 newspaper? 23 A. No, I do not. 24 Q. What did the advertisement say? 25 A. The ad would say, more or less, like this:	Page 25 1 Q. How much was your first or initial investment 2 into Middle East? 3 A. I do not remember exact details; but, at that 4 time, Oleg didn't have any money whatsoever. So I 5 agreed to put my part and also for Oleg's part. So I 6 provided for two -- both of us -- approximately half a 7 million dollars. 8 Q. Okay. And the approximately half a million 9 dollars was 100 percent of the initial investment; 10 correct? 11 A. So, yes, that was initial. And to add to it, 12 Oleg wrote, also, promissory note. It was official 13 paper -- promissory note that he will repay me back 14 within six months the amount that I loaned him, or he 15 borrowed from me; and there will be about five 16 percent, I believe, interest on that. 17 Q. Okay. After the initial 500,000 US dollar 18 investment, did you make any further investment into 19 Middle East? 20 A. I do not remember exactly or precisely what 21 sum was invested, but I do remember that it was close 22 to half a million dollars, US dollars. 23 Q. My question is: After the initial 24 investment, did you make any additional investment 25 into the company?

Page 26 1 A. No additional. 2 Q. Okay. When you and Oleg started Middle East, 3 did you sign any contracts or agreements stating what 4 each partner's responsibilities were? 5 A. The agreement or the promissory note that was 6 written agreement, it's about the money that Oleg has 7 to pay me back -- what I invested for him in the 8 company. Then articles of the company were written in 9 English. So I do not remember exactly what the 10 articles say. 11 Q. Was Middle East incorporated in Dubai? 12 A. Yes. In United Arab Emirates. The city is 13 Sharjah. 14 So we created, at that time, two agreements 15 or two contracts. One is about money that I invest 16 for myself and him, and he has to repay me; and the 17 second one about who is in charge of what -- the 18 responsibilities of each party. 19 Q. Mr. Safonov, who prepared the articles of 20 incorporation? 21 A. In City of Sharjah in United Arab Emirates, 22 there is a so-called city zone where you get the 23 templates for how the articles of incorporation or LLC 24 -- so we used there and it's free of charge. We just 25 filled it in.	Page 28 1 actually prepared -- I had interpreter. So 2 interpreter -- I'm familiar with what was written in 3 the promissory note. 4 Q. Okay. From now on, when I talk about Middle 5 East, I mean from 2013 through 2014 when you were 6 involved as co-owner. Do you understand? 7 A. Yes, I understand. 8 MS. TARASSOVA: Eric, is it possible to 9 take a break soon? 10 MR. CHANG: Sure, that's fine. How long 11 do you want? 12 MS. TARASSOVA: Like, five minutes. 13 MR. CHANG: Okay. 14 MS. TARASSOVA: Is this a good time? 15 MR. CHANG: It's fine. 16 (Brief recess.) 17 BY MR. CHANG: 18 Q. Were you personally involved in the 19 purchasing of motorboats for Middle East? 20 A. Of course. 21 Q. Where did Middle East get motorboats for 22 repair and sale? 23 A. From Solovyev. 24 Q. But did anybody else at Middle East have 25 involvement in the purchasing of motorboats?
Page 27 1 Q. Okay. You signed the articles of 2 incorporation; correct? 3 A. Yes. 4 Q. Who else signed the articles of 5 incorporation? 6 A. All documents that we created were signed by 7 each of -- both of us, Oleg and I. 8 Q. Mr. Safonov, do you read English? 9 A. Well, depends on what you mean, "read in 10 English." When I look at the English text, I can 11 see -- I read the title, I can see date, if there is 12 state or some names. 13 Q. Did you have any difficulty reading and 14 understanding the articles of incorporation? 15 A. Of course I had, because I don't know English 16 that well. 17 Q. Did you have someone reading the articles of 18 incorporation to you? 19 A. Andrey and Oleg, they both know English. 20 Q. And did they translate the articles of 21 incorporation to you? 22 A. No, they did not. 23 Q. Was the promissory note written in English? 24 A. It was -- the promissory note was written in 25 English, but when that was to sign -- and it was	Page 29 1 A. The decision making, which boat and selection 2 and so on, was always mine. Online with Solovyev, I 3 would look over or view the boats. And then I would 4 make decision which one I will make -- the choice -- 5 choose the boats, and then make decision of 6 purchasing. 7 Q. You were the only one who had the 8 decision-making authority for the purchase of these 9 boats; correct? 10 A. Yes, I'm the only one who had the authority 11 of decision making because I'm the only one who had 12 the money. 13 Q. Do you know how many boats Middle East 14 purchased from 2013 to 2014? 15 A. I think it was ten. 16 Q. Did you purchase, personally, all ten boats? 17 A. Most of those boats, I made decision. Some 18 decision making -- maybe on two or three purchases, 19 decision was made by Sergey. There was such a 20 associate there -- or person -- Sergey, S-E-R-G-E-Y. 21 Q. Sergey is an associate with Middle East? 22 A. He was a part-time, let's say, associate or 23 employee for a certain period of time. He decided 24 that he wanted to purchase two or three boats, repair 25 them and sell, but do it through our company.

8 (Pages 26 - 29)

Page 30

1 Q. Okay. I'm going to use an estimate of ten
2 boats that you personally purchased for my question.
3 Is that understood?
4 A. Yes, ten. That's the one that we had in our
5 warehouse. We repaired them. That's for sure.
6 Q. Of the boats that you personally purchased,
7 do you remember where they were purchased from?
8 A. Those boats were purchased, together with
9 Solovyev, while being online -- auction called Copart.
10 That's American auction company.
11 Q. Did you ever purchase any boats from any
12 other person or place?
13 A. No. All boats were purchased from Solovyev.
14 Q. Were you personally involved in arranging the
15 transportation of these boats from the US to Middle
16 East in Dubai.
17 A. No, because that was doing -- Solovyev.
18 Mr. Solovyev, he was in charge of that.
19 Q. Okay. Who at Middle East was in charge of
20 getting the boats from the US to Dubai?
21 A. During auction, I and Solovyev were there. I
22 chose the boat and we bought it. And Solovyev would
23 be paid commission once I purchased the boat in
24 auction. And then his company, Logistics, was
25 responsible to arrange shipping of purchased boat from

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1 US to Dubai; and in Dubai, also to receive it and
2 deliver.
3 MS. TARASSOVA: Eric, did you get your
4 answer? Because I kind of know what you're
5 asking and I don't know if they answered it
6 collectively.
7 MR. CHANG: Not really, but.
8 MS. TARASSOVA: I think Mr. Safonov is
9 not sure if you're asking him what you're
10 asking him. Let me --
11 MR. CHANG: Could the court reporter read
12 the question?
13 THE REPORTER: "Who at Middle East was in
14 charge of getting the boats from the US to
15 Dubai?"
16 THE WITNESS: Okay. Now, I was the one
17 who would choose at auction which boat to
18 bid, which to buy. I paid -- I bought the
19 boat and also paid commission to Solovyev.
20 And Solovyev was responsible for shipping
21 organizing -- shipping of that boat from US
22 to Dubai. And in Dubai, Andrey was the one
23 who was supposed to receive the shipment and
24 deliver to warehouse.
25 BY MR. CHANG:

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1 Q. Okay. If Solovyev had problems with the
2 transportation, who would he talk to at Middle East?
3 A. To me in Middle East if he has problem.
4 Q. If Middle East wanted to change any
5 transportation arrangements, who at Middle East would
6 talk to Solovyev?
7 A. In that case, I -- I am the one who will make
8 decision.
9 Q. Do you remember when you purchased your first
10 boat from Copart?
11 A. I don't remember exactly. I believe it was
12 March, maybe April. I would rather say March.
13 Q. Okay. You described looking at an auction
14 with Solovyev to pick out the boats, correct?
15 A. Yes.
16 Q. Is that an online auction?
17 A. Skype -- through Skype.
18 Q. Is it correct that you would -- how did you
19 find the boats that you wanted at the auction?
20 A. It's elementary. You just go on the website
21 of that auction and view whatever they have to
22 auction. There is a website, Copart Auction.
23 Q. Mr. Safonov, how did you find the Copart
24 website?
25 A. The website I got, Andre Tretiakov, he

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1 provided the name or address of the website.
2 Q. Do you need a user name to access the auction
3 website?
4 A. Yes. One needs to register with the website
5 first.
6 Q. Did you register for the website?
7 A. Of course. Otherwise, I would not be able to
8 do anything.
9 Q. Okay. Is this website open to the public?
10 A. Of course. How I got there? The same way.
11 It's just public. You go and register and
12 participate.
13 Q. Okay. If you registered for the website, why
14 did you need Solovyev to help you purchase the boats?
15 A. The problem would be how to deliver, ship it
16 from one place to another without American company
17 here. You can't go through the customs. You can't do
18 all the shipping, paperwork and the shipping itself.
19 For shipping abroad, you have to have a
20 higher company that is licensed. Even if I would come
21 to United States and buy my -- buy some boat -- in
22 order to ship it back to whatever place I live, I will
23 have to hire a licensed company to do that.
24 Q. In 2013, were you living in Florida?
25 A. No. We just came here in the summertime of

Page 34 1 2013 to register our company here. 2 Q. How many months did you spend in Florida in 3 2013? 4 A. Two. 5 Q. Do you remember which months? 6 A. July and August. I remember because children 7 start school, and our child starts school 8 September 1st. So we left at the end of August -- 26, 9 27. End of August, we left for home. 10 Q. Where was your full-time residence in 2013? 11 A. Dubai. 12 Q. Okay. Once you purchased the boats from 13 auction, how did you pay for the boats? 14 A. The payment was made from my company, Crocus 15 FZE. 16 Q. Was the payment by credit card, by wire? 17 A. Bank wire. 18 Q. Did you wire the purchase money to the 19 auction directly? 20 A. No. I wired it to Solovyev's company. 21 Q. So how did the auction get their money for 22 the boats? 23 A. From Solovyev. 24 Q. Did you -- and by you, I mean Crocus FZE -- 25 wire the money to Solovyev before or after Solovyev	Page 36 1 Within 24 hours, he will call me and say, "I got the 2 money. The money is clear." 3 Q. After you purchased the boat and after you 4 paid for the boat, would you give instruction on where 5 to ship the boats to Solovyev? 6 A. Yeah. He had to ship each boat to Middle 7 East Asia Alfa. Solovyev, initially, I thought, told 8 me he supposed to ship the boats to my company Crocus 9 FZE; however, he told me that he needs to ship it to 10 Middle East Asia Alfa company for the reason that 11 there is a free zone in Dubai and it will be -- the 12 shipping itself will cost less. Of course, later, I 13 learned that it wasn't true. They could have shipped 14 directly to my company, Crocus. 15 Q. Did you give directions to Mr. Solovyev to 16 ship to Middle East? 17 A. Yeah, I gave directions. 18 Q. Before that, did you suggest to Solovyev to 19 ship the boats to Crocus FZE? 20 A. No. He shipped first boat, and all of them, 21 to Middle East company. Only later, when I found out 22 that it is a scheme, that boats have to be shipped to 23 Middle East Asia company, I told him that I want him 24 to ship to Crocus FZE. 25 Q. I apologize if I'm confusing. Earlier you
Page 35 1 wired the money to the auction house? 2 A. Before -- before the Copart auction -- 3 because auction company allows only three days for 4 money wiring for the purchased item. 5 Q. So do you know if Solovyev paid the auction 6 house before you paid Solovyev? 7 A. I don't know, but I believe that nothing like 8 that could have ever happened. He never could 9 purchase anything on the money that he has. Also, as 10 a business point of view, it doesn't make much sense, 11 because, in case I would say, "Oh, I changed my mind," 12 then he will be stuck with boat. In business, nobody 13 does like that. 14 Q. Okay. Do you know how long it takes for a 15 bank wire to clear from Dubai to the US? 16 A. 24 hours. Actually, one business day. 17 Q. Was the same procedure followed for every 18 boat that you personally purchased from Solovyev? 19 A. Down the road -- not at the beginning, but 20 down the business trail, I sent or wired money ahead 21 to Solovyev, so Solovyev would have some extra money 22 just in case -- for different operations or whatever 23 needs might pop up. 24 One business day, why it takes to clear the 25 money, is because every time money -- I wire money.	Page 37 1 said that you wanted the boats shipped to Crocus FZE, 2 but you were convinced instead to ship to Middle East 3 because of a free zone. Is that correct? 4 A. Yes, that's correct. 5 Q. Did you give instructions to anybody to ship 6 the boats initially to Crocus FZE? 7 A. I didn't discuss that issue with Solovyev -- 8 Mr. Solovyev. With our business, Mr. Solovyev was -- 9 that from the beginning -- he has to ship boats to 10 Middle East company. 11 Q. Are you the owner of Crocus FZE? 12 A. Yes, 100 percent. 13 Q. When did you start Crocus FZE? 14 A. November 2012. 15 Q. Where is Crocus FZE incorporated or 16 registered? 17 A. In United Arab Emirates, city Ras al-Khaimah. 18 Q. Do you hold citizenship in the UAE? 19 A. No, I don't have citizenship. 20 Q. Where is your country of citizenship? 21 A. Russia. 22 Q. Has it always been Russia, or do you have 23 separate or dual citizenships? 24 A. I don't have dual. I always -- I actually 25 have had initial Soviet citizenship when Soviet Union

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Page 38 1 existed; and after that, I become -- my citizenship is 2 country, Russia. 3 Q. Are you in the US on a visa? 4 A. Of course. 5 Q. Do you know what type of visa? 6 A. I applied for student visa and still waiting 7 for that. 8 Q. When did you apply for the student Visa? 9 A. In June, I believe. 10 Q. June of which year? 11 A. This year, 2015. 12 Q. What's your highest level of education? 13 A. I'm an attorney, or I have degree in 14 jurisprudence. 15 Q. Which institute awarded you the degree of 16 jurisprudence? 17 A. Moscow State Law Academy -- State Academy of 18 jurisprudence. Law school in the United States. 19 Q. Is that a question for me? 20 THE INTERPRETER: No. It's in other 21 words, the translation for you. 22 BY MR. CHIANG: 23 Q. When did you get your degree from the Moscow 24 State Law Academy? 25 A. I graduated in 2000 -- year 2000.	Page 40 1 A. Sure. Once I made the profit, I bought for 2 myself, apartment. 3 Q. How long did you have this real estate 4 company? 5 A. I do not remember. Maybe three, maybe five 6 years. 7 Q. Okay. Do you remember where you worked after 8 that? 9 A. Then, after that, I also registered another 10 company. 11 Q. What was the name of this company? 12 A. An Energo Construction Project -- 13 Energo-Stroy -- E-N-E-R-G-O, dash, S-T-R-O-Y, Project. 14 Q. What type of business did Energo Construction 15 Project do? 16 A. Engineering and communication. 17 Q. You were the owner of this company? 18 A. Yes. 19 Q. Do you remember how many employees this 20 company had? 21 A. It varied from 50 up to 120 employees. 22 Q. How long did you continue to work with Energo 23 Projects? 24 A. Till the end of 2011. 25 Q. Where did you next work after 2011?
Page 39 1 Q. Have you ever practiced as an attorney? 2 A. No. I always worked in a business as a 3 businessman. 4 Q. When did you enter the Moscow State Law 5 Academy? 6 A. In 1995. 7 Q. Were you attending any university or college 8 institute prior to 1995? 9 A. No. 10 Q. Were you working full-time before 1995? 11 A. I was in military -- served military. 12 Q. Where did you first work after graduating 13 from the Moscow State Law Academy? 14 A. Once I graduated, I registered right away -- 15 a company in Moscow. 16 Q. What was the name of that company? 17 A. AES Invest, if you are interested. 18 Q. What did this company do? 19 A. Real estate. 20 Q. Does that mean finding and purchasing homes 21 for other people? 22 A. Yes, of course; all transactions -- buying, 23 selling real estate. 24 Q. Did that include buying and selling real 25 estate for your personal investment?	Page 41 1 A. We moved to Dubai. 2 Q. Where did you next work in Dubai? 3 A. I registered my first company there, Crocus 4 FZE. 5 Q. Okay. With your real estate company, why did 6 you decide to leave real estate? 7 A. Because I bought final apartment for myself, 8 and I didn't want to continue that. I didn't like 9 that type of business. 10 Q. Did you sell the company? 11 A. No. In Russia, at the time, you don't sell 12 company to somebody else. You just close it. 13 Q. With Energo Projects, why did you decide to 14 leave in 2011? 15 A. I got tired. 16 Q. Did you sell Energo Projects to anybody? 17 A. No; I closed it as well. At that time, I 18 needed some medical treatments that I was seeking 19 abroad, so I decided to close company and we left. 20 Q. Have any of your companies ever filed for 21 bankruptcy? 22 A. No. 23 Q. What type of business does Crocus FZE do? 24 A. The company that I opened, I wanted to be 25 investor. I was looking for the companies to

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Page 42 1 invest -- to be investor. As soon as I moved there, 2 these two Tretiakovs showed up. 3 And, if you actually -- in order to get Dubai 4 visa, you have to declare yourself of being capable 5 investor. Otherwise, no visa. 6 Q. Did Crocus FZE invest in any other companies? 7 A. No; only this one. 8 Q. I'm sorry? 9 A. Only this one. 10 Q. Only Middle East; correct? 11 A. Yes. 12 Q. Did Crocus FZE have any contractual 13 relationship with Middle East? 14 A. Yes; there was agreement between Crocus FZE 15 and company, Middle East Asia Alfa, that I, as Crocus 16 FZE, invest my money into Middle East Asia Alfa. Not 17 only my part of the money, but also invest money in 18 their part that -- what they're supposed to invest -- 19 so for two people. 20 Q. Do you know how many boats were repaired by 21 Middle East? 22 A. All of them that came in, all were repaired. 23 Q. Do you know how many boats were sold by 24 Middle East? 25 A. Seven.	Page 44 1 A. Tretiakov, with his son, Oleg. 2 Q. I'm going to ask you questions about the 3 three boats at issue in this case. Do you know which 4 boats I'm referring to? 5 A. Yes, I'm aware of what boats you're talking. 6 Q. Other than these three boats, did you have 7 any problems with the purchase and shipping of boats 8 through Mr. Solovyev? 9 A. No. Everything was fine. 10 Q. Starting with the Chaparral and the Monterey, 11 do you remember when these two boats were purchased? 12 A. I don't remember exactly, but, approximately, 13 it was May 2013. All boats were purchased between 14 March and August. But which boat was purchased 15 exactly what month, I do not remember. But we do have 16 receipts or invoices. 17 Q. I'm just going to represent to you that the 18 Chaparral and Monterey were purchased in May 2013. Is 19 that understood? 20 A. Uh-huh. 21 Q. Does that sound correct? 22 A. I already told you that I do not remember, 23 but if you want to let me look up in computer? 24 Q. That's fine. 25 MS. TARASSOVA: Eric, I'm showing him the
Page 43 1 Q. What was Middle East's income for the year 2 2013? 3 A. In 2013, the company, Middle East, didn't 4 have any. Actually, they lost -- the company lost 5 money. 6 Q. I'm sorry to hear that. In 2014, did Middle 7 East have any income? 8 A. The income was from seven boats that we sold. 9 Whatever those seven boats were sold, that was income; 10 but it did not cover the expenses of the company 11 repairs and the rest. 12 Q. Do you remember approximately how much that 13 income was in 2014 we're talking about? 14 A. I don't know the numbers, because, in that 15 company, everything was so bad -- looking bad -- that 16 I do not remember and do not want to. Nobody was 17 actually counting money in that company. 18 Q. Just to clarify, earlier, when you said there 19 was no income for Middle East in 2013, were you 20 referring to revenue or to profit? 21 A. Talking about profit. There was none in 2013 22 and 2014. No profit for sure. They were stealing 23 everything. 24 Q. When you say "they," who are you referring 25 to?	Page 45 1 bill of sale for the Chaparral. 2 MR. CHANG: Do you have a Bates number 3 for the document? 4 MS. TARASSOVA: Yes, it's P-7. 5 MR. CHANG: Do you want us to mark it as 6 an exhibit, Louiza? 7 MS. TARASSOVA: I'm trying to refresh his 8 memory so he can confirm the information. 9 MR. CHANG: That's fine. 10 MS. TARASSOVA: Then I'm showing him the 11 certificate title for the Chaparral. 12 MR. CHANG: Can we get a Bates number for 13 that too? 14 MS. TARASSOVA: P-8. 15 MR. CHANG: Okay. 16 THE WITNESS: Okay. Chaparral, 2008, the 17 receipt is July 5th, 2013. Hold on. And 18 Monterey, the bill is dated April 18th. 19 BY MR. CHANG: 20 Q. For these two boats, how did you purchase 21 these boats? 22 A. Okay. We went on a website, Copart auction. 23 On their website, they post, usually, a date -- exact 24 date of the auction that this particular -- that sale 25 will take place. And, also, they show on a website

Page 46 1 that this particular boat -- what exact day it will be 2 auctioned -- when one can participate in the auction. 3 Q. Okay. Were you in communication with anybody 4 when you purchased these boats? 5 A. The auction is run online on the screen. 6 Solovyev participated, and I. We both simultaneously 7 participated in that auction. You see online how much 8 the bid is -- each bid and so on. It's same like we 9 are sitting with you right now and talking. I sat 10 online with Solovyev and witnessed auction and were 11 doing bidding. 12 Q. So you were on a video conference of some 13 type with Solovyev when purchasing these boats? 14 A. Of course. 15 Q. Was there anybody else as part of that video 16 conference? 17 A. Andrey also was sitting, witnessing -- just 18 watching all of it. 19 Q. Where were you physically at the time of this 20 video conference? 21 A. I was in Dubai. Each one of us was at own 22 home. I was in Dubai. Solovyev was in New York. 23 Andrey also was at his home. 24 Also, when auction is in New York, then, in 25 Dubai, it's a deep late night, so usually it's like	Page 48 1 than by video conference, how did you communicate with 2 Mr. Solovyev? 3 A. Different ways: Skype, mail, and telephone. 4 Q. Is that mail or e-mail? 5 A. E-mail. 6 Q. In Dubai, did you go into the Middle East 7 warehouse on a daily basis? 8 A. Practically every day. 9 Q. And you spoke or met with Andrey at Middle 10 East practically every day; correct? 11 A. Of course. 12 Q. With the Chaparral and Monterey, after you 13 purchased the boats from Copart, did you specifically 14 instruct Mr. Solovyev to ship the two boats? 15 A. Yes, I did. 16 Q. Did you instruct him by Skype, telephone or 17 e-mail, or a combination? 18 A. Instructions via Skype; and the bill, e-mail. 19 Q. The bill from Mr. Solovyev to your company? 20 A. Yes. 21 Q. Okay. Do you know who the ocean carrier was 22 for the Chaparral and Monterey? 23 A. I understood Mr. Solovyev's company, MTL. 24 Q. Okay. Do you know what kind of company 25 Marine Transport Logistics is -- MTL?
Page 47 1 10:00, 11:00 at night, or even later. 2 Q. After you purchased the two boats, you would 3 wire transfer the purchase money to Mr. Solovyev's 4 company; is that correct? 5 A. As soon as the bidding is over and we got the 6 highest bid, within an hour or two, Solovyev would 7 send right away, electronically, a bill. Next day in 8 Dubai, I wake up in the morning. I already have the 9 bill, and then I go to the bank and wire. 10 MS. TARASSOVA: Eric, can we take a break 11 soon? 12 MR. CHANG: How long a break were you 13 thinking? 14 MS. TARASSOVA: Five minutes. It's been 15 another hour-and-a-half. 16 MR. CHANG: That's fine. I'm probably 17 going to wrap up with Mr. Solovyev maybe in 18 the next 45 minutes; and then real quick with 19 Ms. -- her last name -- I apologize -- I 20 forget -- 21 THE INTERPRETER: Ms. Timoshkina. 22 MR. CHANG: I'll try to remember. 23 (Brief recess.) 24 BY MR. CHANG: 25 Q. Still on the Chaparral and Monterey, other	Page 49 1 A. Logistics, shipping. It's a shipping 2 company, logistics. 3 Q. Did you ever personally communicate with 4 anybody at MTL? 5 A. With Mr. Solovyev only. 6 Q. Okay. Do you recall paying for ocean 7 transportation of the Chaparral and Monterey? 8 A. You mean for these two boats; yes? 9 Q. Correct. Just the Chaparral and Monterey. 10 A. I do not remember exactly what amount went 11 for these two or each separately. I remember that 12 payments that I made, usually it was like 3,000 US 13 dollars, or payment in 15,000 -- the wire -- \$15,000. 14 Or even 50,000 US dollars. Depends on what was the 15 price and how many boats were purchased. 16 Q. Do those dollar amounts that you just 17 described include the purchase price of the boats? 18 A. Yes. The bill that I would receive from 19 Solovyev to wire money always included the price of 20 the boat, delivery, and services for the -- for the 21 services provided by Solovyev's company and all -- the 22 shipping itself. 23 Q. Do you know if there is a bank charge for 24 wire charges from Dubai to the US? 25 A. Yes, there is a fee.

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1 Q. How much is the fee for the bank wire
2 transfer?

3 A. The fee in Dubai is in United Arab Emirate
4 money, so they're higher. Once we use the foreign
5 currency calculation, it would cost between 50 and 60
6 US dollars for each wire.

7 Q. That fee is paid by you; correct?

8 A. Bank automatically takes from my account that
9 money. So, of course, I paid.

10 Q. What I mean is, the amount of the transfer
11 fee is not deducted or taken out of the money you
12 send, but it's in addition to the money you send;
13 correct?

14 A. Yes, of course, it was in addition; not from
15 the amount that I wired.

16 Q. Do you know when the Chaparral and Monterey
17 were shipped from New Jersey?

18 A. I do not remember precise date. Well,
19 there's a lot of paper in here -- documents -- so I
20 won't be able to find it quickly.

21 Q. That's fine. Were you in Dubai at Middle
22 East when the Chaparral and Monterey arrived in Dubai?

23 A. Yes.

24 Q. So you knew that they had been shipped and
25 arrived in Dubai; correct?

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1 A. Yes, I knew.

2 Q. Were you at Middle East when the Chaparral
3 and Monterey were being repaid by Middle East?

4 A. Of course I was there, because any repair and
5 all repairs were done from my money. If I wouldn't be
6 there, nothing would be done.

7 Q. Okay. Do you know when the repairs were
8 completed on the Chaparral and Monterey?

9 A. All boats were repaired and ready for sale by
10 March 1st, 2014, because that was -- at that time,
11 there was planned or scheduled some exhibition of
12 boats -- the boat show -- March 4th was supposed to
13 start. So we were getting ready all those boats for
14 the show.

15 Q. That is including the Chaparral and Monterey;
16 correct?

17 A. Yes.

18 Q. Did Middle East successfully present the
19 Chaparral and Monterey at the exhibition?

20 A. No, they were not -- we were not able to sell
21 them. These two were not sold.

22 Q. Was the exhibition an exhibition for sale of
23 the motorboats?

24 A. Yes; it was exhibition for sale -- show and
25 sale.

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1 Q. But Middle East had other boats at the
2 exhibition on March 4th; correct?

3 A. Yes.

4 Q. And the other boats -- not the Chaparral and
5 Monterey -- were those boats at the exhibition?

6 A. Yes. All boats were sold except these two.

7 All boats that we had were presented at that
8 exhibition -- all of those were sold except the two,
9 Monterey and Chaparral.

10 Q. Were you personally present at the
11 exhibition?

12 A. Yes.

13 Q. Okay. What was Middle East's plan to sell
14 these two boats after the exhibition?

15 A. To ship them to United States, so we can use
16 them as rentals or charter; to rent them out in Miami.

17 Q. Were you the person who authorized that
18 decision?

19 A. Yes.

20 Q. Did you personally arrange for the
21 transportation of these two boats from Dubai to the
22 US?

23 A. No, I did not do it in person. That's
24 employee or coworkers, were doing that.

25 Q. Did you give the instructions to arrange the

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1 transportation to the employees or coworkers?

2 A. Of course. And I left, also, money for that
3 procedure. I couldn't take part in the shipping
4 process myself because I was already ready to fly to
5 United States, but I left money for them for that
6 process.

7 Q. Do you remember which Middle East employee
8 you gave those instructions to?

9 A. Yes. Middle East employees, Andrey and Oleg.

10 Q. Okay. Do you know if these two boats were
11 shipped by Middle East back to the US?

12 A. Yes, and I have documents to verify.

13 Q. Do you know how long it takes to ship a boat
14 from Dubai to the US?

15 A. On average, 40 days, plus, minus, but average
16 is 40 days.

17 Q. Do you know how long it takes to go the other
18 way, from US to Dubai?

19 A. I wasn't counting days exactly, but I think
20 an average is the same. Well, I know that there is a
21 little bit longer -- takes longer from Dubai from US
22 than from US to Dubai.

23 Q. Okay. Do you know when the Chaparral and
24 Monterey arrived in the US?

25 A. I called -- I remember I talked -- called

Page 54 1 Solovyev -- and it was 4th of July. And Solovyev told 2 me, "Tomorrow the boats should be here." 3 Q. Once the boats arrived in the US, what did 4 you do after you called Solovyev? 5 A. He told me to clear US Customs will cost 6 1,500 US dollars. And the bill -- and he said, 7 "Please provide company requisites or information," 8 that I should issue invoice to -- to what company I 9 should invoice to. 10 Q. Did you provide that information to 11 Mr. Solovyev? 12 A. Of course. I e-mailed him. 13 Q. What was the company that you wanted him to 14 arrange transportation to? 15 A. Crocus Investments, LLC. 16 Q. In Florida; correct? 17 A. Yes. 18 Q. And did you make the payment of \$1,500 for 19 the customs clearance? 20 A. No, I did not because I hadn't had time. As 21 soon as I e-mailed him requisites, shortly after, 22 Solovyev disappeared. After that, he did not even 23 send me invoice or bill. He stopped answering my 24 phone calls, answering e-mail. 25 Q. When did you e-mail Solovyev to offer to make	Page 56 1 Q. When you say, "e-mails," do you mean that you 2 sent more than one e-mail afterward? 3 A. Yes; a few e-mails. 4 Q. Does that mean more than five e-mails? 5 A. More than five. 6 Q. More than ten e-mails? 7 A. That, I do not remember. 8 Q. So between -- 9 A. I can see that -- on this e-mail address, I 10 already see 13 e-mails. But I remember that I have 11 another e-mail address, and there were some too. So 12 you can say more than ten. 13 I just found in my e-mail box that on 14 July 17, 2014, I e-mailed him requisites of my 15 company. And, here, I can see in this mailbox, he 16 sent me invoice for his services. It was 17 -- 17 July 17th, he sent me -- 2014 -- and he replied July, 18 also, 17th. 19 Q. Just to make sure everything is clear, are 20 you saying that on July 17, 2014, you e-mailed 21 Mr. Solovyev about these two boats? 22 MS. TARASSOVA: Eric, I think we're a 23 little bit confused about what you're asking. 24 There are many e-mails. Which timeframe are 25 you asking about?
Page 55 1 the payment of the \$1,500? 2 A. I believe it was also 4th of July 2014, but 3 I'm checking in my files. Okay. In my paper, it says 4 July 16, but that's when I prepared the paper. I need 5 to look in my e-mail box. I am sure that it was in 6 July, but exact date, I will provide later. 7 Q. Could you identify what document you're 8 looking at? 9 A. Just e-mail message. 10 MR. CHANG: Is Mr. Safonov looking at a 11 document or -- 12 MS. TARASSOVA: He's looking in his 13 computer. He's trying to find the e-mail. 14 THE WITNESS: Do you really need exact 15 date? 16 MR. CHANG: If he can find it easily now. 17 If it's going to take some time, we'll ask 18 for it later on. 19 THE WITNESS: Okay. Then later. 20 BY MR. CHANG: 21 Q. After you sent the letter to Mr. Solovyev, 22 did you try to reach him by telephone? 23 A. Yes, I sent e-mail. I tried to call. I send 24 e-mails, other calls; but there was no response to any 25 of my e-mails or phone calls.	Page 57 1 MR. CHANG: He just mentioned -- sounds 2 like an e-mail, a response, and then a reply 3 all taking place on July 17th. I'm trying to 4 clarify if that's what he meant. 5 MS. TARASSOVA: But are you asking about 6 that timeframe? Because he's confused about 7 what timeframe you're talking about. 8 BY MR. CHANG: 9 Q. On July 17th, 2014, did you e-mail 10 Mr. Solovyev? 11 A. I e-mailed him my company requisites, yes. 12 Q. Did you receive a response from Mr. Solovyev 13 on July 17th? 14 A. No. I have not received a response on my 15 e-mail to him. 16 Q. Did you receive an invoice from Mr. Solovyev 17 at any time in July or August 2014? 18 A. Okay. I received in August, more or less in 19 one month after, for parking. 20 Q. After you received the invoice from 21 Mr. Solovyev, what did you do? 22 A. Initially, once I received his invoice, I 23 replied to that written reply that I do not agree with 24 his invoice numbers. 25 Q. Okay. Do you remember which part of the

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Page 58 1 invoice you disagreed with? 2 A. All of them. Neither. There was none that I 3 would agree with. 4 Q. Did you disagree with the customs clearance 5 charge? 6 A. That part wasn't there listed at all. 7 Q. The customs clearance was not listed in the 8 August 2014 invoice; is that correct? 9 A. I do not remember precisely at this moment, 10 but I think it was not included in that invoice. 11 Q. Okay. Do you agree that you are responsible 12 to pay a customs clearance charge? 13 A. Of course I agree, and that's why I e-mailed 14 him in July my requisites, which means banking, 15 address, how to pay and so on. And after I sent him 16 my requisites and had not received anything from him, 17 I wrote him a letter that why -- it's not a business 18 where you're screwing up for him to hide or avoid any 19 contact and give any explanation. 20 After I sent a few of those, I received, from 21 him, invoice -- that one that we are talking about. 22 And that invoice supposed to be parking, storage or 23 whatever, of those boats. 24 Q. Did you agree that you would be responsible 25 for the uploading of the two boats in the US?	Page 60 1 A. Two or three days after I arrived to Dubai. 2 Q. Did you speak to either Andrey or Oleg about 3 the Chaparral or Monterey? 4 A. Yes. 5 Q. What was their response to you? 6 A. They told me, "You have no reason for worry. 7 Go back and everything will be fine." 8 Q. What did you do afterward? 9 A. We came to office; and what I found, that all 10 spare parts or repair parts were stolen, missing. The 11 business car or company car was stolen or missing. 12 And when I saw that, I filed complaint with police. 13 Q. Are you saying someone stole the company car 14 from Middle East? 15 A. Not somebody. Andrey stole the company car. 16 Nobody else in Dubai steals. 17 Q. Then you said you filed a complaint with the 18 police against Andrey; is that correct? 19 A. Yes, correct. 20 Q. Have you been able to recover your car, the 21 company car? 22 A. No. 23 Q. Has anything been done by the police 24 regarding your complaint? 25 A. Well, police accepted my complaint and told
Page 59 1 A. Yes; of course it's my responsibility; but as 2 I already told you, I send him requisites, which means 3 my banking account, all company -- for the purpose 4 that he will issue an invoice -- invoice me for the 5 services. And he received that from me, he 6 disappeared. 7 Q. Okay. Did you speak with anyone at Middle 8 East about these two boats after they arrived in the 9 US? 10 A. No, because his friend, Andrey Tretiakov, 11 also disappeared. They both disappeared -- or all of 12 them. And that's why I had to then -- I had to fly 13 back to Dubai and start looking for them. 14 Q. When did you fly back to Dubai to look for 15 Andrey? 16 A. Yes. At the beginning of August -- more or 17 less August 5th -- approximately August 5th, I flew to 18 Dubai. 19 Q. Is that in 2014? 20 A. Yes. 21 Q. Were you able to find Andrey or Oleg in 22 Dubai? 23 A. Yes, I found; because they did not expect me 24 to show up there. 25 Q. When did you find Andrey and Oleg?	Page 61 1 us, "We will look into it." Now just wait until we -- 2 at that point, Andrey disappeared completely. And we 3 returned back to United States because our kid has to 4 go to school. 5 Q. I'm going to ask questions now about the 6 Formula boat. Do you remember when you purchased that 7 boat? 8 A. In July 2013. 9 Q. Was this boat also purchased online at 10 auction? 11 A. Yes. 12 Q. Were you also in a video conference with 13 Mr. Solovyev and Andrey for this purchase? 14 A. I do not remember whether we were in video 15 conference with him and how long, but I can say for 16 sure that the boat -- this boat -- was also purchased 17 on auction. That's for sure. 18 Q. Do you remember telling Mr. Solovyev to send 19 the Formula to Middle East? 20 A. Yes. 21 MS. TARASSOVA: Hey, Eric? 22 MR. CHANG: Yes. 23 MS. TARASSOVA: It's getting close to 24 5:00, and they do need to head back soon 25 because they have a child that's on her own.

Page 62 1 It's a two-and-a-half-hour drive. 2 So what do you want to do? How do you 3 want to plan it out? Because I don't know 4 how much longer you have with Mr. Safonov, 5 but you still wanted to depose Tatiana. They 6 could probably go another hour, but that's it 7 because they have to head back to their 8 daughter. 9 MR. CHANG: I'll try to wrap it up. I 10 don't want to bring them back. 11 MS. TARASSOVA: And they don't want to 12 have to come back either. That's why they 13 would prefer to get as much done today as 14 they can, but, at the same time, head back 15 within -- 16 MR. CHANG: If it looks like we're not 17 even close, we'll work something else out. 18 I'll try to wrap it up. 19 MS. TARASSOVA: Thanks. 20 BY MR. CHANG: 21 Q. Mr. Safonov, do you remember paying for ocean 22 freight for the Formula? 23 A. Yes, from Bank PNC. 24 Q. Do you remember when that payment was made? 25 A. I have the bill or statement at home, but I	Page 64 1 shipping cost of that Formula 24 boat. So Solovyev 2 was trying, supposedly, to find proper shipping 3 container because it was big. And we know that, 4 because Formula boat is bigger -- is more than 5 24 feet. So there is no shipping container as is to 6 put it in. 7 That size of boat has to be mounted or 8 somehow on the deck of the ship -- lower deck. 9 Solovyev -- in order to have it shipped on the deck of 10 the ship, it has to be installed on that trailer. 11 Solovyev was looking or trying to find that size of a 12 trailer that the boat could fit. 13 And, also, I asked him to find a car or 14 truck, actually, that would be capable of towing the 15 trailer with this boat. 16 Q. Do you remember when you asked Mr. Solovyev 17 to find such a trailer? 18 A. Initially, he offered some trailer that he 19 found in November, but I didn't like that trailer. 20 Q. Did you eventually agree on a trailer with 21 Mr. Solovyev? 22 A. Yes. In December, he send me pictures of 23 good or proper trailer that I think is suitable, and I 24 paid for that trailer. 25 Q. Did you contact or communicate with
Page 63 1 don't remember precisely. Summer, in July. 2 Q. You mentioned earlier that it takes 3 approximately 40 days for a boat to move from the US 4 to Dubai; correct? 5 A. No. The big boats, it takes longer than 6 40 days. 7 Q. Okay. Do you consider the Formula a big 8 boat? 9 A. Yes, because it does not fit into the 10 container -- shipping container. 11 Q. So for a big boat like the Formula, do you 12 know how long it takes to ship from the US to Dubai? 13 A. I thought it would take at least two months. 14 Q. So approximately two months afterward -- do 15 you know if the Formula was ever shipped from the US? 16 A. No, it was not shipped from United States. 17 Q. Okay. By November 2013, after more than two 18 months had passed, did you ask anybody why the Formula 19 had not been shipped? 20 A. No, I didn't ask because I knew that -- I was 21 aware of what had happened. 22 Q. Okay. By December, 2013, were you concerned 23 that the Formula had not arrived in Dubai yet? 24 A. No, I was not concerned that it didn't make 25 it, because, initially, we were trying to agree on the	Page 65 1 Mr. Solovyev at that time to instruct him to ship the 2 boat to Middle East? 3 A. No, I did not continue that; because, at that 4 time, I noticed that his friend, Andrey Tretiakov, 5 started to become a crook -- or crooked activities -- 6 stealing, hiding. I noticed that. So at that point, 7 I decided I don't want to deal with the crooks, so I 8 instructed him to ship the boat to Miami. 9 Q. You instructed Mr. Solovyev to ship the boat 10 to Miami? 11 A. Yes. I wrote to him -- e-mail. 12 Q. When was the e-mail sent? 13 A. At the beginning of February. 14 Q. Just so I understand, from December 2014 to 15 February 2015, you did not give any instructions to 16 ship the Formula to the Middle East. Is that correct? 17 A. Yes, that's correct, because we agreed and 18 said that we will deal with it after new year. 19 Q. Who did you have this agreement with? 20 A. With Mr. Solovyev. 21 Q. Okay. After you e-mailed Mr. Solovyev in 22 February of 2015 to ship the boat to Florida, did you 23 receive a response from Mr. Solovyev? 24 THE INTERPRETER: Did you say 25 February 2015 or 2014?

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Page 66 1 BY MR. CHANG: 2 Q. I said '15, but I meant '14. 3 A. No, I have not received any response to my 4 e-mail or letter. 5 Q. Did you e-mail or communicate with 6 Mr. Solovyev again after February of 2014 about the 7 Formula? 8 A. I don't remember that, because I was -- at 9 that time, I was planning already to go to United 10 States in May. I had plans -- or we had plans. So 11 then I thought, once I am there, we'll get together, 12 have meeting and resolve the problems. 13 Q. After February 2014, did you speak with 14 Andrey or anybody else at Middle East about the 15 Formula? 16 A. Yes, with Andrey. 17 Q. Do you remember when you had the 18 communication with Andrey? 19 A. I spoke with him almost every day. 20 Q. Do you remember what the substance or the 21 details of your communications with Andrey were 22 regarding the Formula? 23 A. At first, I asked Andrey why Mr. Solovyev 24 does not respond on my request -- letter request -- to 25 ship Formula to Miami. Andrey told me that Solovyev	Page 68 1 Q. That's in Florida; correct? 2 A. Yes; Boca Raton. 3 Q. Did you try to reach Mr. Solovyev after 4 returning to Florida in May 2014? 5 A. Yes. We talk on the phone, and he said that 6 we will meet -- when the boats from Dubai will arrive 7 here, then we'll meet. 8 Q. Do you remember when you had that telephone 9 communication with Mr. Solovyev? 10 A. In June. 11 Q. What was your understanding concerning 12 storage charges for the Formula? 13 A. My understanding -- when I saw the invoice 14 for storage and parking, it was clear to me that they 15 are trying to get -- to make the bill so high for the 16 storage that it will be more than boats' value. So -- 17 because \$40,000 for storage -- so it's illegal 18 activity. It's a crooked activity. That's why I 19 wrote to him. So he is trying to defraud me. 20 Q. Other than the Formula, were the other 21 boats -- the other motorboats -- that you purchased 22 also big boats? 23 A. Okay. The other two were smaller. The one 24 was 19 feet; the other one, 21 feet; and Formula was 25 34.
Page 67 1 is going not to respond, or be quiet and ignore your 2 request until we sell two cars that belong to 3 Solovyev, Porsche and Mercedes. 4 Q. Do you remember when you had this discussion 5 with Andrey? 6 A. I believe it was maybe February, because I 7 believe it happened about two weeks after I e-mailed 8 or sent letter -- e-mail letter to Solovyev in 9 February 2014. 10 Q. Is it correct that you did not try to send 11 any additional e-mails or call or Skype Mr. Solovyev 12 until May 2014? 13 A. Maybe I tried -- attempted to contact him 14 over the phone or Skype. I just don't remember 15 exactly. 16 Q. Okay. But if you had sent any e-mails to 17 Mr. Solovyev, would you still have a record of those 18 e-mails? 19 A. Maybe, maybe. I need to check. 20 Q. Did you return to the US in May 2014 as 21 planned? 22 A. Yes. May 28th, I believe. 23 Q. Where in the US were you on May 28, 2014? 24 A. To the address and the place where we live at 25 present.	Page 69 1 Q. For the other boats, not including the 2 Chaparral, Monterey or Formula, were there any other 3 boats that were considered big boats? 4 A. Yes. We had a big one. 5 Q. Which boat was that? 6 A. Sea Ray 300. 7 Q. Did the Sea Ray also require a trailer to 8 ship? 9 A. Yes. 10 Q. And did you have any problems getting the 11 Sea Ray shipped from the US to Dubai? 12 A. Not any special problems. One thing, though. 13 The trailer, when it came, was broken. 14 Q. Other than the Formula, for all the other 15 boats that you purchased from the US, were they 16 shipped within a month of the purchase? 17 A. It depends. Some were -- that was controlled 18 by Solovyev -- this process. And depends on the boat 19 size. It was his part of the job that he would try to 20 fit two boats in one shipping container, or what the 21 best fit is, and then ship. So it varied, I would 22 say. 23 Q. Do you remember any boats that took more than 24 two months from purchase before shipping? 25 A. No, I don't.

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Page 70 1 Q. With the Formula, was your objection to the 2 storage fee on the amount of the storage or to any 3 storage? 4 A. The answer is that the bill for \$40,000, 5 which if we consider it's for storage, is tenfold or 6 ten times exceeds normal price for that. But that 7 invoice he issued and sent to me after I sent him a 8 letter that he should not get involved in criminal 9 activities or a fraud that Andrey is committing. 10 Q. Do you agree that for a boat that remained in 11 storage for more than a month, you're responsible for 12 the storage of that boat? 13 A. As a matter of principle, at the same time, 14 my company had his two cars that were stored or parked 15 there -- were repaired and stored until he will claim 16 them, and he never received any bill or invoice for 17 storage of his two cars and repairs. 18 So for him, it's a pure insolence or 19 impudence to issue the invoice, especially in such an 20 amount. 21 Q. Do you know how long those two cars were 22 stored at Middle East? 23 A. Okay. We cleared the customs -- or cleared 24 those two cars through Dubai customs in 2013, 25 September.	Page 72 1 shipping. 2 Q. For the Porsche and the Mercedes, did you 3 have an agreement with Mr. Solovyev that you would not 4 charge him storage? 5 A. No. Everything was based on trust, and he 6 would send whatever he wants to our company. 7 Q. Other than these two cars, the Mercedes and 8 the Porsche, did Mr. Solovyev send any other 9 machineries to your company? 10 A. No. He asked to sell these two -- those two 11 cars -- and also requested to send money to him. 12 Q. Do you know how much storage is charged by 13 Middle East for a car? 14 A. I don't remember now. 15 Q. Can you estimate, to the best of your 16 recollection, how much the storage charge was at 17 Middle East? 18 A. After I received invoice or bill from 19 Solovyev, I sent him initial invoice, too, for these 20 two cars. My invoice included repair, customs 21 clearance in Dubai, and parking, and all other 22 services that were provided to those two cars, and it 23 was 50,000. 24 Q. Did Middle East store cars or boats for any 25 other customers?
Page 71 1 Q. Were those two cars eventually sold by Middle 2 East? 3 A. As I already said, Andrey sold Mercedes 4 without my knowledge and sent or wired money to 5 Solovyev. 6 Q. Do you remember when that sale took place? 7 A. It arrived in September; October 20 for 8 repairs. So I would say November or December 2013. 9 Q. Okay. Do you know if Middle East sold the 10 Porsche Panamera? 11 A. I don't know, because he and Solovyev stole 12 it; and whatever they did with it, I don't know. 13 Q. You do not remember or you don't know when 14 the Porsche left Middle East? 15 A. I know one thing -- that when I talked to 16 employees of shipping company in Dubai that I used -- 17 I know them -- as in part of investigation, they told 18 me that the Porsche was shipped to Russia in August of 19 2014. So when we arrived, they shipped it right away. 20 Q. Who did you speak with that told you the 21 Porsche was shipped in August 2014? 22 A. I don't remember the name. It's something 23 cargo. It's a shipping company. That company -- that 24 shipping company, we used to deliver the boats from 25 Dubai to Sharjah. So the company worked in Dubai --	Page 73 1 A. No. 2 Q. Middle East is not in the business of 3 providing warehouse space; is that correct? 4 A. No. That was just help or a friendly favor 5 to Solovyev. The reason for that was because damaged 6 cars, he will not be able to sell in United States. 7 That's why he wanted us to help him ship the cars to 8 my company in Dubai, fix them, and then only sell. 9 Q. Did Middle East receive any money from the 10 sale of the cars? 11 A. No. 12 Q. Did Middle East receive any money from the 13 repair of the cars? 14 A. No. I paid for that repair. 15 Q. Have you been able to recover the money that 16 you loaned to Oleg under the promissory note? 17 A. Less than 50 percent. Because when we sold 18 boats, those boats that we sold, part of that money I 19 received, but it's less than he owes me -- less than 20 50 percent what he owes me. 21 Q. I apologize. Were you able to recover the 22 money directly from Oleg that you loaned him? 23 A. I have not received anything directly from 24 Oleg. 25 Q. Are there currently any lawsuits against

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Page 74 1 Middle East Asia in Dubai? 2 A. There's no lawsuits against the Middle East 3 company. 4 Q. Do you know of any lawsuits against you 5 personally in Dubai? 6 A. No. 7 Q. Do you know of any lawsuits against Andrey in 8 Dubai? 9 A. Oh, Sergey and I. 10 Q. Sergey and you? I'm sorry. What do you mean 11 by Sergey and you? 12 A. It means, I know one more person who filed 13 the lawsuit in Dubai against Andrey. 14 Q. So there are two lawsuits against Andrey? 15 A. Yes; I and the other man, but two cases. 16 Q. Do you know of any lawsuits against Oleg in 17 Dubai? 18 A. Yes; against Oleg too. 19 Q. Is that also a lawsuit filed by you and 20 Sergey? 21 A. And there is a third person, yes. I, Sergey 22 and the third, also. I know another – third person 23 that also filed against. 24 Q. What is the basis for your lawsuit against 25 Andrey?	Page 76 1 CERTIFICATE OF OATH 2 3 STATE OF FLORIDA 4 COUNTY OF ORANGE 5 6 7 I, Lisa Gerlach, the undersigned Notary 8 Public, in and for the State of Florida, hereby 9 certify that Alexander Safonov personally appeared 10 before me and was duly sworn. 11 12 WITNESS my hand and official seal this 13 21st day of December, 2015. 14 15 <i>Lisa Gerlach</i> 16 Lisa Gerlach, Court Reporter Commission #DD353538 Expires 9/8/2016 17 18 19 20 21 22 23 24 25
Page 75 1 A. For fraud, and, also, stealing the company's 2 assets. 3 Q. Has Andrey responded to your lawsuit in 4 Dubai? 5 A. Yeah. He run away to Russia. 6 Q. So no response has been entered by Andrey in 7 the Dubai lawsuit; correct? 8 A. Of course not, because he doesn't want to be 9 in jail there, so he prefer to run away. 10 MR. CHANG: Louiza, I'm going to end 11 there for Mr. Safonov and try to wrap up 12 quickly for Ms. Timoshkina. No further 13 questions. 14 MS. TARASSOVA: Give me one second. 15 (The reading and signing of the 16 transcript were not waived, and these 17 proceedings concluded at 5:45 p.m.) 18 19 20 21 22 23 24 25	Page 77 1 CERTIFICATE OF REPORTER 2 STATE OF FLORIDA 3 COUNTY OF ORANGE 4 5 I, Lisa Gerlach, Court Reporter, do hereby 6 certify that I was authorized to and did 7 stenographically report the foregoing deposition; and 8 that the transcript is a true and correct 9 transcription of the testimony given by the witness. 10 I further certify that I am not a relative, 11 employee, attorney or counsel of any of the parties, 12 nor am I a relative or employee of any of the parties' 13 attorney or counsel connected with the action, nor am 14 I financially interested in the action. 15 Dated this 21st day of December, 2015. 16 17 <i>Lisa Gerlach</i> 18 Lisa Gerlach, Court Reporter 19 20 The foregoing certification of this transcript does 21 not apply to any reproduction of the same by any means 22 unless under the direct control and/or discretion of 23 the certifying reporter. 24 25

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